

Detailed Resettlement Plan

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CAM: Climate-Friendly Agribusiness Value Chains Sector Project

Rehabilitation of the Choam Taheung Reservoir Scheme Irrigation Subproject - Tboung Khmum Province

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CURRENCY EQUIVALENTS

Currency unit	–	riel (KHR)
KHR1.00	=	USD 0.00025
USD1.00	=	KHR4,002 ¹

ABBREVIATIONS

ADB	Asian Development Bank
AH	Affected Household
AHH	Affected Household Head
AP	Affected Person
COD	Cut-off-Date
COI	Corridor of Impact
DED	Detailed Engineering Design
DIMDM	Department of Internal Monitoring and Data Management
DMS	Detailed Measurement Survey
DP	Displaced Person
DRP	Detailed Resettlement Plan
DTL	Deputy Team Leader
EM	Entitlement Matrix
FWUC	Farmer Water User Committee
GDR	General Department for Resettlement
GMS	Greater Mekong Sub-region
GRC	Grievance Redress Committee
GRM	Grievance Redress Mechanism
IOL	Inventory of Loss
IR	Involuntary Resettlement
IRC	Inter-ministerial Resettlement Committee
IRC-WG	Inter-ministerial Resettlement Committee Working Group
IRP	Income Restoration Program
LAR	Land Acquisition and Involuntary Resettlement
LARF	Land Acquisition and Resettlement Framework
LAR-SOP	Land Acquisition and Involuntary Resettlement Standard Operating Procedures
MAFF	Ministry of Agriculture, Forestry and Fisheries
MC	Main Canal
MEF	Ministry of Economy and Finance
MOWRAM	Ministry of Water Resources and Meteorology
MRD	Ministry of Rural Development
MLMUPC	Ministry of Land Management, Urban Planning and Construction
PCM	Public Consultation Meeting
PDOWRAM	Provincial Department of Water Resources and Meteorology
PGRC	Provincial Grievance Redress Committee
PIB	Public Information Brochure
PIC	Project Implementation Consultants
PIU	Project Implementation Unit
PMU	Project Management Unit
PPP	Public Private Partnership
PPP IMC	Public Private Partnership Inter-Ministerial Committee
PRSC	Provincial Resettlement Sub-Committee
PRSC-WG	Provincial Resettlement Sub-Committee-Working Group
RCS	Replacement Cost Study
RD3	Resettlement Department 3
RGC	Royal Government of Cambodia
ROW	Right-of-Way
SC	Secondary Canal
SEO	Social and Environment Officer

¹ Source: National Bank of Cambodia dated May 2025.

SES	Socio-Economic Survey
SPS	Safeguard Policy Statement
TC	Tertiary Canal

GLOSSARY²

Affected Household : All displaced/affected persons residing under one roof and operating as a single economic unit; who are adversely affected by the Project or any of its components.

Compensation: Payment in cash or in kind to the affected households as replacement cost assets, resources or income lost or adversely affected by the Project.

Corridor of Impact: The area which is affected by civil works during the implementation of the Project and may comprise:

- area within which affected households will be entitled to compensation and other measures (in general coming under the heading of resettlement) for any loss of land, structures or legally land use and occupation right and of livelihoods; and,
- agreed and demarcated operational area within which construction activities will take place.

Cut-off Date for Eligibility: This refers to the date after which people will not be eligible for compensation or assistance. Those persons occupying or using the Project prior to the identified date are eligible to be categorized as affected households and receive compensation and/or assistance. Persons not covered in the census are not eligible for compensation and other entitlements unless they can show proof that (i) they have been inadvertently missed out during the census and the inventory of losses; or (ii) they have lawfully acquired the affected assets subsequent to the completion of the census and the inventory of losses and before the conduct of the detailed measurement survey.

Displaced Person: In the context of involuntary resettlement, displaced persons are those who are physically displaced (through relocation, loss of residential land or loss of shelter) and/or economically displaced (through loss of land, assets, access to assets, income sources, or means of livelihoods) as a result of involuntary acquisition of land, or involuntary restrictions on land use or access to legally designated parks and protected areas. Further, this refers to any person or persons, who satisfy the condition of “cut-off date for eligibility”. Throughout this land acquisition and resettlement framework, “affected person” means the same as displaced person.

Detailed Measurement Survey: With the aid of the approved detailed engineering design, this activity involves the finalization and/or validation of the results of the inventory of losses, the severity of impacts and a list of affected households conducted during the feasibility studies. The final cost of resettlement for the Project will be determined following completion of the detailed measurement survey.

Detailed Resettlement Plan: This is a time-bound action plan, with budget, setting out the resettlement objectives and strategies, entitlements, income and livelihood restoration strategy, institutional arrangements, monitoring and reporting framework, budget, and the implementation schedule. The outline Resettlement Plan is in Annex 6 to Appendix 2 of the ADB Safeguard Policy Statement (2009).

Economic Displacement: Refers to loss of land, assets, access to assets, income sources, or means of livelihood because of (i) involuntary acquisition of land, or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas.

Eligibility: It includes all the affected households (without any discrimination such as household headed by women, disabled elderly, landless and people living below the national poverty line) confirmed to be residing in, doing business, cultivating land, or having rights over resources within the Subproject affected area or land to be acquired or used for Subproject activities prior and up

² The terms are the same as those of the October 2017 approved Land Acquisition and Resettlement Framework with some minor adjustments.

until the announced cut-off date. Eligibility is confirmed during the conduct of the inventory of losses and census of affected households and is detailed in the entitlement matrix.

Entitlement: A range of measures (i.e., compensation and/or other assistances as set forth and agreed in the entitlement matrix) which are provided to affected households depending on the type and severity of their losses to compensate for those losses.

Grievance Redress Mechanism: Refers to an established mechanism to receive and facilitate the resolution of affected persons' concerns and grievances/complaints about physical and economic displacement and other Project impacts paying particular attention to the impacts on vulnerable groups.

Income Restoration: The re-establishment of sources of income and livelihoods of the affected households. This term is used synonymously with "rehabilitation".

Inventory of Losses: This is the process where all fixed assets (i.e., lands used for residence, commerce, agriculture, including ponds; dwelling units; stalls and shops; secondary structures, such as fences, tombs, wells; trees with commercial value etc.) and sources of income and livelihoods inside the Project corridor of impact are recorded. Assets are identified, measured, their owners recorded, the exact location pinpointed, and replacement costs calculated. Additionally, the severity of impact to the affected assets and the severity of impact to the livelihood and productive capacity of affected households will be determined.

Involuntary Resettlement: Refers to when displaced persons have no right to refuse land acquisition by the state that result in their displacement which occurs when land is acquired through (i) expropriation by invoking the eminent domain power of the state, or (ii) land is acquired through negotiated settlement when the pricing is negotiated, and the failure will result in expropriation through invoking the eminent domain of power of the state.

Land Acquisition: The processes whereby an individual, household, firm or private institution is compelled to relinquish all or part of the land she/he/it owns or agrees to grant land to the government for public purposes in return for compensation at replacement costs.

Physical Displacement: Refers to relocation, loss of residential land, or loss of shelter because of (i) involuntary acquisition of land; or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas.

Rehabilitation: This refers to additional support provided to affected households losing productive assets, incomes, employment, or sources of living to supplement payment of compensation for acquired assets, in order to improve or at least restore the living standards of the affected households. This term is synonymous with "livelihood restoration". Rehabilitation measures are provided in the entitlement matrix as an integral part of the entitlements.

Relocation: This is the physical displacement of an affected household from her/his pre-project place of residence and/or business.

Replacement Cost: Replacement cost involves replacing an asset, including land, at a cost prevailing at the time of its acquisition. This includes fair market value, transaction costs, interest accrued, transitional and restoration costs, and any other applicable payments, if any. Depreciation of assets and structures should not be taken into account for replacement cost. Where there are no active market conditions, replacement cost is equivalent to delivered cost of all building materials, labor cost for construction, and any transaction or relocation costs.

Replacement Cost Study: This refers to the process involved in determining replacement costs of affected assets based on empirical data.

Resettlement Effects: All negative situations directly caused by the Project including loss of land,

property, income generation opportunity, and cultural assets.

Right-of-Way: It is a government owned strip of land following a centerline (such as for roads, canals, etc.) providing an area of access.

Significant Resettlement Impact: For this Project, significant resettlement impact for each Subproject means 200 persons or more experiencing 'major' impacts which are defined as (i) being physically displaced from housing, or (ii) losing 10% or more of their total productive assets (income generating assets).

Vulnerable Group³: These are distinct groups of people who might suffer disproportionately or face the risk of being further marginalized by the effects of resettlement. These include (i) households living below the poverty line as established by the Royal Government of Cambodia (ii) elderly headed households with no means of support (iii) female headed households with dependents living below the poverty rate (iv) disabled headed households, and (v) indigenous peoples (who often have traditional land rights but no formal titles).

³ The group is classified under Sub-Decree No. 291 ANKr. BK on identification of Poor and Vulnerable Households issued with ID Poor Cards by Royal Government of Cambodia.

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I. EXECUTIVE SUMMARY

A. Project and Subprojects Description

1. The Royal Government of Cambodia (RGC) is implementing the Climate-Friendly Agribusiness Value Chains Sector Project (the Project), with financial assistance from the Asian Development Bank (ADB). The primary objective of the Project is to improve the competitiveness of agricultural value chains in Kampong Cham and Tboung Khmum provinces along the Greater Mekong Sub-region (GMS) southern economic corridor, and Kampot and Takeo provinces along the south-coastal economic corridor. The Project was classified as Category B for involuntary resettlement (IR) impacts and a Land Acquisition and Resettlement Framework (LARF) and was prepared and approved in October 2017.

2. The Project has three key outputs: (i) critical agribusiness value chain infrastructure improved and made climate-resilient, (ii) climate-smart agriculture and agribusiness promoted, (iii) enabling environment for climate-friendly agribusiness enhanced.

3. Under Output 1, the Project involves the improvement of infrastructure including roads and irrigations systems. Key activities of Output 1 include: (i) rehabilitating water management infrastructure (off-farm irrigation systems, on-farm rainwater harvesting ponds, drip irrigation) to climate resilient condition; (ii) upgrading agricultural cooperative value chain infrastructure (drying, processing and storage) facilities; (iii) improving connectivity to cooperatives and markets through climate resilient farm road networks; (iv) strengthening the infrastructure for agricultural quality and safety testing at the National Agricultural Laboratory; and (v) promoting renewable energy (bio-digesters and use of solar energy in target cooperative areas) to reduce greenhouse gas emissions. Therefore, under Output 1, two subprojects will be implemented in Tboung Khmum province. These are (i) Choam Taheung Reservoir Scheme Irrigation Subproject (Package CFAVC-MOWRAM-TBM-CW13.3) with irrigation command area of 990 ha and (ii) Trapeang Ambil Reservoir Scheme Irrigation Subproject (Package CFAVC-MOWRAM-TBM-CW 13.3) with irrigation command area of 200 ha. Both subprojects are in Dambae District, Tboung Khmum Province. This detailed resettlement plan (DRP) has been prepared for Choam Taheung Reservoir Scheme Irrigation Subproject (the Subproject)

B. Summary of Land Acquisition and Involuntary Resettlement (LAR) Impacts

4. Based on the Detailed Measurement Survey (DMS) conducted from 08 April to 18 May 2025, a total of 7 affected households (AHs)/31 affected persons (APs) will be impacted by the Subproject. No AH is physically displaced, 7 AHs are economically displaced as they encounter partial or marginal economic impacts, and no AH is both physically and economically displaced. The IR impacts include state-owned land in the corridor of impact (COI) within the right-of-way (ROW) which is not compensated and therefore was neither measured nor recorded in its entirety during the DMS. The other IR impacts include 20.20m² of rice crop of 2 AHs in the ROW, 21.00m and 1 No. (grave) of secondary structures of 2 AHs, 45 fruit trees of 12 AHs and 1 non-fruit tree of 1 AH. The fruit and non-fruit trees are neither planted nor grown for commercial use. There are no major impacts, no permanent loss of livelihoods, no losses or disruptions to businesses during construction, one vulnerable AH and no relocation of any AH to another site. **Table 1** summarizes the LAR impacts by type for the Subproject.

Table 1: Summary of LAR Impacts by Type Under the Subproject

No.	Affected Assets	Quantity (measurement units)
1	Affected Households/Affected Persons	7 AHs/31 APs
2	Physically Displaced	No AHs
3	Economically Displaced	7 AHs*
4	Physically and Economically Displaced	No AHs
5	Secondary Structures (various)	21.00m and 1 No. of 2 AHs
6	Crops in the ROW	20.20m ² of rice of 2 AHs
7	Fruit Trees (various)	45 of 12 AHs**

No.	Affected Assets	Quantity (measurement units)
8	Non-fruit Trees	1 of 1 AH
9	Major Impact	No AHs
10	Permanent Loss of Livelihood Source	No AHs
11	Relocation to another site	No AHs
12	Temporary loss of income during construction	No AHs
13	Vulnerable AH	1 AH

*AHs with marginal loss of assets.

**AHs have more than 1 type of tree affected and are double counted. No trees are planted/grown for commercial use.
Source: DMS Data, 08 April-18 May 2025

C. Socio-economic Information and Profile of Affected Households

5. The socio-economic survey (SES) was conducted simultaneously with the DMS and IOL from 08 April – 18 May 2025 with a total of 7 AHs/31 APs comprising 3 (42.86%) male and 4 (57.14%) female headed households, representing 100% of the AHs impacted noting that affected public facilities if any, are not counted as affected households for the purposes of the SES. The 31 APs comprise 16 (51.61%) males and 15 (48.39%) females. The majority or 3 (42.86%) AHHs are aged 31-45 years followed by 2 (28.57%) aged 46-60 years and 2 (28.57%) aged 61-80 years. A total of 5 (71.43%) AHHs are married and 2 (28.57%) are widowed. All 7 (100.00%) AHHs are Cambodians of Khmer ethnicity and there are no indigenous people. In total, 4 (57.14%) AHHs completed some form of education with 3 (42.86%) completing primary school and 1 (14.29%) completing secondary school. Of the 3 remaining AHHs, 2 (28.57%) reported no education and 1 (14.29%) did not respond. Household composition comprises 2 (6.45%) APs under 5 years old, 4 (12.90%) aged 5-16 years, 5 (16.13%) aged 17-25 years, 11 (35.48%) aged 26-45 years, 5 (16.13%) aged 46-60 years, 3 (9.68%) aged 61-80 years and 1 (3.23%) AP over 80 years. The main/secondary sources of livelihood and annual household incomes reported include income earned by all APs in the household (household heads and family members). The largest main source of livelihood reported by 5 (74.13%) AHs is from agriculture, fishing and forestry followed by 2 (28.57%) in the private sector. Furthermore, all 7 (100.00%) AHs reported having secondary sources of livelihood. A total of 2 (28.57%) AHs declared their annual household income between \$5,000 - \$6,999 followed by 4 (57.14%) earning \$7,000 - \$9,999 and 1 (14.29%) earning \$10,000 or more. Of the 7 AHs interviewed, 1 AH/4 APs was identified as poor and vulnerable and provided an ID Poor Card during the DMS/SES interviews.⁴

D. Consultation, Participation, and Information Disclosure

6. This DRP has been prepared in consultation with the key local and national stakeholders, including the local leaders and their communities, local authorities, and particularly the AHs living along the canals. During the feasibility study, a public consultation meeting (PCM) was conducted by the feasibility consultants and MOWRAM's PMU/PIU staff assisted by the local authorities on 18 January 2025 attended by 33 AHs of which 6 were females (16.66%). The participants were informed and provided with generic information on the Project and Subprojects, the benefits and potential impacts, the anticipated land requirement, the compensation policy and entitlement and eligibility. The Public Information Brochure (PIB) prepared for the Project/Subprojects was distributed to all attendees in the PCMs and made available to Commune and Village offices and other relevant stakeholder locations in the Subprojects' areas. The cut-off date (COD) for the Subproject was established as **07 April 2025**.

7. Prior to the DMS, a PCM was conducted on 07 April 2025 attended by 72 participants of which 16 (22.22%) were females. All APs and representatives were provided with information on the provision of compensation for their loss of assets as set out in the October 2017 approved LARF for the Project. The updated PIB, DMS questionnaire and grievance redress mechanism (GRM) guidelines, all in Khmer, were shared and explained in detail to all participants. Additional copies of the updated PIBs were given to the participants and Commune Chiefs for distribution to

⁴ The ID Poor Card is the legal authoritative and official document of RGC to determine if an AH is vulnerable and living below the poverty level.

those AHs who could not attend the PCM.

8. During house-to-house DMS/SES conducted from 08 April to 18 May 2025, the updated PIB, the DMS/SES questionnaire and the GRM guidelines were provided and explained to all 7 AHs. For the illiterate AHs, the updated PIB, DMS/SES questionnaire, GRM guidelines were read out and explained in detail. The participants were encouraged to thoroughly read and familiarize themselves with the updated PIB.

9. On information disclosure, the DRP will be translated into Khmer and posted at Provincial and Commune offices and other relevant stakeholder locations to allow easy and free access for all AHs and affected communities. For illiterate people, suitable other communication methods will be used based on discussions and in consultation with the AHs. They will also be uploaded on websites of the Ministry of Water resources and Meteorology (MOWRAM) in Khmer and English. The updated PIB along with the DMS questionnaire and GRM guidelines were distributed in the PCMs and explained in detail to all the 7 AHs. During house-to-house DMS/SES, the updated PIB, DMS questionnaire and GRM guidelines were provided and explained again to all 7 AHs and posted at the Commune and Provincial offices and other relevant stakeholder locations. Documents including the (i) DRP endorsed by the IRC and cleared by the ADB; (ii) updated DRP, any corrective action plan prepared during implementation if any; and (iii) semi-annual resettlement monitoring reports will be disclosed on the MOWRAM and the ADB websites.

E. Grievance Redress Mechanism

10. The GRM was established by the Provincial Governor for the Subproject on 30 October 2024 with the appointment of the Provincial Grievance Redress Committee (PGRC) members to ensure that the AHs' grievances and complaints on land acquisition, compensation, and resettlement are addressed in a timely and satisfactory manner. The GRM procedures were included in the updated PIB and were shared with all the AHs, read out and explained in detail during the PCMs and house-to-house DMS/SES. Therefore, all the AHs were made fully aware of their rights, and the detailed procedures for filing grievances. The grievance redress procedure for the Subproject will be conducted in three steps as outlined in the RGC's Land Acquisition and Involuntary Resettlement Standard Operating Procedures (LAR-SOP) for Externally Financed Projects in Cambodia (February 2018) and October 2017 approved LARF. There are no fees or charges levied on the AH for the lodgment and processing of the complaints under First, Second and Third Steps. Handling of the complaint in GRM ends at the Third Step, since the Fourth Step is the last resort for the APs to submit their case to the appropriate court of law in Cambodia for resolution under the judicial system. The updated PIB included the contact details of the Grievance Redress Committee (GRC) focal persons. The GDR conducted a comprehensive training workshop for the PGRC and the other local authorities to strengthen the capacity of the members for effective functioning of the GRM on 24 December 2024, prior to DMS. The GRM has been operationalized and is fully functional.

F. Legal and Policy Framework

11. This DRP⁵ for the Subproject is prepared in compliance with the existing Law of the RGC and the ADB's safeguard requirements on IR under the Safeguard Policy Statement (SPS) 2009, adhering to the resettlement principles and procedures outlined in the October 2017 approved LARF adopted by the Government for the Project. The RGC's 2010 Expropriation Law is the main legal framework that governs LAR. The 2010 Expropriation Law has listed the development of public infrastructure as one of its objectives and extended the definition of public infrastructure to any infrastructure "required by the Nation in accordance with the determination made by the Government." Public interest is also understood in a broad manner as "the use of land or property by the public or by public institutions or their agents." The expropriation of the ownership of immovable property and real right to immovable property can be exercised only if the Expropriation

⁵ This document has used the term DRP replacing the term LARP, following the guidance of RGC's SOP.

Committee has paid fair and just compensation in advance to the owner and/or holder of real right.

12. Under the Article 3 of the 2010 Expropriation Law that governs the provision for projects financed by development partners in Cambodia, the RGC issued in 2018 the LAR-SOP.⁶ The LAR-SOP reflects the RGC's laws and regulations relating to the acquisition of land, the involuntary resettlement of APs and the safeguard policies and procedures of development partners as applied to public infrastructure investment projects. Where appropriate, the LAR-SOP includes references to international good practices in resettlement planning, implementation, monitoring, and reporting. The LAR-SOP has been promulgated under Sub Decree No. 22 ANK/BK on 22 February 2018 and applies to all externally financed projects in the Kingdom of Cambodia. The General Department of Resettlement (GDR) of the Ministry of Economy and Finance (MEF) is responsible for providing guidance and clarification to users of the LAR-SOP. Given that the Subproject under the Project is funded by the ADB, the provisions of the LAR-SOP will apply to the Subproject and therefore should be read together with this DRP.

G. Entitlements, Assistance and Benefits

13. The AHs will be entitled to compensation based on the entitlement matrix (EM) in the October 2017 approved LARF and has been updated in this DRP as applicable based on the DMS. The Subprojects' entitlements comprise (i) loss of state-owned land; (ii) loss of secondary structures; (iii) loss of crops; (iv) loss of fruit and non-fruit trees; (v) support to vulnerable AHs; and (vi) unanticipated impacts. The compensation for lost assets is based on the principle of replacement cost as determined by an independent consultant. The Replacement Cost Study (RCS) was conducted by an independent firm and completed in May 2025, which established the current market compensation and replacement rates for affected assets and other resettlement assistance.

14. The COD was established as **07 April 2025** in the PCM prior to DMS. The participants were informed in the PCMs that after this COD, any person who moves into or encroaches on the ROW to build or expand any kind of structure such as house, shop, fences and/or to plant any kind of trees, crops, will **NOT** be entitled to any compensation or any other assistance, except if changes in the Subproject/s design or additional land take entails a modification of the Subproject area. Information on establishment of the COD was included in the updated PIB and explained to the participants prior to DMS.

H. Resettlement Budget

15. All resettlement costs, including compensation and allowances, operational and administrative costs, monitoring, and reporting will be financed from the Government's national budget and no financing from the ADB loan will be required. The resettlement budget is estimated at **\$7,955.36**. This includes: (i) **\$2,364.29** as compensation for affected crops and trees, secondary structures and vulnerable allowance; (ii) **\$5,000.00** for consulting services for RCS; (iii) **\$354.64** for administrative costs; (iv) **\$236.43** of contingency amount.

I. Institutional Arrangements

16. The Ministry of Agriculture, Forestry and Fisheries (MAFF) is the executing agency for the Project. Given its mandate for national irrigation development, the MOWRAM holds the responsibility for the implementation of any irrigation rehabilitation activities under the Project. The MOWRAM, with assistance from the Project Implementation Consultants (PIC) will be responsible for the supervision and implementation of any access roads on the embankment of the canals under the Subprojects. However, under the oversight of the IRC, the GDR of the MEF, through its Resettlement Department 3 (RD3) will be the lead agency directly responsible for preparing, updating, implementing, reporting, and monitoring the DRP. A project level Inter-ministerial Resettlement Committee Working Group (IRC-WG) has been established to provide overall

⁶ Accessible at https://www.mef.gov.kh/documents/laws_regulation/LAR-SOP-Final-13032018.pdf

guidance and oversight and ensure effective coordination among various line ministries on matters related to LAR activities. At the provincial level, the MOWRAM and IRC will be assisted by the PGRC, Provincial Resettlement Subcommittee (PRSC) and the Provincial Resettlement Subcommittee-Working Group (PRSC-WG). A PIU within the PDOWRAM has been set up in Tboung Khmum province to work with the IRC-WG and PRSC-WG in guiding, supporting, and endorsing the work.

J. Detailed Resettlement Plan Implementation Schedule

17. All resettlement activities under the Subprojects will be coordinated with the civil works schedule. The implementation of DRP will commence after the approval of the DRP by the IRC and cleared by the ADB, and the resettlement budget approved by the MEF. The compensation payments will be carried out for all 7 AHs which is expected to be completed in two (2) weeks. The MOWRAM will not allow construction activities at affected sites until all resettlement activities have been satisfactorily completed, compensation has been paid, and the sites are free of all encumbrances. However, construction that is confined to the ROW/COI and where there are no AHs will proceed based on agreement between the MOWRAM and ADB.

K. Monitoring and Reporting

18. **Internal Monitoring.** The Department of Internal Monitoring and Data Management (DIMDM) of the GDR will undertake regular internal monitoring. The objective of internal monitoring is to (i) measure and report on the progress in the preparation and implementation of the DRP; (ii) identify problems and risks, if any, and the measures to mitigate them; and (iii) assess if the compensation and rehabilitation assistance are in accordance with the provisions under the DRP. A semi-annual resettlement safeguards monitoring report will be prepared by DIMDM and submitted to the ADB, MOWRAM and MAFF.

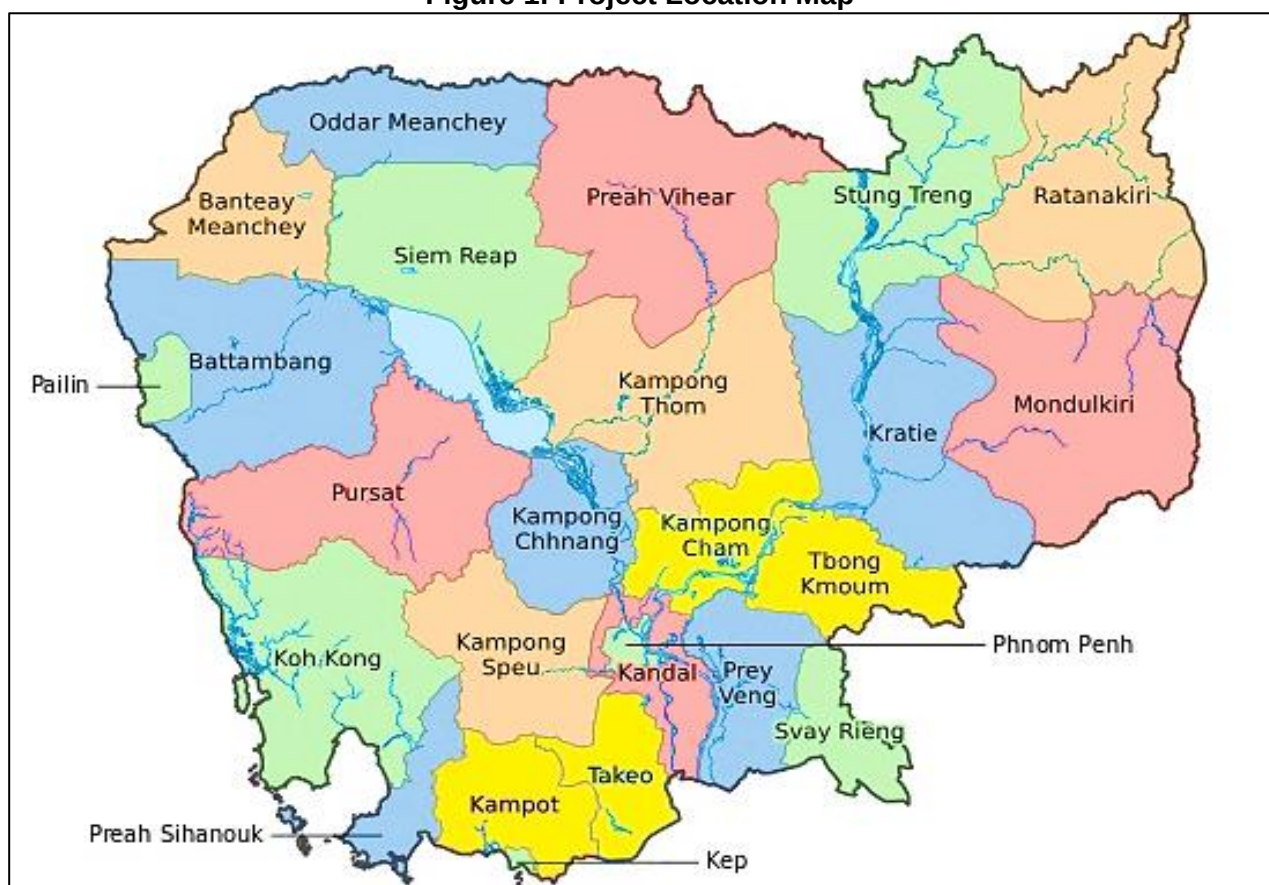
19. **External Monitoring.** The Subproject is classified as Category B for IR as it includes IR impacts that are not deemed significant and therefore no external monitoring will be required.

II. PROJECT DESCRIPTION

A. Background

20. The Royal Government of Cambodia (RGC) has undertaken the Climate-Friendly Agribusiness Value Chains Sector Project (the Project) with financial assistance from the Asian Development Bank (ADB) and Green Climate Fund. The Project is a regional initiative covering Cambodia, Lao PDR and Myanmar and will invest in pro-poor, inclusive and climate resilient agricultural value chains in Cambodia, Lao PDR, and Myanmar. The Project will support the implementation of Cambodia's Agriculture Sector Strategic Development Plan (2014-2018) and the Industrial Development Policy (2015-2025) by increasing rural household incomes and (i) enhancing competitiveness of agricultural value chains (ii) improving climate resilience of critical agricultural production and post-harvest infrastructure, (iii) intensifying commercialization of rice, maize, cassava, and mango, and (iv) promoting the use of solar and bioenergy. The Project will also create an enabling policy environment for agribusinesses and strengthen technical and institutional capacity for climate smart agriculture. This will, in turn, promote long-term environmental sustainability and enhance profitability for farmers and agribusiness enterprises. In Cambodia, the Project aims to improve the competitiveness of agricultural value chains in the Kampot and Takeo provinces along the south-coastal economic corridor, and the Kampong Cham and Tbong Khmum provinces along the Greater Mekong Sub-region (GMS) southern economic corridor. **Figure 1** illustrates the Project location map of the target provinces shaded in yellow.

Figure 1: Project Location Map



Source: CFAVCS Project document, 2020

21. The Ministry of Agriculture, Forestry and Fisheries (MAFF) is the executing agency of the Project in Cambodia. Given its mandate for national irrigation development, the Ministry of Water Resources and Meteorology (MOWRAM) holds the responsibility for the implementation of any irrigation rehabilitation activities under the Project. The Ministry of Rural Development (MRD), with the assistance of Project Implementation Consultants (PIC) is responsible for the implementation of any access road under the Project. The Project at approval was classified as Category B for

resettlement impacts and a Land Acquisition and Resettlement Framework (LARF) was prepared and approved in October 2017.

B. Project Objectives

22. The objective of the Project is to support the implementation of the RGC's Agriculture Sector Strategic Development Plan (2014-2018) and the Industrial Development Policy (2015-2025) by increasing rural household incomes and (i) enhancing competitiveness of agricultural value chains; (ii) improving climate resilience of critical agricultural production and post-harvest infrastructure; (iii) intensifying commercialization of rice, maize, cassava and mango; and (iv) promoting the use of solar and bioenergy. The Project will also create an enabling policy environment for agribusinesses and strengthen technical and institutional capacity for climate-smart agriculture.

C. Project Impact, Outcomes and Outputs

23. The overall impact is improved agricultural competitiveness in the Project areas. The outcomes are the development of more productive and resource efficient agribusiness value chains. The Project have three major outputs comprising (i) Output 1: critical agribusiness value chain infrastructure improved and made climate resilient; (ii) Output 2: climate smart agriculture and agribusiness promoted; and (iii) Output 3: enabling environment for climate friendly agribusiness enhancement.

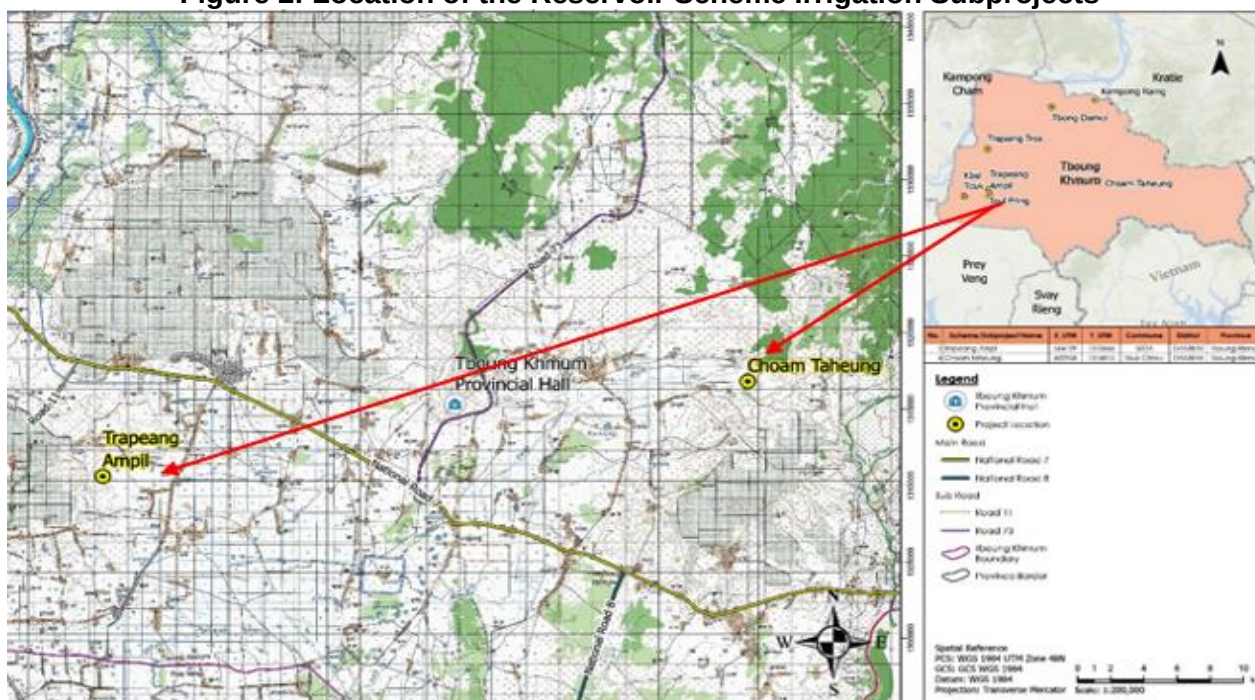
24. Under Output 1 critical agribusiness value chain infrastructure improved and made climate resilient. This output bridges the gaps in infrastructure to enhance the competitiveness of the value chains of rice, maize, cassava, and mango in target provinces. It involves rehabilitating and modernizing rural infrastructure to increase production and resource efficiency, reducing post-harvest losses, and enhancing quality and value chain linkages. It includes development of integrated systems for managing agricultural waste and residues in rice, maize, cassava and mango value chains to enhance their competitiveness, reduce greenhouse gas emissions and environmental risks, and contribute to energy independence. while reducing greenhouse gas emissions and improving climate resilience. Fiver key activities of this output include:

- (i) upgrading of off-farm and on-farm water management infrastructure to climate resilient condition (includes irrigation systems, rainwater harvesting ponds);
- (ii) construction of drying, processing and storage facilities at agricultural cooperatives;
- (iii) improvement of farm roads and tracks within communes to link farm units and production zones to the storage units and provide better access to markets;
- (iv) strengthening infrastructure for agricultural product quality and safety testing at national (National Agricultural Laboratory) and provincial levels; and
- (v) developing rural renewable energy infrastructure

D. Subprojects Description and Location

25. Under Output 1, two (2) subprojects will be rehabilitated under the Project. They are (i) Choam Taheung Reservoir Scheme Irrigation Subproject (Package CFAVC-MOWRAM-TBM-CW13.3) with irrigation command area of 990 ha in Dambae District, Tboung Khmum province and (ii) Trapeang Ambil Reservoir Scheme Irrigation Subproject (Package CFAVC-MOWRAM-TBM-CW 13.3) with irrigation command area of 200 ha in Dambae District, Tboung Khmum Province. Both subprojects have high potential for rice cultivation and other cash crops during the wet and dry seasons. The location of the two (2) subprojects are in **Figure 2**.

Figure 2: Location of the Reservoir Scheme Irrigation Subprojects



Source: Source: Feasibility Study and Detailed Engineering Design Consultant Team/CS5 MOWRAM-TBM-CW 13.3

26. The Choam Taheung Reservoir Scheme Irrigation Subproject (the Subproject), is one of selected subproject for feasibility study and detail design in 2023. This subproject is in Chong Cheach Commune and Tuek Chrove Commune, Dambae District, Tboung Khmum Province. The rehabilitation works under the Subproject will benefit 8 villages comprising 1,685 potential households.. The layout plan for the Subproject is in **Figure 3**.

Figure 3: Layout Plan of the Choam Taheung Reservoir Scheme Irrigation Subproject



Source: Feasibility Study and Detailed Engineering Design Consultant Team/CS5 MOWRAM-TBM-CW 13.3

E. Subproject Investments

27. The main canal (MC) of the Subproject is 17,070m long, while the secondary canal (SC) is 5,050m long. Information obtained from the local residents shows that in the past sufficient water was available for irrigation from the reservoir. However, the reservoir's water levels are gradually decreasing due to the presence of aquatic plants, siltation, and erosion of embankments. The

canals are covered with overgrown shrubs and lack proper structures to manage efficient flow of water (**Figure 4**).

28. The source of water for the Subproject is from the natural streams located at the upstream of the reservoir and has spring water source in the upper of reservoir area. The reservoir occupied area is around 56.60 ha. The natural streams collect water from rainfall runoff during wet season to fill up the reservoir. At present the reservoir is silted, occupied by aquatic plants in most of its sections, and needs desilting works, clean up and excavation to deepen the reservoir. The reservoir directly feeds by gravity flow to irrigate 85% of command area (in case of water increases to maximum design level) and 15% are hilly areas where local people use water pumps for irrigation. According to local people, the irrigation system faces a lack of water during the late season of rice cultivation (cropping pattern is only one-time per season - flood recessing rice). The SCs and TCs are in irregular shapes and sizes to carry the required designed discharge. The main crop grown is rice in this command area.

29. The rehabilitation of the reservoir and canals will increase the water storage capacity i.e. increase the water availability and repairing of two intake (at the dam) at head the MC and proper construction of head regulator, check structures at MCs and outlet at SCs/TCs will support in controlling the distribution of water to rice field and control flood flow. Proper training on irrigation water management and distribution during the Subproject implementation will provide further support to deal with unexpected water shortage in cropping cultivation season and increase water use efficiency in the Subproject command area.

30. In the Subproject command area, the farmers grow non photosensitive medium-term rice varieties such as CAR6, CAR9, Phka Rumdoul and other grown traditional wet season rice varieties Neang Leak, Saang, Raeng Chey, over 120 to 150 days cropping cycle. While the Subproject has its own water source, it is not sufficient for the early wet season cropping due to a silted reservoir, MC and SCs that have reduced storage capacity and resulted in limited rice production.

31. The rehabilitation and upgrading of the existing irrigation system under the Subproject aims to assist farmers in cultivating agricultural products twice a year. The proposed plan for this irrigation subproject includes rehabilitation and upgrading of Main Dam (2,270m), MC No.1 (7,400m), MC No.2 (7,400m), 8 SCs (5,050m total), construction of 35 Nos. of New Hydraulic Structures, Repairing Existing Structures at 27 locations, Retaining Existing Structures at 69 locations, Removing Existing Structures at 20 locations, and constructing a new FWUC Office Building (**Table 2**).

Table 2: Existing Facilities and Potential Enlarged Irrigation System of the Subproject

No	Description	Unit	QTY	Remark
A	Command Area	Ha	990	
B	Earthwork			
1	Main Dam	m	2,270	Laterite pavement and grass sodding
2	Main Canal No.1 (MC1)	m	7,400	Laterite pavement and grass sodding
3	Main Canal No.2 (MC2)	m	7,400	Laterite pavement and grass sodding
4	Secondary Canal (MC1-1L)	m	200	Laterite pavement and grass sodding
5	Secondary Canal (MC1-1R)	m	600	Laterite pavement and grass sodding
6	Secondary Canal (MC1-2R)	m	650	Laterite pavement and grass sodding
7	Secondary Canal (MC2-1L)	m	920	Laterite pavement and grass sodding
8	Secondary Canal (MC2-2L)	m	1,020	Laterite pavement and grass sodding
9	Secondary Canal (MC2-1R)	m	650	Laterite pavement and grass sodding
10	Secondary Canal (MC2-2R)	m	750	Laterite pavement and grass sodding
11	Secondary Canal (MC2-3R)	m	260	Laterite pavement and grass sodding
Total			22,120	
C	Structure			
C-1	New Hydraulic Structure			

1	Cross regulator (Type-A)	Nos.	8	Located at MC1 PK0+000, PK0+450, PK1+000, PK1+930, PK2+530, PK2+820, PK4+180 and PK6+850.
2	Cross Regulator (Type-B)	Nos.	3	Located at MC2 PK0+000, PK0+900 and PK2+150
3	Cross Regulator (Type-C)	Nos.	6	Located at MC2 PK4+180, PK4+625, PK4+925, PK5+050, PK6+650 and at MC2-2L PK0+500.
4	Off Take Type-A (Box, B=1m)	Nos.	6	Located at MC1 PK0+450-R, PK0+450-L, PK1+000-R, PK1+000-L, PK1+900-L and PK2+350-R.
5	Off Take Type-B (Pipe 0.80m)	Nos.	4	Located at MC2 PK1+880-L, PK4+900-R, PK4+900-L and PK6+650-L
8	Field Inlet (Pipe 0.50m)	Nos.	7	3 Locations at MC1 (MC1-1R PK0+450-L, MC1-2R PK0+200-R, PK0+200-L) and 4 Locations at MC2 (MC2-1R PK0+100-L, PK0+460-L, PK0+625-L and MC2-3R PK0+150-L).
10	Drain Inlet	Nos.	1	Located at MC2 PK 0+880.
Sub-Total			35	
C-2	Repair Existing Structure			
1	Spillway (increase 0.50m height of the existing slab)	Nos.	1	Located at dam PK1+480 (Repair slab 0.50m and protection)
2	Intake (protection 25m)	Nos.	2	Located at dam PK0+825 and PK1+880 (Repair gate and protection downstream 25m)
3	Cross Regulator (Add gate and add top slab L=1m, total L= 4m of bridge)	Nos.	1	Located at MC1 PK6+00
4	Cross Regulator (Add gate and add top slab L=1.70m,	Nos.	1	Located at MC2 PK0+350
5	Cross Regulator (Add gate and Protection)	Nos.	1	Located at MC1 PK4+970
6	Cross Regulator (Add gate and Protection)	Nos.	9	Located at MC2 PK1+400, PK1+880, PK2+380, PK2+850, PK3+325, PK3+880, PK5+480, PK5+980 and PK7+000.
7	Offtake (Add gate)	Nos.	11	7 Locations at MC1 PK0+000-R, 0+000-L, 3+130-R, 4+150-L, 4+930-L, 5+900-L, 5+980-R. and 4 Locations at MC2 PK0+330-R, 0+330-L, 2+150-R and PK4+180-R.
9	Box culvert (Double cell b=1.20m)	Nos.	1	Located at MC2 PK0+850.
Sub-total			27	
C-3	Existing structure (Retain)	Nos.		
1	Cross Regulator	Nos.	8	7 Locations at MC1 and 1 Location at MC2
2	Offtake	Nos.	50	23 Locations at MC1 and 27 Locations at MC2.
3	Field Inlet	Nos.	7	At MC1-1R and MC1-1L and at MC2-2L
4	Box culvert	Nos.	4	Located at MC1
Sub-Total			69	
C-4	Demolish and replace existing structures	Nos.		
1	Remove existing structure	Nos.	0	
2	Replace existing structure	Nos.	20	
Sub-total			20	
C-5	Construct New FWUC Building	Nos.	1	
Total			132	

Source: Source: Feasibility Study and Detailed Engineering Design Consultant Team/CS5 MOWRAM-TBM-CW 13.3

Figure 4: Photos of Current Condition of Existing Facilities and Hydraulic Structures at the Subproject





Photo of Secondary Canal of the Subproject

Source: Feasibility Study and Detailed Engineering Design Consultant Team/CS5 of MOWRAM

III. SCOPE OF LAND ACQUISITION AND RESETTLEMENT

A. Subproject Impact

32. The objective of involuntary resettlement (IR) is wherever possible to avoid and if unavoidable, minimize land acquisition and involuntary resettlement (LAR) impacts by exploring subproject and design alternatives, to enhance, or to at least restore, the livelihoods of all affected persons (APs) to pre-subproject levels; and to improve the standards of living of the displaced poor and vulnerable groups. The improvement and rehabilitation of the Dam, upgrading of canals, and the construction of new hydraulic structures under the Subproject will not involve any acquisition of private land as all the physical works will be carried out within the existing dam and canal alignments within the right-of-way (ROW). No affected household (AH) will be physically displaced and relocated to another site, no AH will experience major impacts, and no AH will be eligible for the income restoration program (IRP). The Inventory Of Losses (IOL) carried out as part of the Detailed Measurement Survey (DMS) identified loss of state-owned land use in the ROW for which no measurements were recorded as state owned land is not compensated, loss of some crops and trees, and secondary structures within the corridor of impact (COI). There are no businesses in operation alongside the canals and, therefore, there will be no temporary disruptions during construction. The DMS data highlights that although improvements of the several main, secondary, and tertiary canals, constructions and replacement of hydraulic structures will have some impacts on several AHs/APs, the magnitude of impact is minor or insignificant.

B. Cut-off-Date

33. The cut-off date (COD) for the Subproject was established on **07 April 2025** by the IRC-WG (GDR)/Project Management Unit (PMU) during the consultation meeting prior to DMS. The participants were informed that after this COD, any person who moves into or encroaches on the ROW to build or expand any kind of structure such as house, shop, fences and/or to plant any kind of trees, crops, will **NOT** be entitled to any compensation or any other assistance, except if changes in the subproject design or additional land take entail a modification of the subproject area. The Commune and Village Chiefs were informed to keep oversight that no activities take place within the ROW. Information on the COD was included in the updated Public Information Brochure (PIB) and explained to the participants prior to DMS.

C. Methodology for Detailed Measurement Survey

34. The Detailed Engineering Design (DED) and COI for the Subproject was submitted to the GDR on **16 August 2024**. Prior to DMS/Socio Economic Survey (SES), the Inter-ministerial Resettlement Committee Working Group (IRC-WG), Provincial Resettlement Sub-Committee Working Group (PRSC-WG), Project Implementation Unit (PIU), PMU and DED Consultants, with the assistance of local authorities, conducted public consultation on 7 April 2025. The consultation was conducted to explain: the processes of DMS/SES, the DMS questionnaire, the updated PIB with entitlements and the Grievance Redress Mechanism (GRM) procedures. The field demarcation of the COI was carried out on 04 April 2025 and the DMS/SES was conducted from 07 April - 18 May 2025. During the DMS, all households were consulted again on a one-to-one basis by IRC-WG and PRSC-WG with the assistance of the local authorities. The households were provided with the detailed explanations on the Project resettlement policies, Subprojects' design and benefits, construction and operation, compensation and entitlements, the DMS questionnaire, and the GRM. During the demarcation of the COI and DMS/SES, the scale of the IR impact assessment on land and other physical assets was jointly carried out by the IRC-WG, PRSC-WG, PIU and DED Consultants with the assistance of local authorities, with the AHs. The IR impact assessment was completed via a transect walk-through of the entire stretch of the Subproject between the demarcated COI, as well as during the measurements of the affected assets, and the AHs and local authorities were shown and informed on the resettlement impacts within the COI.

35. For the Subproject, the COI was defined and all assets within the COI, such as land (state-owned land), secondary structures, fruit and non-fruit trees that were measured and recorded. The

IRC-WG, PRSC-WG and PIU measured the areas of affected land and structures, identified their types of materials, and assessed the viability of the remaining structures, if any, for their continued use. They identified the types of trees to be impacted and established their productive ages. The DMS data obtained information on the names of the AHs and all affected assets that are within the COI. The DMS included 100% of the AHs. The SES was conducted in parallel with DMS using the DMS questionnaire from 08 April to 18 May 2025, which contained questions on the demographic and socio economic profiles of 7 AHs/31 APs.

D. Replacement Cost Study

36. The compensation for lost assets is based on the principles of replacement cost determined by an independent consultant. Under a competitive selection process, the Inter-ministerial Resettlement Committee (IRC)/GDR engaged an independent local firm qualified and experienced in asset valuation, who carried out and completed the replacement cost study (RCS) from 27 April to 15 May 2025.

E. Measures to Minimize Resettlement Impact

37. During the feasibility study of the Subproject, the potential IR impacts were neither thoroughly assessed nor estimated and the potential number AHs was not recorded. However, during DED stage, significant steps were taken to avoid and minimize IR impacts to ensure that the Subproject does not have significant IR impacts by exploring and adopting the measures and design alternatives. Most of the impacts that are considered for mitigating is on the private land that has already completed the land registration for land title that are close to the dam and existing canals. They will be impacted by the proposed rehabilitation of the existing dam and canals, and construction of some structures. Details of measures to minimize the IR impacts are summarized in **Table 3**.

Table 3: Measures to Minimize IR Impacts

No	Type of Work	Expected Impacts	Section	Measures to Minimize Applied
1	Dam	Private Land and main structure at the starting point	0+00 to 0+350	Detailed discussion and consideration for realignment to reduce the COI in order to minimize the impact on private land and the main structure. The realignment does not affect the structure, but only reduces the COI based on the existing canal and therefore, reduces any additional scope work.
2	Main Canal (MC)	Private land along the main canal with some main structures	2+250 to 2+600 and along the main canal	
3	Secondary Canal (MC2-2L)	The private land along the MC2-2L	0+50 to 1+000	
4	Secondary Canal (MC2-2R)	Private land along the MC-2R	0+00 to 0+750	
5	Secondary Canal (MC2-1R)	Private land along the main canal	0+00 to 0+6500	

F. Impact Assessment under the Subproject

(i) Impact on AHs

38. A total of 7 AHs/31 APs will be affected by the Subproject. Out of these, no AH is physically displaced, 7 AHs are economically displaced, and no AH is both physically and economically displaced. The 7 AHs are considered economically displaced as they encounter partial or marginal economic impacts through loss of assets such crops, trees and secondary structures. **Table 4** summarizes the impact on AHs under the Subproject.

Table 4: Summary of Impact on AHs

Category	No. of AHs
Physically Displaced	-
Economically Displaced	7

Physically and Economically Displaced	-
Total	7

Source: DMS Data, 08 April-18 May 2025

(ii) Impact on Land Type

39. The Subproject will only impact state-owned land. The affected state-owned land is within the ROW which is not compensated, therefore, no measurements were taken and recorded during the DMS. The ROW has been registered by the Cadastral Office. There is no leased, rented or customary land (indigenous people) affected.

(iii) Impact on Land Use

40. While the Subproject impacts state-owned land within the ROW which was not measured in its entirety during the DMS, 2 AHs will experience loss of land use of 20.20m² within the ROW used for rice cultivation/standing rice. **Tables 5** summarizes the loss of land use under the Subproject.

Table 5: Summary of Impact on Land Use

Category	m ²	# AH
Rice	20.20	2
Total	20.20	2

Source: DMS Data, 08 April-18 May 2025

(iv) Impact on Trees

41. A total 46 trees of 13 AHs will be affected. These include 45 fruit trees of 12 AHs and 1 non-fruit trees of 1 AH. All of the affected trees planted or grown are not for commercial use. All affected trees will be compensated as per the entitlement matrix (EM). **Tables 6** summarizes the affected trees under the Subproject and the detailed breakdown provided in **Annex 1**.

Table 6: Summary of Impact on Trees

Category	No. of Trees	# AH
Fruit Trees	45	12
Non-Fruit Trees	1	1
Total	46	13*

**AHs have more than 1 type of tree affected and are double counted. No trees are planted/grown for commercial use.

Source: DMS Data, 08 April-18 May 2025

(v) Impact on Structures

42. The Subprojects will not impact on any primary structures but will partially impact on 21.00m and 1 No. (grave) of secondary structures of 2 AHs. **Table 7** summarizes the affected secondary structures for the Subproject.

Table 7: Summary of Impact on Secondary Structures

No.	Category	m	No.	#AH
1	Barbed wire fence with concrete posts	21.00		1
2	Grave		1	1
	Total	21.00	1	2

Source: DMS Data, 08 April-18 May 2025

(vi) Relocation of the Grave

43. The IRC-WG and the local authorities met the family member of the deceased person and made available to them the updated PIB. The TL of IRC-WG explained in detailed the contents of

the PIB including the subproject impacts and benefits, compensation policy, eligibility and entitlements and the GRM procedures. The TL explained that grave was in the COI of the canal and will require its relocation outside the ROW. He told family members that the costs for the relocation of the grave will be met by the Subproject. The family member agreed to relocate the grave in their family's cashew nut farm once she received the compensation.

(vii) Temporary Impacts

44. Temporary impacts concern mainly the disruption of the use of land, roads, tracks, footpaths, and/or property road access points outside the COI caused by dam, canal and road construction activities, the movement and storage of construction equipment and materials and any unanticipated impacts. These will be addressed during the Subproject/s implementation based on actual impacts and in accordance with the national laws and ADB Safeguards Policy Statement (SPS) 2009. The civil works contract as well as the environmental management plan will require the contractor to reinstate the temporary structures outside the COI and any impacted structures along the construction works area to their original condition after the construction is completed, including pavements/walkways, driveways, roadside curbs, signposts, water pipes, electric poles, and eaves.

45. For any temporary site installation or other area, the contractor will have to propose a site installation and access plan and obtain approval from the PMU. Where possible, unoccupied and unused public land will be used for temporary land use or storage. If private land/space is required, the contractor shall rent the private land/space with the agreed rental fee. Both private and public space shall be returned to the same or improved condition compared with the pre-Subproject/s situation. Through a transparent and contractual approach, the PMU will provide the contractor with the Project's land acquisition and compensation principles to ensure that (i) official compensation rates are applied, (ii) re-instatement of affected assets are contractually defined, (iii) consultation takes place, (iv) the grievance mechanism is followed, (v) the environmental management plan is applied, and (vi) other items specified are complied with, in compliance with the ADB SPS 2009 and RGC's Land Acquisition and Involuntary Resettlement Standard Operating Procedures (LAR-SOP) for Externally Financed Projects in Cambodia (February 2018).

(viii) Unanticipated Impacts

46. In case there are changes in the Subproject/s scope and/or location during the Project implementation, social impact screening of new impacts shall be conducted and a corrective action plan like the DRP Addendum shall be prepared, if required. Unanticipated impacts will be documented and mitigated based on the principles provided in the DRP. Any new APs that will be identified (i.e., those who will be included among the adversely affected because of changes in Subproject/s design or alignment prior to or even during construction works) are entitled to the same entitlements as those of the other APs. The new APs will not include any occupant entering the COI or construction area after the COD.

IV. SOCIOECONOMIC PROFILE OF THE AFFECTED HOUSEHOLDS

A. Methodology

47. A full census and SES in the Subproject areas was conducted at the time of the DMS and IOL noting that affected public facilities if any, are not counted as affected households for the purposes of the SES. The SES focused on income earning activities and other socio-economic indicators of all AHs and APs through house-to-house interviews. The necessary data was collected through a DMS questionnaire which was used to establish baseline information on the key socio-economic status including demographic, income, occupational and gender variables.

B. Demographic Profile of Affected Households

48. A total of 7 AHs/31 APs will be affected by the Subproject. The 7 AHs comprise 3 (42.86%) male and 4 (57.14%) female headed households. The 31 APs comprise 16 (51.61%) males and 15 (48.39%) females. **Table 8** summarizes affected household heads (AHHs) and APs by gender

Table 8: Summary of AHHs and APs by Gender

Category	Male	%	Female	%	Total	%
Head of Household	3	42.86	4	57.14	7	100.00
No. of Affected Members	13	54.17	11	45.83	24	100.00
Total Affected Persons	16	51.61	15	48.39	31	100.00

Source: DMS Data, 08 April – 18 May 2025

49. The majority or 3 (42.86%) AHHs comprising 1 male and 2 females are aged 31-45 years followed by 2 (28.57%) comprising 1 male and 1 female aged 46-60 years and 2 (28.57%) comprising 1 male and 1 female aged 61-80 years. A total of 5 (71.43%) AHHs comprising 2 males and 3 females are married and 2 (28.57%) comprising 1 male and 1 female are widowed. All 7 (100.00%) AHHs are Cambodians of Khmer ethnicity and there are no indigenous people. In total, 4 (57.14%) AHHs completed some form of education with 3 (42.86%) comprising 1 male and 2 females completing primary school and 1 (14.29%) male completing secondary school. Of the 3 remaining AHHs, 2 (28.57%) females reported no education and 1 (14.29%) male did not respond. **Table 9** summarizes the demographic profile of the AHHs by gender.

Table 9: Demographic Profile of AHHs by Gender

Category	Male	%	Female	%	Total	%
Age						
31 to 45 years	1	33.33	2	50.00	3	42.86
46 to 60 years	1	33.33	1	25.00	2	28.57
61 to 80 years	1	33.33	1	25.00	2	28.57
Total	3	100.00	4	100.00	7	100.00
Marital Status						
Not Married	2	66.67	3	75.00	5	71.43
Widowed	1	33.33	1	25.00	2	28.57
Total	3	100.00	4	100.00	7	100.00
Ethnicity						
Khmer	3	100.00	4	100.00	7	100.00
Total	3	100.00	4	100.00	7	100.00
Education						
None	-	-	2	50.00	2	28.57
Primary	1	33.33	2	50.00	3	42.86
Secondary	1	33.33	-	-	1	14.29
No Reply	1	33.33	-	-	1	14.29
Total	3	100.00	4	100.00	7	100.00

Source: DMS Data, 08 April – 18 May 2025

50. Of the 31 persons affected by the Subproject, 2 (6.45%) males are under 5 years old, 4

(12.90%) comprising 1 male and 3 females are 5-16 years, 5 (16.13%) comprising 3 males and 2 females are 17-25 years, 11 (35.48%) comprising 5 males and 6 females are 26-45 years, 5 (16.13%) comprising 3 males and 2 females are 46-60 years, 3 (9.68%) comprising 2 males and 1 female are 61-80 years and 1 (3.23%) female is over 80 years. **Table 10** summarizes the APs (including AHHs) by age and gender.

Table 10: Composition of APs by Age and Gender

Gender	<5yrs	5-16yrs	17-25yrs	26-45yrs	46-60yrs	61-80yrs	>80yrs	Total	%
Males	2	1	3	5	3	2	-	16	51.61
Females	-	3	2	6	2	1	1	15	48.39
Total	2	4	5	11	5	3	1	31	
%	6.45	12.90	16.13	35.48	16.13	9.68	3.23		100.00

Source: DMS Data, 08 April – 18 May 2025

C. Livelihood and Household Income

51. The main sources of livelihood reported include income earned by all APs in the household (household heads and family members). Agriculture, fishing and forestry was the largest main source of livelihood with 5 (71.43%) comprising 2 male and 3 female-headed AHs followed by 2 (28.57%) comprising 1 male and 1 female-headed AH in the private sector. **Table 11** summarizes the main source of livelihood of the AHs by gender.

Table 11: Main Source of Livelihood for AHs by Gender

Livelihood Source	Male	%	Female	%	Total	%
Private Sector	1	33.33	1	25.00	2	28.57
Agriculture, Fishing, Forestry	2	66.67	3	75.00	5	71.43
Total	3	100.00	4	100.00	7	100.00

Source: DMS Data, 08 April – 18 May 2025

52. Secondary sources of livelihood reported includes income earned by all APs in the household (household heads and family members). All 7 (100.00%) AHs reported having secondary sources of livelihood. Daily/casual labor was the largest secondary source with 5 (71.43%) comprising 2 male and 3 female-headed AHs followed by 2 (28.57%) comprising 1 male and 1 female-headed AH in agriculture, fishing and forestry. **Table 12** summarizes the secondary source of livelihood of the AHs by gender.

Table 12: Secondary Sources of Livelihood for AHs by Gender

Livelihood Source	Male	%	Female	%	Total	%
Agriculture, Fishing, Forestry	1	33.33	1	25.00	2	28.57
Daily/Casual Labour	2	66.67	3	75.00	5	71.43
Total	3	100.00	4	100.00	7	100.00

Note. AHs may have multiple sources. Largest secondary livelihood source is reported to avoid double counting AHs.

Source: DMS Data, 08 April – 18 May 2025

53. Annual household income includes income earned by all APs in the household (household heads and family members). Of the 7 AHs interviewed, 2 (28.57%) female-headed AHs declared their annual household income between \$5,000 - \$6,999 followed by 4 (57.14%) comprising 2 male and 2 female-headed AHs earning \$7,000 - \$9,999 and 1 (14.29%) male-headed AH earning \$10,000 or more. **Table 13** provides a summary of the annual household income by gender.

Table 13: Annual Income of AHs by Gender

Annual Income	Male	%	Female	%	Total	%
\$5,000 - \$6,999	-	-	2	50.00	2	28.57
\$7,000 - \$9,999	2	66.67	2	50.00	4	57.14
>\$10,000	1	33.33	-	-	1	14.29
Total	3	100.00	4	100.00	7	100.00

Source: DMS Data, 08 April – 18 May 2025

D. Poor and Vulnerable Groups

54. The households that are vulnerable and living below the poverty line are identified based on the criteria established by the RGC. Each household which is assessed by the Government and found to be poor and vulnerable is issued an official ID Poor Card. The AHs under the Project/Subproject have been categorized as vulnerable and living below the poverty line based on ID Poor registration and holding an ID Poor Card. The self-reported or declared income status by the AHs during DMS/SES is not used for poverty classification. 1 female-headed AH/4 APs was identified as poor and vulnerable. **Table 14** summarizes poor and vulnerable households by gender.

Table 14: Poor and Vulnerable Households by Gender

Poverty Level	Male	Female	Total
ID Poor 1	-	-	-
ID Poor 2	-	1	1
Total	-	1	1
APs	-	4	4

Source: DMS Data, 08 April – 18 May 2025

E. Gender Considerations

55. Gender concerns and issues have been considered in resettlement planning and in this DRP. Gender differentiated benefit-sharing measures are included in the DRP to ensure that the women and men of the households are treated equally. There are no legal or customary/cultural obstacles for women to own land, houses, and other property in their villages. Both men and women in the AHs participate in income-generating activities for their families and are involved in public activities as well as in decision making. During the preparation of the DRP, both women and men were invited to actively participate in the consultation meetings, jointly participate in house-to-house consultations, and participate in the DMS/SES and measurement of affected assets. A separate gender action plan has been prepared for the Project/Subproject and updated. In general, no significant gender issues were found in the Project/Subproject area or in the AHs during the SES with the AHs and consultations with the community. It is noted that all female-headed AHs reported having secondary sources of livelihood.

F. Impact on Indigenous People

56. No Indigenous Peoples are affected by the Subprojects. During the SES interviews, all AHs were identified be Cambodians of Khmer ethnicity (Table 9). The Indigenous Peoples Impact Screening carried out by MOWRAM confirms that no Indigenous Peoples are affected in the COI of the Subproject.⁷

⁷ The Indigenous Peoples Screening Checklist for the Subproject were carried out on 13 March 2023. The Subproject has been classified as Category C for Indigenous Peoples impact.

V. CONSULTATION, PARTICIPATION, AND INFORMATION DISCLOSURE

A. Objectives of Consultation and Participation of the Stakeholders

57. Public consultation and participation aim to develop and maintain avenues of communication between the Project/Subprojects, stakeholders, and AHs. To ensure that the views and concerns of the AHs are considered in Project/Subprojects preparation and implementation, and to reduce or offset adverse impacts and enhance benefits, a strategy of meaningful participatory was adopted and implemented for consultation, participation, and information disclosure. All consultations have been presented verbally in Khmer with visual tools such as maps and drawings for all AHs to fully understand and be able to participate. During the DMS consultations, the IRC-WG team explained the Project/Subprojects scope in house-to-house (one-to-one consultations), distributed and explained the PIB. For the illiterate people, the IRC-WG assisted by reading out all the information.

B. Consultation during the Feasibility Study for the Subprojects

58. The first meaningful public consultation meeting (PCM) was conducted during the feasibility stage of Choam Taheung Reservoir Scheme Irrigation Subproject on 18 January 2025 attended by 33 AHs of which 6 were females (16.66%) The PCM was conducted by the feasibility consultants and MOWRAM's PMU/PIU staff assisted by the local authorities. The PIBs were distributed to the participants prior to the meeting. The Minutes of the PCM, the Attendance List and Photographs taken during the PCMs are in **Annex 2. Table 15** summarizes the key topics discussed and explained in detail to the AHs at the PCMs on the dates/times, locations and number of AHs by gender.

Table 15: Summary of Key Topics Discussed at the PCMs During Feasibility Study by Gender

No.	Date/Time	Location	Topics Discussed and Explained	No. of AHs
1	18 th January 2025 8:30 am – 10:25 am	Seda Commune Hall, Choam Taheung Reservoir Scheme Irrigation Subproject	• Project and Subproject background and information • Preliminary design of the main, secondary and tertiary canals and technical discussions and presentations on them • Project information booklet and Cut-off Date • Project and Subproject benefits and potential resettlement impacts • Anticipated land requirements • Compensation policy • Entitlements and Eligibility • Brief discussion on GRM and GRM focal points of MOWRAM	33 (M:27, F:6)
Total			33 AHs (27 male and 6 female)	

Source: Annex 2, Minutes of PCM during Feasibility Study

59. The purpose of this PCM was to (i) inform participants on the rehabilitation of the existing canals and construction and replacement of hydraulic regulators and construction of FUWC buildings; (ii) distribute/share, explain and disclose the PIB on the Commune and Provincial information boards, (iii) discuss preliminary technical designs of the main, secondary and tertiary canals; (iv) discuss potential affected assets and eligibility for compensation; and (v) provide introductory processes and procedures of GRM. All consultations were presented verbally in Khmer to allow AHs to fully understand and be able to participate, while using visual tools such as maps, drawings, and banners. The PCMs were also sought feedback from the participants on the proposed Subproject.

60. At the PCMs, participants were informed that a COD would be established for the APs to have the right to be eligible to receive compensation for any affected assets under the Subprojects. The purpose of the COD was to: (i) prevent the influx of people into the Subprojects sites; (ii) prevent illegal encroachment on public land/state-owned land, and (iii) determine the properties and assets affected within the ROW to receive compensation. The participants were informed that the COD will be announced and established in the PCM prior to DMS. The AHs were also informed that any new buildings, additional construction or proposed construction, or planting trees and cultivation in the COIs after the COD, will **NOT** be eligible for compensation and resettlement assistance.

61. The AHs were informed on the preliminary design parameters of the MCs, SCs and TCs, including the access roads under the Subprojects. The locations of the canals connecting MCs, SCs and TCs into the command areas in each commune, their lengths and geometric features and their potential benefits and resettlement impacts were discussed and explained to the AHs in the PCMs. The cross-section features of MCs, SCs and TCs, including the access roads, were displayed and explained.

62. All AHs were given the PIB, which was read out and explained in detail at each PCM. The PIB provided clear and adequate information on the Project/Subprojects, and the AHs participated in the Subprojects' planning, including discussions on issues and concerns arising from the Subprojects' rehabilitation and improvements. The GRM was briefly explained, and the AHs were appropriately informed and consulted. In the event of any complaints, the contact information of the MOWRAM Social and Environments Officers (SEOs) was also disclosed during the consultation process. The participants were informed that while a Project level GRM would be established to resolve any complaints, a separate GRM would be established for LAR activities with the assistance of the GDR of the Ministry of Economy and Finance (MEF) to receive, register, and resolve complaints on LAR matters.

63. After the detailed discussions and presentations, the participants were given the opportunity to raise their concerns, ask questions or seek further clarifications, make suggestions, and recommendations. The key issues/questions and responses are summarized in **Table 16**.

Table 16: Summary of Key Issues/Questions and Responses during the PCM

No.	Key Issues/Questions	Responses
1	Where will the Subproject be constructed?	The Subproject will be mostly constructed within the existing irrigation canal and dam and improve the existing roads on the embankments will be improved for transportation of goods and used by the communities.
2	Did the Subproject consider the impact on private assets?	During feasibility study stage, considerations have been given to avoid and minimize impacts to private assets as much as possible.
3	We are extremely grateful to MOWRAM and the Subproject team for assisting us in restoring/improving our irrigation systems. Our goal is to be able to grow crops two times annually with a sufficient and regular water supply, which is an improvement from the previous situation.	The Subproject aims to support the community in response to current needs and provide future benefits to the community from the improved irrigation system.
4	What will be the solution if the Subproject affects people's assets such as houses, trees, structures, or private farmland?	The Subproject aims to avoid impacting private land and utilize existing community land or public state land for construction, particularly for the FWUC office building and use the right-of-way for rehabilitation of the Dam and existing canals. However, if impacts avoidance is not possible, compensation will be processed based on the replacement cost at current market rate, and voluntary donations are accepted only

		for very minor impacts based on the voluntary donation criteria.
5	We really appreciate the Subproject's focus on environmental and social safeguards throughout the study and implementation stages, including detailed explanations, even though the Subproject aims to rehabilitate the existing irrigation. This approach ensures the safety of the Subproject during study and implementation.	The Subproject aims to provide meaningful consultation to the subproject beneficiaries, ensuring compliance with Cambodian laws and regulations and ADB SPS regarding environmental and social safeguards. The focus is on mitigating and avoiding IR impacts without adjusting the designs.
6	If the Subproject impacts land with titles, will the Subproject cover the new title transfer fee?	Yes. The Cadastral Administration Office in the Commune will remeasure the remaining land and provide the new title.
7	Can you let us know if the reservoir/dam will be rehabilitated?	The Subproject is at feasibility study stage. The need for the reservoir to be rehabilitated will be decided during the detailed engineering design stage. This will be confirmed during the DMS stage.
8	We are very interested in what you mentioned about hiring local workers for construction work during the Subproject implementation. We hope that we can work during the construction to earn some additional income.	The Subproject will provide opportunities for local workers, with priority given to poor and vulnerable household heads, particularly women.
9	When will the construction of the Subproject begin?	Construction can begin once the DED and safeguards documents are completed and approved by the IRC and ADB, compensation paid to the affected households, and the land is vacated. The estimated time to start construction will be mid-2026.
10	As we are concerned about the access to our farmland and the removal of the existing bridge or drainage by the Subproject during construction, what support can the Subproject provide us during construction?	The contractor will provide temporary access to the farmlands due to any removal of the existing bridges or drainage systems during the construction phase of the Subproject.
11	We believe that the Subproject will compensate for the impact on our private assets, but my family and I have agreed to donate. We see this as the ideal way to support the Subproject for the benefit of the community. Kindly continue with the Subproject according to the plan.	We have no objection to voluntary donations as allowed under the law. However, the voluntary donation must be within the parameters of the voluntary donation criteria that has been included in the October 2017 approved LARP for the Project.
12	As discussed, we really need to widen the existing canal to ensure enough water flow to support our community and farmland produce twice a year.	During the feasibility study, we are focusing on the current functionality, water flow, and water capacity. This will be further addressed at the DED stage to confirm the total canal width with the technical specifications.
13	Can private assets receive compensation impacted by the Subproject?	Yes. Compensation will be given to all affected assets inside the COI at replacement cost.
14	The existing canal is so small, with some sections being used for cultivation and occupied by local people.	The purpose of the Subproject is to construct and rehabilitate the existing canal by expanding it to be larger than before in some sections, while also trying to minimize any IR impacts. Any structures or cultivation or standing crop inside the existing canal will be compensated. Local people will be needed to vacate the land within the COI for construction to commence.
15	The Subproject should consult with all Subproject stakeholders, local	The consultation, participation and information disclosure will be an ongoing process through the Subproject cycle, i.e. from feasibility study to

	authorities, and especially the local people within the subproject areas.	completion. There will be further consultations during the DED, DMS, Compensation and Subproject Implementation/Construction stages.
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Source: Annex 2, Minutes of the PCM

C. Consultation during the Preparation of the DRP

64. This DRP has been prepared in consultation and participation with the key local and national stakeholders in the Subprojects' areas. Importance was given to consulting with relevant authorities and affected communities, local authorities and particularly the AHs living along the canals and in command areas. The purpose of the consultations and participation was to understand their perception towards the design of the canals and benefits of receiving water regularly, their expectations, receive their support for the Subprojects, and to create awareness among the affected population. In addition, the consultation focused on discussing and providing detailed explanations on the establishment of the COD, DMS questionnaire, DMS processes and AHs full participation, entitlements, compensation and resettlement assistance payment procedures, and GRM procedures and processes for lodging and registering complaints, including the contact persons for GRM.

65. Prior to DMS a PCM was conducted by the IRC-WG with the assistance of the PRSC-WG and local authorities on 07 April 2025, attended by 72 participants, out of which 16 (22.22%) were females. The dates/times, venues, commune name and number of participants by gender are summarized in **Table 17**.

Table 17: Summary of Dates/Times, Road Names, Venues and Participants by Gender

No.	Date/Time	Venue	Commune	Province	No. of Participants
1	07 Apr 25/08:00	Teuk Chrov District Hall	Teuk Chrov and Chong Cheach	Tboung Khmum	72 (F: 16, M: 56)
	Total:				72 (F: 16, M: 56)

Source: Annex 3, Minutes of PCM

66. Prior to the commencement of the PCMs, the participants were provided with the updated PIB, DMS questionnaire (inclusive of the SES), GRM guidelines, all in Khmer. The Minutes of the PCM, the Attendance List and Photographs taken during the PCM is in **Annex 3**.

67. The TL of IRC-WG discussed and explained in detail the salient topics in the updated PIB (**Annex 5**), the DMS questionnaire, and GRM guidelines to the PCM attendees so that adequate information on the Project/Subprojects were disseminated to the AHs who then could participate in the Subprojects' planning. The TL informed the participants that the COD was set for **07 April 2025**. The participants were informed that after this COD, any person who moves into or encroaches on the ROW to build or expand any kind of structure such as house, shop, fences and/or to plant any kind of trees, crops, will **NOT** be entitled to any compensation or any other assistance, except if changes in the Subproject/s design or additional land take entail a modification of the Subproject/s area. The participants were informed that to comply with the Cambodian Laws and regulations and ADB's SPS on the resettlement and compensation policies, the AHs are not to dismantle or remove any structures until such the compensation is paid. The Commune and Village Chiefs were informed to keep oversight on any demolition and dismantling of structures and that no activities take place within the ROW. The TL emphasized in the PCM that (i) those AHs residing alongside the canals and in command areas will directly benefit from the regular supply of water; (ii) no AH will be displaced from existing housing; and (iii) the Subproject will have an adequate grievance process in place for timely resolution of any complaints.

68. To ensure that all the AHs and APs were fully informed about the Project/Subprojects, the updated PIB, DMS questionnaire, GRM guidelines and DED were shared and explained in detail again during house-to-house DMS so that the AHs who could not attend the PCMs fully understood the Project/Subproject, entitlements, compensation, and the GRM. For the illiterate AHs, the information in the updated PIB, DMS questionnaire and GRM guidelines were read out and explained to them. Feedback was also sought from the AHs to avoid any negative impacts from

the Subprojects and clarifications were provided during the PCMs. **Table 18** summarizes the key issues/questions raised by participants with responses.

Table 18: Summary of Key Issues/Questions and Responses

No.	Issues/Questions	Responses
1	Will the affected structures/assets receive compensation?	The affected structures/assets within COI which were built before the COD will receive compensation at full replacement cost.
2	Is it a normal canal restoration or a concrete canal?	It is the restoration of normal canal.
3	My house is adjacent to the canal. Will there be any impact on my house?	The detailed design team have demarcated the corridor of impact and the DMS Team will conduct a detailed survey measurement at the actual site location jointly with you to enable you to see if your house will be impacted
4	My rice field is adjacent to the canal. So, will there be any impact on my rice field? And what is the size of the canal?	The team will conduct a detailed survey measurement at each canal location. The size of the canal is designed to meet the flow of water to the command area and the team will inform on the size of canal when conducting the DMS.

Source: Annex 3, Minutes of PCM

D. Consultation with the Family of the deceased on Grave relocation

69. The IRC-WG assisted by the local authorities conducted a consultation meeting with the family members of deceased's affected grave on 11 April 2025 at 9:00am at Kley Parish Hall, Tboung Khmum province. The purpose of the meeting was to discuss the impact of the grave to the Subproject, its relocation and the compensation payment. The family members of the deceased's grave agreed with the relocation of the grave and had no issues with the compensation amount. The Minutes of the Meeting, the Attendance List and Photographs taken during the meeting is in **Annex 4**.

E. Consultations during DRP Implementation

70. After the approval of the DRP by IRC and cleared by ADB, and the resettlement budget approved by MEF, a PCM will be conducted at Commune Halls at both subproject areas to inform the AHs of their entitlements determined by DMS and the corresponding compensation amounts of the affected assets and other resettlement assistance computed by the IRC from the rates of the approved RCS. A PIB on the compensation package will be prepared and discussed with individual AHs on a one-on-one basis. The compensation computations and amounts will be explained on an AH-to-AH basis. The AHs who agree with computation will be required to sign the contract on compensation of affected assets on this day or given 3 working days to sign their contracts and submit them to IRC-WG through the commune office.

71. Another PCM will be conducted to make compensation payments to AHs. During this PCM, all the AHs will be reminded and explained the processes of GRM. Should any AH disagree with the computations or measurements, s/he can file a complaint through the GRM stages provided in the GRM guidelines. After the compensation payment, the AHs will be given notice to vacate the land within 30 days for the civil works to commence. During these 30 days, the AHs will be allowed to harvest crops (if any) and demolish any structures to take them away.

F. Information Disclosure

72. The updated PIB, DMS questionnaire, and GRM guidelines were explained and disclosed to all AHs. Documents including the (i) DRP endorsed by the IRC and cleared by the ADB; (ii) updated DRP, any corrective action plan prepared during implementation, if any; and (iii) semi-annual resettlement monitoring reports will be disclosed on the MOWRAM and the ADB websites. These documents, including the updated PIB, will also be disclosed to AHs and other stakeholders in the village, the commune hall, and the office of the Commune Chief in Khmer. For AHs who are

illiterate, the Commune Chief will summarize and disclose the contents of the document for them.

VI. GRIEVANCE REDRESS MECHANISM

A. General Principle

75. A GRM was established by the Provincial governor under the Subproject at the local level, following government standard and procedures to resolve grievances and complaints in a timely and satisfactory manner as required under the ADB SPS 2009 and the RGC's LAR-SOP. The Expropriation Law of the RGC provides for a grievance redress committee (GRC) to handle complaints with an additional provision for the AHs to seek judicial redress in case they dispute the decision of the GRC. Details of the GRM have been included in the updated PIB and distributed and explained to the AHs in the PCM prior to DMS and during house-to-house DMS. All AHs have been made fully aware of their rights, and the detailed procedures for filing grievances are outlined in the updated PIB. The AH's grievances on LAR activities will be received and resolved under the grievance procedure provided in this DRP. The GRC will be available to all APs and will be free to act independently and ensure equitable treatment for women and men in all decision-making.

76. The GRC would be the authority to ensure proper presentation of grievances, impartial hearings and transparent decisions on any resettlement benefits and issues. At any time, any aggrieved AP can submit a grievance/complaint in written form or verbally to the Commune Office, given the practice that the GRC includes the relevant local Commune or Village Chiefs only. In the case of verbal complaints, the grievance committee will be responsible for making a written record during the first meeting with the APs. The use of a local non-government organization is allowed only to assist AHs in filing complaints, particularly for those who are illiterate/have language difficulties and do not know how to prepare written complaints. The designated commune officials shall exercise all efforts to settle AH/APs' issues at the commune level through appropriate community consultation. At the time of registering the complaint, a copy will be given to the person making the complaint for their record. For recording of grievances, an Individual Complaints Form, Registration Form and Resolution Letter were included in the PIB and were explained in detail to all AHs during the PCMs and house-to-house DMS.

B. Composition of the Provincial Grievance Redress Committee

77. A Provincial Grievance Redress Committee (PGRC) has been set up for LAR under the Subproject, based on the local/village administrative units, which in turn will facilitate easy accessibility for the APs. The GDR, through IRC, has facilitated the establishment of the PGRC. The PGRC has been established by the Provincial Governor in consultation with the IRC (**Annex 6**). In addition, the GDR conducted a comprehensive training workshop for the PGRC and the other local authorities to strengthen the capacity of the members for effective functioning of the GRM on 24 December 2024, prior to the DMS. The GRM was made operational and functional. The composition of PGRC for Tboung Khmum province is in **Table 19**.

Table 19: Composition of Tboung Khmum Grievance Redress Committee

No.	Name	Title	Position Assigned
1	H.E. Pen Kosal	Provincial Governor	Chair
2	H.E. Nob Longdy	Deputy Provincial Governor	Vice Chair
3	Mr. Seng Cheyvuth	Director of Administration Provincial Hall	Vice Chair
4	Mr. Poch Sothearith	Director of PDLUPC	Vice Chair
5	Mr. Kim Tithya	Director of PDEF	Vice Chair
6	Mrs. Chhorn Chenda	Deputy Director of Administration Provincial Hall	Member
7	Mr. Heng Pesith	Director of PDAFF	Member
8	Mr. Sok Lengmeng	Director of Provincial Water Resources and Meteorology	Member
9	Mr. Sreng Ly	Chief of Me Mot district	Member
10	Mr. Chea Narun	Chief of Orang Ov district	Member
11	Mr. Ly Sophealin	Chief of Ponhea Krek district	Member
12	Mr. Sok Sarith	Chief of Tombae district	Member
13	Mr. Seng Sokkheun	Chief of Tboung Khmum district	Member

14	Mr. Soy Touch	Chief of Kroch Chmar district	Member
15	Mr. Ngoun Bunnan	Chief of Soung Municipality	Member
16	Mr. Em Picheyrattanak	Director of Provincial Inter-sectoral office	Member
17	Mr. Va Channeun	Deputy Director of Provincial Inter-sectoral office	Member
18	Mr. Va Sothea	Chief of Development and Construction Management Office	Member
19	Mr. Kim Panha	Deputy Chief of Legal Affairs and Public Safety Office	Member
20	Mr. Sao Borasy	Officer of Legal Affairs and Public Safety Office	Member
21	Mr. Keout Theng	Director of NAS organization	Member

Source: Tboung Khmum Adm, Letter No. 135/24 SSR.TBK issued 30 October 2024

78. The GRC will function at three levels or tiers to handle grievances:

1. The first level will be at the district level, handled by the concerned District Governor;
2. The second level will be at the GDR level, handled by the Director General of GDR; and
3. The third level will be at the PGRC level, handled by PGRC. If the complaint is not resolved, the AH can file the complaint to the competent court.

C. Grievance Redress Process

79. The grievance will be handled through a 3-step formal approach detailed below. However, prior to the First Step, the AH may informally seek the assistance of the Commune Chief or a community elder to discuss and find an amicable solution to his/her complaint or grievance with the leader of the PRSC-WG. This is done verbally and informally, and moreover; its aim is to resolve the matter to avoid lodging formal written complaints. If this verbal process of problem solving does not resolve the complaint to the satisfaction of the AH, s/he can seek the formal route for lodging the grievance. Complaints can be raised at all levels, including at the commune level, which will be reflected in the semi-annual monitoring reports submitted to ADB.⁸ The formal lodging can also be done verbally (to a community elder or representative who will record the complaint) or in writing, and the process is detailed below:

(i) **First Step:** The aggrieved AH can lodge a written complaint to the Head of the District Office where the Subproject is located. The AH can bring a **community elder or representative** to mediate the matter at the district level. The IRC-WG will apprise the Head of the District Office about the matter. A conciliation meeting must be held, and a decision taken within **15 working days** after the date of registration of the complaint by the District Office. If the complaint is resolved at the District Level to the satisfaction of the AH, the IRC-WG will inform GDR's Department of Internal Monitoring and Data Management (DIMDM), which will review and seek the approval of the Director General of GDR for appropriate remedial action. The AH will be informed in writing by the GDR of the decision and the remedial action that will be taken within **15 working days** from the receipt of the letter from the District Office. If the complaint is rejected at this stage, the District Office will inform the AH in writing, and if the AH is not satisfied with the result, s/he can proceed to the next step and lodge a written complaint to the GDR for resolution.

(ii) **Second Step:** The GDR, through its DIMDM, will carry out a holistic review of the complaint and submit a report on its findings with the relevant recommendations, if any, to the Director General of GDR for a decision. It may also conduct a field visit to meet the aggrieved AH and the IRC-WG to gather the relevant details. The final report must be completed **within 30 working days** from the date of receipt of the complaint and submitted to the Director General of GDR for a final decision within **5 working days** of receipt of the final report. If the subject matter requires a policy-level intervention, it will be referred to the IRC for a decision, in which case **10 more working days** will be added to the deadline for the final decision.

⁸ Para. 12 of the Aide Memoire of the Safeguard Policy Dialogue Mission 22-23, August 2019.

(iii) **Third Step:** The AH will submit a written complaint to the PGRC through the Provincial Governor's Office. The AH or a representative will be allowed to present their case during the meeting, and the PGRC may consider any compelling and special circumstances of the AH when reaching a decision. The GDR will send a representative, as a non-voting member, to explain the rejection of the complaint at the second step by the GDR. The decision of the PGRC must be reached on a consensus basis and will be final and binding except when the matter relates to any policy of the government. Decisions on government policy matters on LAR are made by the IRC. The PGRC will have **40 working days** from the date of receipt of the complaint to reach a final decision. The decision of the PGRC will be sent to the IRC through the GDR for endorsement before taking any remedial action.

80. The handling of the complaint at the administrative stage ends in the Third Step. There are no fees or charges levied on the AH for lodging and processing of the complaints under these three steps. However, as provided in the Expropriation Law, the aggrieved AH, at any step, can file a suit at the Provincial/Municipal Courts, as applicable, to seek a resolution. At this stage, there is no involvement of the GDR, Provincial Resettlement Sub-Committee (PRSC) or IRC-WG unless there is a judicial order from the competent court.

81. If an AH is still not satisfied and believes s/he has been harmed due to non-compliance with ADB policy and s/he has made good faith efforts to solve the problems by working with the ADB Project Team, s/he may submit a complaint to ADB's Office of Special Project Facilitator or Office of Compliance Review in accordance with ADB's Accountability Mechanism. The information can be found at www.adb.org/site/accountability-mechanism/main.

82. The GRM details have been circulated, and the guidelines for GRM have been explained to the AHs during consultations during the DRP preparation. These guidelines outline each of the above Steps and include the administrative procedures for receiving and addressing complaints during the consultative meetings as described in the Consultation, Participation and Disclosure section of this DRP. The GRM guidelines will be again explained in detail to all AHs during the implementation of the DRP.

D. Grievance Register, Records and Documentation

83. The RGC's LAR-SOP details the GRM process, registers, records, and documentation. The forms for the individual complaint form, register of complaint and Letter from Head of District-Khan to be used for grievance documentation are included in the updated PIB and distributed and explained to the AHs.

VII. LEGAL AND POLICY FRAMEWORK

84. This DRP is prepared based on the applicable legal and policy framework of the RGC, and ADB SPS 2009. It describes the key legal and regulatory documents of the RGC pertinent to LAR as well as the key principles of the ADB SPS 2009, analyses and discusses for any gaps and provides clarifications on them as applicable for the Subprojects.

85. There are existing laws that govern LAR in Cambodia. These laws, along with the ADB SPS 2009, shall govern the procedures for LAR for the Subprojects.

A. Expropriation Law

86. The RGC's 2010 Expropriation Law is the main legal framework that governs LAR. The 2010 Expropriation Law has listed the development of public infrastructure as one of its objectives and extended the definition of public infrastructure to any infrastructure "required by the Nation in accordance with the determination made by the Government." Public interest is also understood in a broad manner as "the use of land or property by the public or by public institutions or their agents." The expropriation of the ownership of immovable property and real right to immovable property can be exercised only if the Expropriation Committee has paid fair and just compensation in advance to the owner and/or holder of real right

87. Some of the Key Articles of the 2010 Expropriation Law are listed below:

- (i) Article 2: the law has the following purposes: (i) ensure just and fair deprivation of a legal rights to private property; (ii) ensure prior fair and just compensation; (iii) serve the national and public interests; and (iv) development of public physical infrastructure.
- (ii) Article 7: Only the State may carry out an expropriation for use in the public and national interests.
- (iii) Article 8: The State shall accept the purchase of part of the real property left over from an expropriation at a reasonable and just price at the request of the owner of and/or the holder of right in the expropriated real property who is unable to live near the expropriated scheme or to build a residence or conduct any business.
- (iv) Article 12: An Expropriation Committee shall be established and headed by a representative from the MEF and composed of representatives from relevant ministries and institutions. The organization and functioning of the Expropriation Committee shall be determined by a sub-decree [Sub Decree No 22 ANK/BK promulgated on 22 February 2018].
- (v) Article 16: Before proposing an expropriation project, the Expropriation Committee shall publicly conduct a survey with detailed description about the owner and/or rightful owner of the immovable property and other properties which might need compensation; and all other problems shall be recorded as well. In conducting this survey, the Expropriation Committee shall arrange a public consultation with the authorities at provincial, district and commune level, the commune councils and village representatives or the communities affected by the expropriation to give them clear and specific information and to have all opinions from all concerned parties about the proposed public infrastructure project.

88. Under the Article 3 of the 2010 Expropriation Law that governs the provision for projects financed by development partners in Cambodia, the RGC issued in 2018, the LAR-SOP.⁹ for Externally Financed Projects in Cambodia which reflects RGC's laws and regulations relating to the acquisition of land and the involuntary resettlement of APs and the safeguard policies and procedures of Development Partners as applied to public infrastructure investment projects. Where appropriate, the LAR-SOP includes references to international good practices in resettlement planning, implementation, monitoring, and reporting. The LAR-SOP has been promulgated under Sub Decree No. 22 ANK/BK on 22 February 2018 and applies to all externally financed

⁹ Accessible at https://www.mef.gov.kh/documents/laws_regulation/LAR-SOP-Final-13032018.pdf

projects in the Kingdom of Cambodia. The GDR of the MEF is responsible for providing guidance and clarification to users of the LAR-SOP. Given that the Subprojects under the Project are funded by ADB, the provisions of LAR-SOP will apply to the Subprojects and therefore should be read together with this DRP.

B. ADB Safeguards Policy Statement 2009

89. For any ADB operation requiring IR, resettlement planning is an integral part of project design, to be dealt with from the earliest stages of the project cycle. The ADB SPS 2009¹⁰ sets the guidance and requirements for resettlement planning, as well as the follow-up.

a) Policy Objectives

90. The objectives of ADB SPS 2009 are: (i) to avoid IR, where possible; (ii) where avoidance is not possible, minimize by exploring project and design alternatives; (iii) enhance or at least restore the livelihoods of all APs in real terms relative to pre-project levels and (iv) improve the standards of living of the displaced poor and other vulnerable groups.

b) Scope and Triggers

91. The IR safeguard covers physical displacement (relocation, loss of residential land, or loss of shelter) and economic displacement (loss of land, assets, access to assets, income sources, or means of livelihoods) as a result of: (i) involuntary acquisition of land or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas. It also covers whether such losses and involuntary restrictions are full or partial, permanent or temporary.

c) Involuntary Resettlement Policy Principles

92. ADB's IR Policy principles include:

- (i) Screen the project early on to identify past, present, and future involuntary resettlement impacts and risks. Determine the scope of resettlement planning through a survey and/or census of APs, including a gender analysis, specifically related to resettlement impacts and risks.
- (ii) Carry out meaningful consultations with APs and affected local communities. Inform all APs of their entitlements and resettlement options and ensure their participation in planning, implementation, monitoring, and evaluation of resettlement and pay attention to the needs of vulnerable groups especially those below the poverty line, the landless, the elderly, women and children, and Indigenous Peoples, and those without legal title to land, and ensure their participation in consultations. Establish a GRM to receive and facilitate resolution of the APs' concerns. Support the social and cultural institutions of APs and their host population. Where IR impacts and risks are highly complex and sensitive, compensation and resettlement decisions should be prepared by a social preparation phase.
- (iii) Improve, or at least restore, the livelihoods of all APs through (i) land based resettlement strategies when affected livelihoods are land based where possible or cash compensation at replacement value for land when the loss of land does not undermine livelihoods; (ii) prompt replacement of assets with access to assets of equal or higher value; (iii) prompt compensation at full replacement cost for assets that cannot be restored; and (iv) additional revenues and services through benefit sharing schemes where possible.
- (iv) Provide physically and economically APs with needed assistance, including the

¹⁰ SPS is available at: <https://www.adb.org/documents/safeguard-policy-statement>

following: (i) if there is relocation, secured tenure to relocation land, better housing at resettlement sites with comparable access to employment and production opportunities, integration of resettled persons economically and socially into their host communities, and extension of project benefits to host communities; (ii) transitional support and development assistance, such as land development, credit facilities, training, or employment opportunities; and (iii) civic infrastructure and community services, as required.

- (v) Improve the standards of living of the affected poor and other vulnerable groups, including women, to at least national minimum standards. In rural areas provide them with legal and affordable access to land and resources, and in urban areas provide them with appropriate income sources and legal and affordable access to adequate housing.
- (vi) Develop procedures in a transparent, consistent, and equitable manner if land acquisition is through negotiated settlement.
- (vii) Ensure that APs without titles to land or any recognizable legal rights to land are eligible for resettlement assistance and compensation for loss of non-land assets.
- (viii) Prepare a resettlement plan elaborating on APs' entitlements, the income and livelihood restoration strategy, institutional arrangements, monitoring and reporting framework, budget, and time-bound implementation schedule.
- (ix) Disclose a DRP, including documentation of the consultation process in a timely manner, before project appraisal, in an acceptable place and a form and language(s) understandable to APs and other stakeholders. Disclose the final resettlement plan and its updates to APs and other stakeholders.
- (x) Conceive and execute IR as part of a development project or program. Include the full costs of resettlement in the presentation of project's cost and benefits. For a project with significant IR impacts, consider implementing the IR output of the project as a stand-alone operation.
- (xi) Pay compensation and provide other resettlement entitlements before physical or economic displacement. Implement the resettlement plan under close supervision throughout project implementation.
- (xii) Monitor and assess resettlement outcomes, their impacts on the standards of living of APs, and whether the objectives of the resettlement plan have been achieved by considering the baseline conditions and the results of resettlement monitoring. Disclose monitoring reports.

C. Other Considerations

93. **Indigenous Peoples.** Subprojects involving IR of Indigenous People will not be considered under the Subprojects.¹¹

94. **Gender.** Gender concerns and issues has been considered in resettlement planning. Gender differentiated benefit-sharing measures are included in the DRP to ensure that the women and men of the households are treated equally. Moreover, the DRP ensures that gender equity is promoted ensuring that the women participate and that their needs are explicitly addressed in the decision-making process. Therefore, both women and men were invited to actively participate in the consultation meetings during the preparation of this DRP and the same approach will continue

¹¹ Indigenous people have been identified in accordance with ADB SPS Safeguards Requirement 3 and the Subproject has been classified Category C for indigenous Peoples impact.

during the DRP implementation. In addition, women will be given equal chance in getting hired for skilled or unskilled work and receive equal remuneration for the same work by the men. A separate gender action plan has been prepared for the Project that identifies strategies to address gender concerns and the involvement of women in the design, implementation, and monitoring of the Project/Subprojects.

D. Gaps between ADB and RGC Policies on LAR

95. In general, the main principles of the RGC's policies on land acquisition, compensation, and resettlement assistance reflect those provided in ADB SPS 2009. However, key gap analysis between ADB resettlement policy and the RGC's LAR-SOP are summarized in **Table 20**.

Table 20: Gap Analysis and Reconciliation of ADB SPS 2009 and RGC's LAR-SOP

No.	ADB SPS Requirements on IR and SR-2	LAR-SOP 2018	Gap between ADB SPS and LAR-SOP	Clarifications
1	Meaningful Consultations and Disclosure - Carry out Meaningful consultations with APs including vulnerable groups, relevant stakeholders and information disclosure on entitlements and resettlement options. (vulnerable groups include: those below poverty line, the landless, the elderly, female headed households, women and children, IPs, and those without legal title to land). To comply with ADB SPS IR Principles 2, 9, 12 (page 17), para 54 (page 20), para.73 (page 26), Appendix 2, para 18 (page 47), para 26, 27, 28 (page 49)	- The LAR-SOP, in its chapter IV and under its key tasks in basic resettlement plan preparation, mentions about consultation as one of the tasks which aims at bringing awareness about the Project to the affected communities and inform them about the possible alignment and seek their feedback. - In Chapter V, under key tasks in detailed resettlement plan (updated resettlement plan after detailed design), it mentions about consultation as one of the tasks which aims to inform APs about the overall entitlements and methods of compensation and the GRM procedures; about relocation to resettlement sites; and house to house consultation to confirm measurement survey. - Chapter- VIII of LAR-SOP describes in detail the need for public consultations, participation, and disclosure. In para 126, it mentions that the consultation is undertaken.	- The LAR-SOP mostly complies with the requirement of ADB SPS 2009, however, it does not specifically mention disclosing of the EM to the people during consultation. However, it mentions that the basic resettlement plan/resettlement plan and the DRP/updated DRP are disclosed at the Commune offices for disclosure to affected communities. The EM is an integral part if these documents and hence are disclosed to the affected communities. This is explained in more detail in Appendix 7. It is clearly pointed out that the EM and the entitlement under the EM is explained to each AH during the house-to-house consultation. - Also, there is no mention of disclosure of monitoring reports. The LAR-SOP does not specifically mention about	Some of the proposed clarification include: - Personal detailed information of the displaced persons (DPs) and their socio-economic status and other sensitive information compromising their privacy will not be disclosed at any time. - Resettlement plans/updated resettlement plans/resettlement monitoring reports contain summary of AP consultations (including vulnerable groups) throughout the project cycle. - Resettlement plans/updated resettlement plans/resettlement monitoring reports are disclosed on the ADB and project websites and Khmer versions left at communes and district levels offices. - LAR-SOP para. 120; generic information for the PIB includes the compensation policy (the generic entitlements) as stated in para 119. - Four specific consultation meetings are mentioned in the

No.	ADB SPS Requirements on IR and SR-2	LAR-SOP 2018	Gap between ADB SPS and LAR-SOP	Clarifications
			particular attention to women and vulnerable groups for their inclusion during consultation.	LAR-SOP but as the LAR-SOP states consultation will be carried out as an on-going process throughout implementation. • ADB staff may participate in consultation meetings. • Efforts will be made to consult with potentially vulnerable affected people (as defined in para 53-55) and will be done throughout implementation.
2.	GRM • Establish a GRM that is understandable, readily accessible, transparent procedures, gender responsive and culturally appropriate. To comply with ADB SPS IR Principle 2 (page 17), para 59, 60 (page 22), Appendix 2, para 29 (page 49)	Chapter IX of the LAR-SOP deals with GRM. • The GRM is established as a locally based arrangement at the provincial level for receiving, recording, assessing, and facilitating the resolution of complaints and grievances raised by the APs in relation to their compensation and entitlements for the expropriation of land and other immovable property under the Law on Expropriation.		• Status of complaints at the commune level will be included in the periodic monitoring report to ADB. • Appendix 8.2 is the Register of Complaint, however when reporting, the status of complaints will be included.
3.	Compensation and assistance • Provide physically and economically APs with compensation and needed assistance. To comply with ADB SPS policy principle 3, 4, 5, 7 (pg. 17) and Appendix 2, paras 7, 8, 9,10 (page 45), 11 and 12 (page 46), 16 and 17 (page 47).	• The LAR-SOP includes the compensation and transition/disturbance allowance to the APs in its entitlement. • The LAR-SOP has provisions for relocation land (for APs with titles or recognized rights to land) and are subject to conditions i.e., availability of government land. This does not apply to illegal squatters or occupiers. • LAR-SOP has provisions for loss of livelihoods for all DPs (limited to		• LAR-SOP EM 2b transitional allowance to be commensurate with the time taken to relocate the business. • Livelihood restoration will be commensurate with the impact assessed during the DMS/SES of the APs. • For vulnerable groups except for illegal squatters, provision of legal and affordable access to adequate housing and income sources. • Valuation rates are valid for a period of one year

No.	ADB SPS Requirements on IR and SR-2	LAR-SOP 2018	Gap between ADB SPS and LAR-SOP	Clarifications
		selection of 1 out of 3 pre-defined programs) LAR-SOP has provisions for providing relocation site to eligible DPs which is selected factoring in location, the availability of the basic social services and infrastructure development, depending on availability of land at affordable prices and availability of State land near the project area.		from the date of endorsement of RCS report by the IRC and thereafter updated. APs with legal rights both with hard and soft titles are treated the same.
4.	Procedures for Negotiated Settlement Develop procedures in a transparent, consistent, and equitable manner if land acquisition is through negotiated settlement. To comply with ADB SPS IR safeguards policy principle 6 (page 17), para 73, (page 26), Appendix 2, para 25 (page 48-49)	Chapter-X (Section-B) of the LAR-SOP mentions that in the case of acquisition of private land where the seller is willing to sell and the buyer is willing to buy, such land may be acquired under a commercial contract. The price will be negotiated as part of commercial norms.		- For the willing buyer willing seller cases (where expropriation will not be used), ADB will have access to all the documentation for on-site verification at GDR. If agreement between the willing buyer and willing seller cannot be reached, alternate site will be selected. - Where negotiated settlement is applied in lieu of compulsory land acquisition based on SR 2 requirements para 25 will be followed, documented, and described in the resettlement plan and information of the negotiations included in the monitoring reports. - A negotiated settlement will offer adequate and fair price for land/or other assets. - Ensure that any negotiations with DPs openly address the risks of asymmetry of information and bargaining power of the parties involved in such transactions.

No.	ADB SPS Requirements on IR and SR-2	LAR-SOP 2018	Gap between ADB SPS and LAR-SOP	Clarifications
				5. Negotiated settlement procedures will follow para 25 of Appendix 2 of SPS and agreed with ADB.
5.	AHs (without titles or recognizable rights to land) Ensure that APs without titles to land or any recognizable legal rights to land are eligible for resettlement assistance and compensation for loss of non-land assets To comply with ADB SPS IR policy principles 2, 5, 7 (page 17), Appendix 2, paras 9, 11, 12, 16 and 17 (pages 45, 46 and 47).	Chapter-VII: Section B para 104 says: - No compensation for land will be paid for APs occupying land in the ROW. Section C of the LAR-SOP states that: - The entitlement to compensation of APs largely depends on the legality of possession or ownership to the land and other assets at the time of the COD. The following types of DPs shall be eligible to compensation, but compensation would vary depending on their situation: - Legal owners and holders of title or rights to land, including customary rights. - Tenants and leaseholders, including employees, workers, and hawkers. - Those who have no formal title or rights to the land (illegal occupiers) who are engaged in farming or businesses. - Poor and vulnerable groups.	Clarification needed for how poor and vulnerable APs are provided legal and affordable access to land.	- Social land concession is not an entitlement. However, IRC can just inform the relevant and competent local authorities about the affected poor, landless households who may be eligible to apply for social land concession. Criteria for providing social land concession will be defined by other competent authority. The decision on granting a social land concession will also be made at the sole discretion of the relevant authorities in accordance with Cambodia regulations on social land concession. - GDR will provide information if there is any social land concession program available in the Project area in its monitoring report.

Source: Aide Memoire Attachment 3 of the Safeguard Policy Dialogue Mission 22-23 August 2019.

VIII. ENTITLEMENTS, ASSISTANCE AND BENEFITS

A. Objectives

96. The resettlement policy of the Subprojects is based on the types, characteristics, and severity of the Subprojects impacts on assets and living conditions of the affected population, guided by the prevailing Cambodian laws and regulations and government procedures and policies, and the ADB SPS 2009. Its primary objective is to ensure that AHs and APs identified in the Subprojects' impacted areas as of the COD are not disadvantaged by the Subprojects' investments. The Subprojects should provide opportunities for the local population to benefit from and participate in its planning and implementation and, through this, generate a sense of ownership.

B. Eligibility and Cut-Off-Date

97. This DRP will apply to rehabilitation of MCs, SCs and TCs including construction and replacement of several hydraulic structures and construction of FWUC buildings under the Subproject. It will ensure that all APs' affected assets will get appropriate compensation assistance, irrespective of their land ownership. The APs entitled to compensation or at least rehabilitation provisions are included in the updated EM.

98. The COD, established by the RGC, establishes the eligibility of the AHs/APs for receiving compensation and resettlement assistance under the Subprojects. Only those AHs and organizations with fixed assets and sources of income in the COI before the COD are eligible to receive the compensation and resettlement assistance. The COD was established at the PCMs prior to the DMS stage on **7 April 2025** by the IRC-WG and the PDOWRAM/PIU. The participants were informed in the PCMs that after this COD, any person who moves into or encroaches on the ROW to build or expand any kind of structure such as house, shop, fences and/or to plant any kind of trees, crops, will **NOT** be entitled to any compensation or any other assistance, except if changes in the Subproject/s design or additional land take entail a modification of the Subproject/s areas. Information on establishment of the COD was included in the updated PIB and explained to the participants prior to and during house-to-house DMS.

C. Principles of Valuation

99. The DMS confirmed that there will be losses of state-owned land in the ROW secondary structures, crops, fruit and non-fruit trees, and temporary impacts during the construction under the Subprojects. Under a competitive process, the GDR recruited a professional independent appraiser/firm (RCS Consultant) to conduct RCS after the DMS to determine compensation rates. The rate of compensation for acquired land, structures and other assets will be calculated at full replacement cost. The calculation of full replacement cost will be based on the following elements: (i) fair market value; (ii) transaction costs; (iii) interest accrued; (iv) transitional and restoration costs; and (v) other applicable payments, if any. The RCS will also collect baseline data on shops, housing, house types, labor, and construction materials. In applying this method of valuation, depreciation of structures and assets will not be considered.

100. Replacement cost is the amount calculated before displacement which is needed to replace an affected asset without deduction for taxes and/or costs of transaction as follows:

- (i) **Productive land** (agricultural and aquaculture) valuation is based on actual current market prices that reflect recent land sales in the area, or, in the absence of such recent sales, based on recent sales in comparable locations with comparable attributes, fees and taxes or in the absence of such sales, based on productive value;
- (ii) **Residential land** valuation is based on current market prices, which reflect recent land sales at the time of conducting the RCS, or, in the absence of such recent land sales, based on prices of recent sales in comparable locations with comparable attributes and fees and taxes for land;

- (iii) **Primary and secondary structures** valuation is based on actual current market prices, (as per agreed RCS, for materials, transportation and labor without depreciation or deduction for salvaged building materials;
- (iv) **Crops and Trees** valuation is based on interviews which will be conducted with owners, market vendors and seedling suppliers to determine the current selling farm gate price of fruits or crops in the area and compensated accordingly to the formula as shown in the EM. The RCS will collect data from statistics offices on average yields per type of crop and/or tree identified during the DMS; and
- (v) **Loss of land use** valuation is based on replacement value of productive land improvements and potential loss of income.

D. Entitlements

101. The Subprojects entitlements have been defined in accordance with the various impacts identified based on the results of the DMS/SES. Hence all APs are entitled to various types of entitlements and resettlement assistance for their affected assets. The provision of APs' compensation in the DRP covers the replacement value for their affected assets and vulnerable allowance, including any unforeseen impacts. An EM was developed for the Project considering all potential impacts and was included in the October 2017 approved LARF. Eligibility for entitlements applies to all AHs impacted by the Subproject is included in the updated EM in **Table 21** on the types of losses and degree of impact with corresponding benefits. The standards set in the October 2017 approved LARF EM are not downgraded.

Table 21: Updated Entitlement Matrix

No.	Type of Impact/Loss	Eligible Persons	Entitlement	Implementation Issues
1.	Loss of Productive Land (agriculture, fishponds, etc.)			
1.1	Marginal loss (i.e., land lost is less than 10% and the un-affected portion is still economically viable for use or meets the expected yield). (None)	Legal owners with legal or legalizable /Recognized right; and those covered by customary rights	Cash /compensation at replacement cost for the lost land	1) This loss has been confirmed and cleared with the AH during the DMS; 2) AHHs will be notified 3 months in advance of the actual date that the land will be acquired by the Subproject; 3) AHHs will keep the land
		Non-legal users.	1) No cash assistance for loss of land, and 2) Cash compensation at replacement cost for non- land affected assets	vacated within 1 month after receiving compensation; and 4) AHHs will be allowed to harvest their annual and perennial crops and timber products prior to construction.
2	Loss of Residential/Commercial Land			
2.1	Marginal Loss (i.e., land is still economically viable for use or meets the expected personal yield). (None)	Legal owners with legal or legalizable /Recognized right; and those covered by customary rights.	Cash compensation at replacement cost.	1) This loss has been confirmed and cleared with the AH during the DMS. 2) AH will be notified 3 months in advance of the actual date that the land will be acquired by the Subproject. 3) AHHs will keep the Land vacated within 1 month
		Non-legal users.	No cash assistance or compensation for land, except affected properties on the Land.	

No.	Type of Impact/Loss	Eligible Persons	Entitlement	Implementation Issues
				after receiving compensation.
3.	Loss of Structures (Houses, shops, and stalls)			
3.1	Marginal impact (i.e., unaffected portion of the structure is still viable for use and no relocation is required). (None)	Owners of the structures with or without acceptable proof of ownership over the land; with or without building permit.	Cash compensation at replacement cost for the affected portion with no deduction for depreciation, taxes, or salvageable materials.	1) The impacts were confirmed and concurred with AH during the DMS. 2) AHs will remove their structures from the Subproject area within 1 month after receiving compensation. 3) AHs to get cash compensation at least 1 month ahead of civil works in the locality to provide them sufficient time to gradually re-organize the house and/or shop, thereby avoiding any disruption in the livelihood of the same.
3.2	Severe impact (i.e., entire main structure is affected or the unaffected portion is no longer viable for continued use. The entire structure to be acquired). (None)	Owners of the structures with or without acceptable proof of ownership over the land; with or without building permit.	Cash compensation at replacement cost for the entire structure with no deduction for depreciation, taxes, or salvageable materials. AHs will also receive further assistance as outlined in Sections 6 & 7 of this entitlement matrix.	1) AH will be notified 3 months in advance of the actual date that the land will be acquired by the Subproject. 2) AHs will remove their structures from the Subproject areas within 1 month after receiving compensation. 3) AHs to get cash compensation at least 1 month ahead of civil works in the locality to provide them sufficient time to gradually re-organize the house and/or shop, thereby avoiding any disruption in the livelihood of the same.
4.	Loss of Structures (Secondary Structures.)			
4.1	Loss or damage to assets (21.00m and 1 No. of secondary structures of 2 AHs)	Owners of the structures with or without acceptable proof of ownership over the land; with or without building permit.	Cash compensation at replacement cost for the affected portion of structure if it remains usable after repair. Cash compensation at replacement cost for the entire structure if it is no longer usable after reparation or difficult to be repaired.	1) This was confirmed and cleared with AH during the DMS. 2) AHs will remove their structures from the Subproject areas within 1 month after receiving compensation. 3) AH will be notified 3 months in advance of the actual date that the land will be acquired by the Subproject.
5.	Loss of Productive Trees and Crops			
5.1	Fruit Trees	Owners regardless	Compensation for	1) Advance notice to

No.	Type of Impact/Loss	Eligible Persons	Entitlement	Implementation Issues
	(45 fruit trees of 12 AHs)	of tenure status.	affected fruit/nut trees at full replacement cost, which shall be based on average annual value of the product multiplied by 5 years.	harvest at least 3 months before civil works. 2) AHs will remove their trees from the Subproject areas within 1 month after receiving compensation.
5.2	Standing trees other than fruit trees. (1 non-fruit trees of 1 AH)		The project shall re-establish a plantation at a new site, where applicable, and provide additional compensation to cover the cost of weeding and other plantation maintenance activities or compensation for affected trees at full replacement cost.	3) AH will be notified 3 months in advance of the actual date that the land will be acquired by the Subproject.
5.3	Standing Crops (20.20m² of rice (in the ROW) of 2 AHs)		Compensation for annual crops at replacement cost, which shall be based on the locally prevailing current market prices for the product, if the annual crops cannot be cultivated as usual.	
6.	Loss of Livelihood/Income due to Disruption of Business			
6.1	Loss of income/ livelihood due to disruption of business or employment (marginal impacts). (None)	i) <u>Unregistered Shop</u> and Fixed Stall Owners or shop renter (regardless of tenure status) and employees/ laborers of affected assets	One-time assistance of \$50 per AH. Lump sum projected net income loss.	This loss has been confirmed and cleared with the AH during the DMS.
7.	Vulnerable Cash Assistance			
7.1	Any loss or impact on vulnerable AHs (1 AH)	Vulnerable AHs	1) One-time cash assistance of \$100 per vulnerable AH, 2) Priority for employment in the Subproject construction works.	DMS has confirmed 1 AH as vulnerable with Poor ID Card.
8.	Impacts on structures/shops that require relocation (Transportation Allowances)			
8.1	Shops, fixed stalls and houses will be moved to the adjacent area. (None)	AHs whose shop or stall will be relocated or tenants who will relocate to new area.	Transport Allowance of \$40	AHs and tenants will be informed in 3 months in advance of the actual date relocation.
9.	Temporary Impacts During Construction			
9.1	Temporarily affected land.	Owner of temporarily affected land	1) No compensation for land if restored to pre-project condition within 4 months after use. If the land is not returned and restored to pre-Subproject, contractor	AHs will be notified 1 month in advance of the actual date on the implementation issues that the land will be temporarily used or

No.	Type of Impact/Loss	Eligible Persons	Entitlement	Implementation Issues
			shall pay for expenses to restore it. 2) If the land is not returned, the AHs will receive compensation at replacement cost for the land. 3) Contractor will be required by contract to pay these costs.	affected by the Subproject.
9.2	Damage to crops and trees during construction (temporary impact).	Owners of facilities and structures	1). The contractor will be required to pay these costs. 2). Compensation for lost production in cash at replacement cost (value of lost production within ROW or for access) for the period of construction or maintenance. This will be a minimum of 1 month harvest where damage occurs during growing season.	1). Construction and maintenance will be carried out to minimize damage. 2). Construction will be required by Contract to stay within COI. 3). As part of the civil works contract, all access roads/driveways to properties adjacent to the canals and roads will be repaired or replaced including culverts and other facilities, to a condition equal to or better than the present. 4). The disruption period will be minimized as much as possible.
9.3	Damage to fields and associated infrastructure including bund walls, drains, channels, etc. (To be identified and recorded during construction)			
10.	Unanticipated Impact			
10.1	Unanticipated involuntary resettlement impacts (To be identified and recorded during construction)	Eligible DPs	New DPs that will be identified (i.e., those who will be included among the adversely affected because of changes in Subproject design or alignment prior to or even during construction works) are entitled to the same entitlements as those of the other DPs.	GDR shall ensure the conduct of a social assessment and update or formulate a new resettlement plan or a DRP addendum depending on the extent of the impact changes. Unanticipated impacts will be documented and mitigated based on the principles provided in this DRP.

Source: Entitlement Matrix October 2017 of the approved LARF.

IX. RELOCATION OF HOUSING AND RESETTLEMENT

102. No AH will be relocated to another new site acquired by the Subproject.

X. INCOME RESTORATION PROGRAM

1. General Provisions

103. The October 2017 approved LARF provides the members of AHs who will experience major impact by losing 10% or more of their total productive land or other assets will be eligible to participate in the IRP. The IRP will be designed and prepared during the preparation of the DRP with active participation of the AHs and will include, among others, any of the following measures: (i) alternate livelihood; (ii) improved agricultural production; (iii) appropriate skills training; and (iv) preferred consideration for rehabilitation and construction work related to job opportunities. Based on the results of the DMS, there are no AHs, experiencing major impacts. Therefore, no AH is entitled to participate in the IRP. As per the current practice and implemented in past DRP's, the RGC's LAR-SOP outlines three (3) categories of IRP which are land-based, employment-based and business-based livelihood restoration program. The APs of the eligible AHs for IRP between 15 to 60 years, depending on their preferred choice, are entitled to participate in any of the three IRP as reflected in this DRP. If during implementation of the DRP, any AH is identified to have experienced major impact or permanent loss of livelihood source, the IRP will be designed with the active participation of the AH and implemented simultaneously with the approved DRP.

XI. RESETTLEMENT BUDGET AND FINANCING PLAN

104. The calculation for compensation and assistance for the Subprojects presented in this DRP are based on the results of the DMS and the RCS at full replacement cost. The costs for all resettlement, including affected assets, compensation and allowances, operational and administrative costs, monitoring, and reporting will be financed from the Government's national budget and no financing from the ADB loan will be required. The resettlement budget is estimated at **\$7,955.36**. This includes: (i) **\$2,364.29** as compensation for affected crops and trees, secondary structures and vulnerable allowance; (ii) **\$5,000.00** for consulting services for RCS; (iii) **\$354.64** for administrative costs; (iv) **\$236.43** of contingency amount. **Table 22** summarizes the estimated resettlement budget for the Subprojects.

Table 22: Summary Estimated Resettlement Budget

No.	Description of Affected Assets and Allowances	Unit	Quantity	Total
				(\$)
A	Assets			
1	Crops (rice in the ROW)	m ²	20.20	2.02
2	Fruit Trees	Nos.	45	1,049.27
3	Non-fruit Trees	Nos.	1	45.00
4	Secondary Structures	m	21.00	168.00
		Nos.	1	1000.00
	Total A			2,264.29
B	Special Assistance			
1	Special Assistance to Poor and VAHs	AH	1	100.00
	Total B			100.00
	Total Cost (C) = (A) + (B)			2,364.29
	Replacement Cost Study			5,000.00
	Administration Cost (15% of C)			354.64
	Contingency (10% of C)			236.43
	Total Estimated Resettlement Cost			7,955.36

Source: RD3 Estimates from the RCS Report.

XII. PROJECT INSTITUTIONAL ARRANGEMENTS AND IMPLEMENTATION

105. The MEF is the official representative of the government as the borrower and recipient of funds. It is the responsibility of the MEF to: (i) fulfill government fiduciary and financial management oversight; (ii) provide sufficient counterpart contribution for project activities in a timely manner; and (iii) ensure delays are not encountered in project procurement. The flow of the funds will be the responsibility of the MEF who will work closely with the executing agency.

106. The MAFF is the executing agency and will be responsible for overall project management, coordination, and reporting. The MOWRAM is responsible for the implementation and rehabilitation of irrigation subprojects. The MRD is responsible for the implementation and rehabilitation of farm to market access roads subprojects. The MAFF will establish a PMU.

107. The PMU will have the responsibility for the day-to-day management, coordination, and supervision of the Project/Subprojects, as well as consultant recruitment, financing and fund flow and the implementation of voluntary donations. The MEF will channel funds to the PMU imprest account and the PMU will disperse on to the provincial implementing designated accounts. The parent ministries of their respective provincial implementing agencies will be notified of the release of funds and payments.

108. The national level coordination will also be assisted by a Project Steering Committee which will be co-chaired by a representative of the MAFF and one representative each from the MEF, MOWRAM, Ministry of Industry, Science, Technology, and Innovation, MRD and Cambodian Development Council and Ministry of Commerce. In order for decisions to be made quickly, it is recommended that the various steering committee members be at least the rank of Director General. The steering committee may invite persons and agencies to discuss specific agenda items, when required. For effective decision making, no more than 20 persons shall attend any one meeting.

109. The parent ministries of the participating provincial departments, the MOWRAM and the MRD will be requested to nominate focal points that will have a central level coordinating role.

110. A Public Private Partnership Inter-Ministerial Committee (PPP IMC) will be formed and chaired by the MAFF and will have a maximum of 10 representatives purely to review potential public private partnership (PPP) agribusiness projects and will meet once every two months. The private sector related to the value chains will have an input through the business forums, federations and associations that will provide feedback and information to the proposed PPP IMC and onto the steering committee. The forums, federations and associations can circumvent the IMC for non-PPP initiatives.

111. The policy support sub-component will need a working group that will consist of representatives from the aforementioned ministries and possibly the Ministry of Environment, with the MEF playing a lead role. Specific implementation departments will include the National Agricultural Laboratory, Department of Agricultural Engineering and Department of Agricultural Cooperative Promotion of the General Department of Agriculture of MAFF. The General Department of Animal Health and Production will have a role at central level. All these departments will serve as resource providers to the provincial activities, primarily within the remit of the Provincial Department of Agriculture activity responsibilities.

112. The Cambodia Agricultural Research and Development Institute will be responsible for the climate resilient variety development activities, but when it comes to field demonstrations and trials will coordinate fully with the Provincial Department of Agriculture.

113. Specialist service providers will be contracted to carry out a range of capacity building and training activities, as well as pilot demonstrations and civil engineering related to irrigation, feeder roads, storage units, biodigesters and the bio-technology laboratory reconfiguration.

A. DRP Institutional and Implementation Arrangements

(i) Inter-Ministerial Resettlement Committee (IRC)

114. The IRC is the decision-making and oversight body for LAR activities. It has the mandate to review and evaluate the resettlement impact and land acquisition for public physical infrastructure development projects in the Kingdom of Cambodia. The IRC is a collective entity, permanently chaired and led by the MEF, with members from different line ministries. The IRC carries out its roles through the IRC-WG which is established by the MEF for each public investment project. Key responsibilities of IRC include:

- (i) Provide effective oversight and ensure LAR complies with the laws and implementing rules and regulations;
- (ii) Ensure effective coordination between line ministries, provincial/local authorities and the GDR in carrying out LAR;
- (iii) Review and approve the DRP and endorse the DRP prior to submission to the ADB for its review and approval;
- (iv) Initiate the establishment of the PGRC; and
- (v) Provide overall guidance on implementing rules and regulations for LAR and propose updates as necessary.

(ii) General Department of Resettlement (GDR)

115. The GDR is the permanent technical Secretariat of the IRC and the lead agency for the preparation, implementation, and monitoring and reporting of LAR. The GDR will carry out activities under the Subprojects through its Resettlement Department 3 (RD3). The detailed tasks of the RD3 of the GDR includes:

- (i) Coordinate and collaborate with the line ministries, MOWRAM, and other agencies involved in LAR activities;
- (ii) Conduct public consultations with the APs and vulnerable groups;
- (iii) Prepare the DRP for the Subprojects and submit to the ADB for review and acceptance;
- (iv) Develop terms of reference and recruit the replacement cost surveyor;
- (v) Prepare and secure the necessary budget for the implementation of the DRP;
- (vi) Calculate, prepare contracts, and make payments for compensation for each AH based on the EM in the DRP;
- (vii) Implement all LAR activities in compliance with the DRP;
- (viii) Ensure proper functioning of the GRM;
- (ix) Supervise, monitor, and report to the MOWRAM on implementation progress of the DRP;
- (x) Send Land Handover Letter to EA/IA with a copy to ADB;
- (xi) Prepare and submit to the ADB semi-annual monitoring reports;
- (xii) Prepare, agree with the ADB and implement a corrective action plan, if any, during implementation; and submit the corrective action plan implementation report to the ADB for concurrence and disclosure;
- (xiii) Conduct awareness workshops for the MOWRAM, line ministries, local authorities, and construction contractor on the implementing rules and regulations as specified in the DRP; and
- (xiv) Serve as the focal knowledge center for resettlement of the Project/Subprojects.

116. In addition, the DIMDM of the GDR is responsible for carrying out the internal monitoring of the implementation of the DRP and the verification and validation of the compliance of the entitlements and compensation payments with the provisions of the EM in the DRP. Its role extends to internal verification of all LAR activities for compliance with the provisions under the agreed DRP and reports directly to the Director General of GDR. In addition, it records and reviews all complaints and grievances submitted by DPs; investigates them and makes recommendations on compliance

to the Director General, GDR. After the payment of compensation and other entitlements is completed, GDR will prepare and submit to ADB the DRP implementation report to obtain “no objection” for civil works.

(iii) Cadastral Administration Office

117. The Cadastral Administration offices under the Ministry of Land Management, Urban Planning and Construction (MLMUPC) is responsible for issuing titling documents, including the certificate of land use rights, hard titles, and social land concession as part of securing tenure for landless and issuing title documents for the land plots acquired in favor of the MOWRAM.

(iv) The concerned local administrative authorities (district, commune, and village)

118. The districts, communes, and villages where the Subprojects are located will coordinate and work closely with the PRSC-WG and the IRC on the DRP preparation and implementation. Their roles and responsibilities include:

- (i) Identify and coordinate the venue for the PCMs and invite AHs to participate in the consultation activities, such as the DMS, SES, RCS, and other resettlement related activities;
- (ii) Assist in registering complaints/grievances and resolving them; and
- (iii) Assist the IRC-WG, PRSC-WG, and GDR in developing suitable measures to assist the vulnerable AHs by the Subprojects.

(v) Inter-Ministerial Resettlement Committee Working Group (IRC-WG)

119. The IRC-WG will carry out the day-to-day LAR activities under the Project/Subprojects which is led by the Deputy Director/Chief of the Department of Resettlement of the GDR and comprise technical PMU staff of the MOWRAM/PMU, staff of the Resettlement Department and staff of the Ministry of Land Management, Urban Planning and Construction. The IRC-WG will be responsible for all the field work under the supervision of the Director of the Resettlement Department and overall guidance and direction of the Director General, GDR. The composition of the IRC-WG is in **Table 23**.

Table 23: Composition of the IRC-WG

No.	Name	Title	Position
1	Mr. Heng Veasna	Deputy Director, RD3, GDR/MEF	Team Leader
2	Mr. Pal Chhan	Deputy Director, RD3, GDR/MEF	Deputy Team Leader
3	Mr. Youk Bunheng	Chief Officer, RD3, GDR/MEF	Deputy Team Leader
Data Encoder			
1	Mr. Un Valera	Deputy Director, DIMDM, GDR/MEF	Member
2	Mr. Ngeth Prum	Officer, DIMDM, GDR/MEF	Member
Measurement Team (DMS)			
1	Mr. Seng Sarvath	Deputy Director, MAFF	Member
2	Mr. Chhuy Veasna	Deputy Chief Officer, DGA, GDIC/MEF	Member
3	Mr. Thach Sophanet	Deputy Chief Officer, RD3, GDR/MEF	Member
4	Mr. Eth Vannak	Deputy Chief Officer, RD3, GDR/MEF	Member
5	Mr. Ros Sarakmony	Officer, MLMUPC	Member
Interviewers			
1	Mr. Lean Phirun	Deputy Chief Officer, PMU/MRD	Member
2	Mr. Ouk Doniroath	Officer, RD3, GDR/MEF	Member

Source: RD 3, General Department of Resettlement dated 2022

(vi) Provincial Resettlement Sub-Committee (PRSC)

120. The PRSC is established by the Governor of Kampong Cham Province at the request of the IRC for the Subprojects (**Annex 7**) and comprises (i) the Provincial Governor or the Deputy Provincial Governor as the Head and (ii) the Provincial Department Directors of the Line Ministries represented in the IRC and (iii) the respective Chiefs of the districts and communes of the locations affected by the Subprojects as Members. The composition of the PRSC is in **Table 24**. The role of the PRSC is as follows:

- (i) Provide the coordination and supporting role to the GDR, IRC and IRC-WG for LAR activities at the local level;
- (ii) Ensure all relevant provincial and local government authorities provide the necessary support for LAR;
- (iii) Manage the PCMs at provincial level;
- (iv) Oversee and monitor the work of the PRSC-WG;
- (v) Be responsible and accountable for the disbursements of the compensation payments at the provincial level; and
- (vi) Assist the IRC-WG in developing measures to assist vulnerable households.

Table 24: Composition of the Tboung Khmum Provincial Resettlement Sub-Committee

No.	Name	Title	Position Assigned
1	H.E Hok Pich Hos	Deputy Provincial Governor	Chair
2	Mr. Seng Cheyvuth	Director of Administration Provincial Hall	Vice Chair
3	Mr. Sok Lengmeng	Director of PDOWRAM	Vice Chair
4	Mr. Kim Tithya	Director of PDEF	Vice Chair
5	Mr. Poch Sothearith	Director of PDLMUPC	Vice Chair
6	Mrs. Chhorn Chenda	Deputy Director of Administration Provincial Hall	Member
7	Mr. Heng Pesith	Director of PDAFF	Member
8	Mr. An Sina	Head of PDRD	Member
9	Mr./Mrs. Representative Provincial Police Commissioner		Member
10	Mr./Mrs. Representative Provincial Gendarmerie Command		Member
11	Mr./Mrs. 7 Relevant Municipality - District Governor		Member
12	Mr. Em Picheyrattanak	Director of Provincial Inter-sectoral office	Member

Source: Tboung Khmum Adm, Letter No. 108/24 SSR TBK issued on 25 September 2024

(vii) Provincial Resettlement Sub-Committee Working Group (PRSC-WG)

121. The PRSC-WG was established by the Governor of Kampong Cham Province dated 08 December 2021 (**Annex 7**) and is mainly responsible for technical functions of the PRSC and works with the IRC-WG in carrying out LAR activities at the provincial level. The composition of the PRSC-WGs is in **Table 25**.

Table 25: Composition of the Provincial Resettlement Sub-Committee Working Group

No.	Name	Title	Position Assigned
1	Mr. Em Picheyratanak	Director of Provincial Hall Inter-sectoral Office	Chairman
2	Mr. Yiv Vuth	Vice Head of PDEF	Member
3	Mr. Sor Sen	Deputy Director of PDRD	Member
4	Mr. Yem Chorda	Chief of Irrigation and Agriculture Office	Member
5	Mr. Va Sothea	Deputy Chief, Law and Safeguard Office	Member
6	Mr. Nget Sombeoun	Vice Chief of Office, PDAFF	Member
7	Mr. Ly Bunsann	Vice Chief of LMUPC	Member
8	Representative of relevant district administration		Member
9	Head of Office, Office of LMUPC		Member
10	Mr. Kim Panha	Officer, Law and Safeguard Office	Member
11	Mr. Sao Borasy	Officer of Legal Affairs and Public Safety Office	Member
12	Mr./ Mrs. Relevant Chief of Commune		Member
13	Relevant Police Commissioner		Member

14	Mr./Mrs. Relevant Chief of village	Member
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Source: Provincial Governor Letter No. 019/22 SSR TBK, issued on 25 September 2024.

122. The PRSC, through the provincial and district working groups are responsible for the following functions:

- (i) Facilitate public information campaigns, ensuring that the public, especially the AHs, are updated on any developments regarding the Project and resettlement activities;
- (ii) Participate in the DMS and updating of the census of AHs, including the updating of the entitlements;
- (iii) Spearhead the selection, acquisition, and preparation of replacement plots, including the preparation of a coordinated schedule of delivery of compensation and other entitlements, relocation of people, harvesting of standing crops, and start of civil works in a particular section of the Project sections;
- (iv) Spearhead the delivery of compensation and other entitlements to the AHs;
- (v) Receive and act on the complaints and grievances of AHs in accordance with the Project resettlement policy; and
- (vi) Maintain a record of all public meetings, grievances, and actions taken to address complaints and grievances.

(viii) Project Implementation Consultants (PIC)

123. The PIC will assist the MOWRAM in the management and supervision of civil works activities and will ensure that the contractor adheres to the terms of their contracts relative to avoiding and/or minimizing resettlement impacts. The PIC role is minimal in the implementation of the DRP and is only related to the compilation of the reporting requirements for the Project and reporting to the RD3 of GDR of any bottlenecks posed by resettlement during the construction phase of the Project/Subprojects.

XIII. DRP IMPLEMENTATION SCHEDULE

124. All resettlement activities will be coordinated with the civil works schedule of the Subprojects. The DRP will be implemented after it is approved by the IRC and cleared by the ADB, and the budget is approved by the MEF. The construction works cannot start until the compensation and other assistance are paid in full to the AHs. It is expected that the compensation payments will be completed within two (2) months, and the COI will be free of any encumbrances. Thereafter, the MOWRAM will issue a notice of possession of the specific sites to the contractor for construction. However, construction can proceed on sections free from encumbrances, based on an agreement between the MOWRAM and the ADB. The tentative implementation schedule for resettlement actions is summarized in **Table 26**.

Table 26: DRP Implementation Schedule

Activities	Schedule
A. Preparation of DRP	
Preparation of Draft DRP	June - July 2025
Submission of Draft DRP for ADB review and comments	August 2025
Approval of the DRP by IRC and clearance by ADB	September 2025
Disclosure of the approved DRP	September 2025
B. DRP Implementation	
Budget approval	October 2025
Consultation and Contract Signing	November 2025
Compensation Payment	December 2025
Land Handover Letter	January 2026
Submit Semi-Annual Monitoring Report to ADB ^a	As of end of every six months starting from DRP approval to Subproject completion.

^a Reports will cease to be submitted after the completion of the Subproject.

Source: RD3 Schedule

XIV. MONITORING AND REPORTING

125. The MAFF/MOWRAM (PMUs and PIUs) will be responsible for the overall implementation of the Project/Subprojects, the DIMDM of the GDR will be directly responsible for the monitoring and reporting of the implementation of the DRP of the Subprojects.

1. Internal Monitoring

126. All internal monitoring and reporting on the implementation of the DRP will be carried out by the GDR in accordance with the principles agreed in this DRP and the internal monitoring indicators in **Annex 8**. The DIMDM of the GDR will perform routine internal monitoring. The objective of internal monitoring is to (i) measure and report on the progress in the preparation and implementation of the DRP; (ii) identify problems and risks, if any and the measures to mitigate them; and (iii) assess if the compensation and rehabilitation assistance are in accordance with the provisions under the DRP. Internal monitoring with results will be reported to the IRC and the MOWRAM/PMU on a quarterly basis. The IRC-WG and the PRSC-WG will gather data and information on the progress of LAR from the field, prepare and submit monthly reports to the RD3. The RD3 will compile the field reports and prepare a consolidated report on the implementation of the DRP on a monthly basis. The report will be submitted to the DIMDM which will (i) review the monthly progress reports, including fielding its own missions to verify the progress and the validity of the data and information, if deemed necessary; and (ii) compile quarterly monitoring report for submission to the Director General, GDR for endorsement. After the approval of this DRP, the DIMDM will prepare the semi-annual social safeguard monitoring report for endorsement by the Director General of GDR before submitting it to the ADB.

127. The DIMDM may engage a national consultant to prepare the semi-annual social safeguard monitoring reports for the GDR. The generic contents of the report include the status of the following:

1. Set up of Institutional Arrangements
2. Compensation Payments for Entitlements
3. Development of Resettlement Sites and Relocation if any
4. Grievance Redress
5. Public Consultations
6. Budget Expenditures
7. Livelihood Support Program, where applicable
8. Distribution/placement and temporary move of vendors from market site
9. Overall Progress against agreed Implementation Schedule
10. Major Problems and Issues
11. Proposed remedial actions

128. The DIMDM will also validate that the (i) entitlements and the corresponding compensation are paid in accordance with the EM in the approved DRP; and (ii) GRM is functioning as per the guidelines. During subsequent monitoring periods, the DIMDM will look into whether or not corrective actions agreed to address LAR issues in the past monitoring period (i.e., outstanding resettlement issues) have been resolved.

2. External Monitoring

129. External monitoring will not be required as the Subprojects are classified as Category B for involuntary resettlement, as they include involuntary resettlement impacts that are not deemed significant.

Annex 1: Detailed Breakdown of Fruit and Non-fruit Trees

Detailed Breakdown of Fruit and Non-fruit Trees

1.Fruit Tree		No.	AHs
1	Mango	2	1
2	Banana	5	1
3	Guava	1	1
4	Coconut	11	1
5	Jackfruit	1	1
6	Palm Tree (Full of Yield)	1	1
7	Tamarind	6	1
8	Areca	9	1
9	Cashews	2	1
10	Kaffir lime	1	1
11	Palm Tree (Not Full of Yield)	6	2
Total		45	12

2.Non-Fruit Tree		No.	AHs
1	Bamboo	1	1
Total		1	1

Annex 2: Minutes of Public Consultation Meeting during the Feasibility Study of Choam Taheung Reservoir Scheme Irrigation Subproject - Tboung Khmum Province

The first meaningful PCM was conducted during the feasibility stage of Choam Taheung Reservoir Scheme Irrigation Subproject on 18th January 2025 attended by 33 AHs of which 6 were females (16.66%). The PCM was conducted by the feasibility consultants and MOWRAM's PMU/PIU staff assisted by the local authorities. The PIBs were distributed to the participants prior to the PCM. All the discussions and presentations were presented in Khmer for AHs to fully understand. Error! Reference source not found. 1 below summarizes the key topics discussed and explained in detail to the AHs at the PCMs on the dates/times, locations and number of AHs by gender.

Table 1: Key Topics Discussed at the PCM during Subproject Feasibility Study by Gender

No.	Date/Time	Location	Topics Discussed and Explained	No. of AHs
1	18 th January 2025 8:30 am – 10:25 am	Seda Commune Hall, Choam Taheung Reservoir Scheme Irrigation Subproject	• Project and Subproject background and information • Preliminary design of the main, secondary and tertiary canals and technical discussions and presentations on them • Project information booklet and Cut-off Date • Project and Subproject benefits and potential resettlement impacts • Anticipated land requirements • Compensation policy • Entitlements and Eligibility • Brief discussion on GRM and GRM focal points of MOWRAM	33 (M:27, F:6)
Total			33 AHs (27 male and 6 female)	

The purpose of this PCM was to (i) inform participants on the rehabilitation of the existing canals and construction and replacement of hydraulic regulators and construction of FWUC buildings; (ii) distribute/share, explain and disclose the PIB on the Commune and Provincial information boards, (iii) discuss preliminary technical designs of the Dam, main, secondary and tertiary canals; (iv) discuss potential affected assets and eligibility for compensation; and (v) provide introductory processes and procedures of GRM. All consultations were presented verbally in the Khmer to allow AHs to fully understand and be able to participate, while using visual tools such as maps, drawings, and banners. The PCMs were conducted to also seek feedback from the participants on the proposed Subproject.

At the PCMs, participants were informed that a COD would be established for the APs to have the right to be eligible to receive compensation for any affected assets under the Subprojects. The purpose of the COD was to: (i) prevent the influx of people into the Subprojects sites; (ii) to prevent illegal encroachment on public land/state-owned land, and (iii) determine the properties and assets affected within the ROW to receive compensation. The participants were informed that the COD will be announced and established in the PCM prior to DMS. The AHs were also informed that any new buildings, additional construction or proposed construction, or planting trees and cultivation in the COIs after the COD, will **NOT** be eligible for compensation and resettlement assistance.

The AHs were informed on the preliminary design parameters of the Dam, MCs, SCs and TCs including the access roads under the Subprojects. The locations of the canals connecting MCs, SCs and TCs into the command areas in each commune, their lengths and geometric

features and their potential benefits and resettlement impacts were discussed and explained to the AHs in the PCMs. The cross-section features of Dam, MCs, SCs and TCs including the access roads were displayed and explained.

All AHs were given the PIB which was read out and explained in detail at each PCM. The PIB provided clear and adequate information on the Project/Subprojects and the AHs participated in the Subprojects' planning including discussions on issues and concerns arising from the Subprojects' rehabilitation and improvements. The GRM was briefly explained, and the AHs were appropriately informed and consulted. In the event of any complaints, the contact information of the MOWRAM Social and Environments Officers (SEOs) was also disclosed during the consultation process. The participants were informed that while a Project level GRM would be established to resolve any complaints, a separate GRM will be established for LAR activities and will be implemented by the GDR of the Ministry of Economy and Finance (MEF) to receive, register, and resolve complaints on LAR matters.

After the detailed discussions and presentations, the participants were given the opportunity to raise their concerns, ask questions or seek further clarifications and make suggestions and recommendations on them. The key issues/questions and responses are summarized in **Table 2** below.

Table 2: Summary of Key Issues/ Questions Raised during the PCM

No.	Key Issues/Questions	Responses
1	Where will the Subproject be constructed?	The Subproject will be mostly constructed within the existing irrigation canal and dam and improve the existing roads on the embankments will be improved for transportation of goods and used by the communities.
2	Did the Subproject consider the impact on private assets?	During feasibility study stage, considerations have been given to avoid and minimize impacts to private assets as much as possible.
3	We are extremely grateful to MOWRAM and the Subproject team for assisting us in restoring/improving our irrigation systems. Our goal is to be able to grow crops two times annually with a sufficient and regular water supply, which is an improvement from the previous situation.	The Subproject aims to support the community in response to current needs and provide future benefits to the community from the improved irrigation system.
4	What will be the solution if the Subproject affects people's assets such as houses, trees, structures, or private farmland?	The Subproject aims to avoid impacting private land and utilize existing community land or public state land for construction, particularly for the FWUC office building and use the right-of-way for rehabilitation of the Dam and existing canals. However, if impacts avoidance is not possible, compensation will be processed based on the replacement cost at current market rate, and voluntary donations are accepted only for very minor impacts based on the voluntary donation criteria.
5	We really appreciate the Subproject's focus on environmental and social safeguards throughout the study and implementation stages, including detailed explanations, even though the Subproject aims to rehabilitate the existing irrigation. This approach ensures the safety of the Subproject during study and implementation.	The Subproject aims to provide meaningful consultation to the subproject beneficiaries, ensuring compliance with Cambodian laws and regulations and ADB SPS regarding environmental and social safeguards. The focus is on mitigating and avoiding IR impacts without adjusting the designs.
6	If the Subproject impacts land with titles, will the Subproject cover the new title	Yes. The Cadastral Administration Office in the Commune will remeasure the remaining land and

	transfer fee?	provide the new title.
7	Can you let us know if the reservoir/dam will be rehabilitated?	The Subproject is at feasibility study stage. The need for the reservoir to be rehabilitated will be decided during the detailed engineering design stage. This will be confirmed during the DMS stage.
8	We are very interested in what you mentioned about hiring local workers for construction work during the Subproject implementation. We hope that we can work during the construction to earn some additional income.	The Subproject will provide opportunities for local workers, with priority given to poor and vulnerable household heads, particularly women.
9	When will the construction of the Subproject begin?	Construction can begin once the DED and safeguards documents are completed and approved by the IRC and ADB, compensation paid to the affected households, and the land is vacated. The estimated time to start construction will be mid-2026.
10	As we are concerned about the access to our farmland and the removal of the existing bridge or drainage by the Subproject during construction, what support can the Subproject provide us during construction?	The contractor will provide temporary access to the farmlands due to any removal of the existing bridges or drainage systems during the construction phase of the Subproject.
11	We believe that the Subproject will compensate for the impact on our private assets, but my family and I have agreed to donate. We see this as the ideal way to support the Subproject for the benefit of the community. Kindly continue with the Subproject according to the plan.	We have no objection to voluntary donations as allowed under the law. However, the voluntary donation must be within the parameters of the voluntary donation criteria that has been included in the October 2017 approved LARP for the Project.
12	As discussed, we really need to widen the existing canal to ensure enough water flow to support our community and farmland produce twice a year.	During the feasibility study, we are focusing on the current functionality, water flow, and water capacity. This will be further addressed at the Detailed Engineering Design stage to confirm the total canal width with the technical specifications.
13	Can private assets receive compensation impacted by the Subproject?	Yes. Compensation will be given to all affected assets inside the COI at replacement cost.
14	The existing canal is so small, with some sections being used for cultivation and occupied by local people.	The purpose of the Subproject is to construct and rehabilitate the existing canal by expanding it to be larger than before in some sections, while also trying to minimize any IR impacts. Any structures or cultivation or standing crop inside the existing canal will be compensated. Local people will be needed to vacate the land within the COI for construction to commence.
15	The Subproject should consult with all Subproject stakeholders, local authorities, and especially the local people within the subproject areas.	The consultation, participation and information disclosure will be an ongoing process through the Subproject cycle, i.e. from feasibility study to completion. There will be further consultations during the DED, DMS, Compensation and Subproject Implementation/Construction stages.

Since there were no further issues/questions raised, both PCMs concluded without any objections from the AHs. The AHs requested to expedite the completion of feasibility studies and detailed engineering designs for construction to commence.

Minute Taker

A handwritten signature in blue ink, appearing to be 'Narith Chan', written in a cursive style.

Narith Chan,
Social Safeguard Specialist

Minute Approver

A handwritten signature in blue ink, appearing to be 'Dinesh Shrestha', written in a cursive style.

Dinesh Shrestha
Team Leader (CS5)

Attendance List and Photographs

Sl. No.	Name	Roll No.	Section	Attendance	Remarks
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Annex 3: Minutes of Meeting Prior to Detailed Measurement Survey

Minutes of Public Consultation Meeting Prior to and during house-to-house Detailed Measurement Survey for Choam Taheung Reservoir Scheme Irrigation Subproject in Tboung Khmum Province

The IRC-WG assisted by the Tboung Khmum PRSC-WG, and local authorities conducted a public consultation meeting (PCM) for the Choam Taheung Reservoir Scheme Irrigation Subproject with the affected household and community representatives prior to DMS. The PCMs were conducted in the Teuk Chrov and Chong Cheach commune, Tboung Khmum Province on 7 April 2025 attended by 72 participants out of which 16 (22.22%) were females. The details of the PCMs are summarized in the Table below.

No	Date/Time	Venue	Commune	Province	No. of Participants
1	07 Apr 25/08:00	Teuk Chrov District Hall	Teuk Chrov and Chong Cheach	Tboung Khmum	72 (F: 16, M: 56)
Total:					72 (F: 16, M: 56)

The purpose of the PCMs was to set up the cut-off date (COD), discuss and explain the process and procedures of DMS, entitlements, compensation policy, GRM procedures and its operationalization and provide contact details of GRM focal persons. All these topics were included in the updated PIB which was made available to the participants prior to the commencement of the PCMs and explained in detail during the PCMs. The DMS Questionnaire and GRM Guidelines were also made available to the participants prior to commencement of the PCMs and discussed and explained in detail at the PCM. These salient topics were again discussed and explained to individual household heads on one-on-one basis during house-to-house DMS.

The participants were informed that the COD was set as **7 April 2025**. They were further informed that after this COD, any person who moves into or encroaches on the ROW of the canals to build or expand any kind of structure such as house, shop, fences and/or to plant any kind of trees, crops, will **NOT** be entitled to any compensation or any other assistance, except if changes in the subproject design or additional land take entail a modification of the subproject area. The Commune and Village Chiefs were informed to keep an oversight that no activities take place within the ROW.

The participants engaged in the discussions during the PCMs shared their views on key issues/questions which are summarized in the Table below:

Summary of Key Issues/Questions raised by Participants and Responses

No.	Key Issues/Questions	Responses
1	Will the affected structures/assets receive compensation?	The affected structures/assets within COI which were built before the COD will receive compensation at full replacement cost.
2	Is it a normal canal restoration or a concrete canal?	It is the restoration of normal canal.
3	My house is adjacent to the canal. Will there be any impact on my house?	The detailed design team have demarcated the corridor of impact and the DMS Team will conduct a detailed survey measurement at the actual site location jointly with you to enable you to see if your house will be impacted
4	My rice field is adjacent to the canal. So, will there be any impact on my rice field? And what is the size of the canal?	The team will conduct a detailed survey measurement at each canal location. The size of the canal is designed to meet the flow of water to the command area and the team will inform on the size of canal when conducting the DMS.

The meeting ended on the same day with no further issues for discussions.

Seen and Endorsed

Minute Meeting Taker

Chairman of the Meeting

Heng Veasna

Thach Sophanith

1. Conductors of Consultation Meeting at Teuk Chrov District Hall, Date: 07 April 2025, Time: 8:00am

IRC-WG and PRSC-WG

No.	Name	Sex	Institution	Position
1	Thach Sophaneth	M	GDR/MEF	IRC-WG
2	Ros Sarakmony	M	MLMUPC	IRC-WG
3	Reth Boran	M	Tombae district hall	Deputy Governor
4	Ou Sokhavong	M	CS5, MOWRAM	Consultant
5	Pen Naron	M	Tombae Administration office	Tombae district
6	Ly Bunsoan	M	DLMUPC	Deputy chief office
7	Pha Phat	M	DLMUPC	Officer
8	Nhem Chorda	M	DOWRAM	Chief office
9	Nget Sombeun	M	DAFF	Deputy Chief office
10	Kim Ponh	M	Provincial Hall	Deputy Chief office
11	Chin Chainy	M	Provincial Hall	Officer
12	Chao Borasy	M	Provincial Hall	Officer
13	Tha Sovanrith	M	Provincial Hall	Officer
14	Sok Chomreun	M	MOWRAM	Officer
15	Von Sengron	M	Commune councilor	Commune councilor
16	Hong Senghat	M	Teuk Chrov village	Village chief
17	Yon Yong	M	Phaov Village chief	Village chief

Teuk Chrov commune and Chong Cheach, Tboung Khmum province

No.	Name	Sex	Position
Kley village, Teuk Chrov commune			
1	Leng Soklea	F	AH
2	Phen Phean	M	AH
3	Mab Sreytouch	F	AH
4	Buth Sokleng	F	AH
5	Moun Ouch	M	AH
6	Un Sreun	M	AH
7	Thon Channa	M	AH
8	Suth Ouch	F	AH
9	Soy Thon	M	AH
10	Eu Eng	M	AH
11	Thy Kak	M	AH
12	Seung Neang	M	AH
13	Sen Ye	F	AH
Phaov village, Teuk Chrov commune			
14	On Sreynor	M	AH
15	Muy An	M	AH
16	Muy Eun	M	AH
17	Nat	M	AH
18	Yov Nou	M	AH
19	Chin Chon	M	AH
20	Sae Rev	M	AH
21	Chen Han	M	AH
22	Sao Moy	M	AH
23	Sor Bres	M	AH
24	Hay Neang	M	AH
25	Seat Sarom	M	AH
26	Yov Choy	M	AH
27	Tok Keun	F	AH
28	So Bean	F	AH
29	Seang Salean	M	AH
30	Heng Sarat	M	AH
31	Bean Srouch	M	AH
32	Peang Oun	M	AH

33	Bor Am	M	AH
Teuk Chrov village, Teuk Chrov commune			
34	Hong Senghat	M	AH
35	Ling Channeun	M	AH
36	Oun Rom	F	AH
37	Khen Yean	F	AH
38	Ki Nov	M	AH
39	Preung Soda	M	AH
40	Chong Chang	M	AH
41	Yim Yeun	M	AH
42	Nat Nhek	M	AH
43	Som Chin	M	AH
Sro mor village, Teuk Chrov commune			
44	Buth Chhut	M	AH
45	Sek Keat	F	AH
46	Thon Saly	F	AH
47	Koy Chou	M	AH
48	Sann Phan	M	AH
49	Ros Kemhon	M	AH
50	Hai Vong	M	AH
51	Sin Ly	M	AH
52	Song Yon	M	AH
53	Sean Sengleang	M	AH
54	Kem Pheun	M	AH
55	Srean Liv	M	AH
56	Nhan Chheang	M	AH
57	Chhin Chen	M	AH
58	Som Srin	M	AH
59	Yam Yan	M	AH
60	Thoang Mey	M	AH
61	Men Vin	M	AH
62	Kong Kouy	M	AH
63	Chhet Eath	M	AH
64	Chheang Lean	M	AH
65	Chhon Chhai	M	AH
66	Heng Chy	F	AH
67	Men Khak	F	AH
68	Pheng Touch	F	AH
Kon Trom village, Chong Cheach commune			
69	Men Ven	M	AH
Kok Srolao village, Chong Cheach commune			
70	That Phet	M	AH
71	Seang Sokreth	F	AH
72	Seang Rong	F	AH

Date: 07 April 2025 at Teuk Chrov District Hall

Date: 07 April 2025 at Teuk Chrov District Hall

ព្រឹត្តិបត្រ ព្រះបរមរាជវាំង

ក្រុមការងារគណៈកម្មការអន្តរក្រសួង និងក្រុមការងារអនុគណៈកម្មការទទួល

தேதி 07.10.2024 வரை 5

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20		1973	1973		

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Photo during Public Consultation
Date: 7 April 2025 at 8:00am



Annex 4: Minutes of the Meeting with the Family of Deceased on Grave Relocation

Minutes of Meeting with the Family of Deceased on Grave Relocation affected by Choam Taheung Reservoir Scheme Irrigation Subproject in Tboung Khmum Province

The IRC-WG assisted by the local authorities conducted a consultation meeting with the family members of deceased's affected grave on 11 April 2025 at 9:00am at Kley Parish Hall, Tboung Khmum province. The purpose of the meeting was to discuss the impact of the grave to the Subproject, its relocation and the compensation payment.

The consultations were led by Mr. Thach Sophaneth of IRC-WG. He handed out the updated PIB of the Subproject to both family members of the deceased. He read out the PIB to them explaining the contents in detail. He also informed the family members of deceased that the Subproject will impact on the grave which will need to be relocated outside the corridor impact. He confirmed that the costs for the relocation of the grave will be met by the Subproject at full replacement cost. He also added that the valuation of the relocation of the grave including the affected assets such as land, structures, crops and trees, and other resettlement assistance has been carried out by an independent local replacement cost study (RCS) consultant qualified and experienced in asset valuation. Therefore, the compensation for the grave is based on the RCS valuation. He also informed that if the family has issues with the measurement and compensation amount for the relocation of the grave, they can file a complaint to the grievance redress committee (GRC) at commune, district, GDR and provincial levels. He pointed out the contact details of GRC at each level in the PIB.

Ms. Buth Sokleng, the granddaughter of the deceased, stated that she has no objection to the measurement of the grave that was carried out during Detailed Measurement Survey. She stated that although there is an impact on her ancestor's grave, she appreciated and welcomed the interventions under the Subproject. She confirmed that upon the receipt of the compensation, she will relocate the grave onto her family's cashew nut farm.

The meeting concluded at 10:00 am without any issues for discussion.

Minute Taker

Mr. Thach Sophanet

List of Conductors and Participants at the Consultation Meeting
Date: 11 April 2025, 09:00 am at Kley Parish Hall

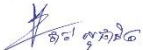
No.	Name	Gender	Institutions	Position	Signature
1	Thach Sophanet	M	GDR/MEF	IRC-WG	
2	Tha Sovanrith	M	Provincial Hall	Officer	
3	Sao Borasy	M	Provincial Hall	Officer	
4	Kong Try	M	Commune councilor	Member	
5	Chem Seun	M	Kley Village chief	Village chief	
6	Buth Sokleng	F	Kley village	Family Member/Villager	
7	Cheang Laivicheka	M	Kley village	Villager	

Attendance List in Khmer:

ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ

អង្គជំនុំជម្រះវិសាមញ្ញ
ក្រសួងព្រហ្មទណ្ឌ ក្រសួងយុត្តិធម៌ និងរដ្ឋប្បវេណី ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
ថ្ងៃទី ១១ ខែ ឧសភា ឆ្នាំ ២០២៥

ល.រ	ឈ្មោះ	ភេទ	ស្ថាប័ន	តួនាទី	លេខស្នាក់នៅ	ហត្ថលេខា
1	Thach Sophanet	M	GDR/MEF	IRC-WG	01234567	
2	Tha Sovanrith	M	Provincial Hall	Officer	02011308	
3	Sao Borasy	M	Provincial Hall	Officer	04051466	
4	Kong Try	M	Commune councilor	Member	05174225	
5	Chem Seun	M	Kley Village chief	Village chief	053451457	
6	Buth Sokleng	F	Kley village	Family Member/Villager	065523246	
7	Cheang Laivicheka	M	Kley village	Villager		
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 រ. ប្រធានក្រុមការងារ


**Photos taken during Consultation Meeting at Kley Parish Hall and the Grave Site
11 April 2025 at 9:00 am**



Annex 5: Updated Public Information Brochure English and Khmer

Updated Public Information Brochure (PIB) Climate-Friendly Agribusiness Value Chain Sector Project (CFAVCSP) – Rehabilitation of the Choam Taheung Reservoir Scheme Irrigation Subproject in Tboung Khmum Province

The purpose of this updated PIB is to provide CFVACSP related information to the persons and households at the CFVACSP subproject sites, who may be physically (relocation, loss of residential land or loss of shelter) or economically (loss of land, assets, access to assets, income sources or means of livelihood) affected by land acquisition and involuntary resettlement (LAR).

Project Background

1. What is CFVACSP?

The Royal Government of Cambodia has received two loans and a grant from the Asian Development Bank for the CFAVCSP. The CFAVCSP will support the Industrial Development Policy, 2015–2025 aimed at improving the competitiveness of agricultural value chains in Kampong Cham, Tboung Khmum, Kampot and Takeo provinces (See map shaded in yellow).

Selected Provinces Shaded in Yellow



The CFAVCSP will boost the climate resilience of critical agricultural infrastructure and help commercialize rice, maize, cassava, and mango production. It will help increase crop productivity and diversification; improve the capacity for storage, processing, and quality and safety testing; and promote the use of solar and bioenergy. It will strengthen the technical and institutional capacity for climate-smart agriculture and create an enabling policy environment for climate-friendly agribusinesses. This will in turn promote long-term environmental sustainability and enhance the profitability for farmers and agribusinesses. Three ministries will implement the CFAVCSP and include the Ministry of Water Resources and Meteorology, Ministry of Agriculture, Forestry and Fisheries and Ministry of Rural Development.

2. What are the outputs of CFAVCSP?

CFAVCSP has three outputs as follows:

- Output 1: Critical agribusiness value chain infrastructure improved and made climate-resilient.
- Output 2: Climate-smart agriculture and agribusiness promoted.
- Output 3: Enabling environment for climate-friendly agribusiness enhanced.

Output 1: Critical agribusiness value chain infrastructure improved and made climate resilient. This output bridges the gaps in infrastructure to enhance the competitiveness of the value chains of rice, maize, cassava, and mango in target provinces. It involves rehabilitating and modernizing rural infrastructure to increase production and resource efficiency, reducing post-harvest losses, and enhancing quality and

value chain linkages. It includes the development of integrated systems for managing agricultural waste and residues in rice, maize, cassava and mango value chains to enhance their competitiveness, reduce Green House Gas emissions and environmental risks, and contribute to energy independence. while reducing greenhouse gas emissions and improving climate resilience. Key activities include:

- (i) upgrading of off-farm and on-farm water management infrastructure to climate resilient condition (includes irrigation systems, rainwater harvesting ponds);
- (ii) construction of drying, processing and storage facilities at agricultural cooperatives;
- (iii) improvement of farm roads and tracks within communes to link farm units and production zones to the storage units and provide better access to markets;
- (iv) strengthening infrastructure for agricultural product quality and safety testing at national (National Agricultural Laboratory) and provincial levels; and
- (v) developing rural renewable energy infrastructure.

Output 2: Climate-smart agriculture and agribusiness promoted. Key activities include:

- (i) deploying climate-resilient varieties.
- (ii) strengthening the capacity for climate-friendly production practices and technologies; and
- (iii) promoting farm mechanization and extension.

Output 3: Enabling environment for climate-friendly agribusiness enhanced. Key activities include:

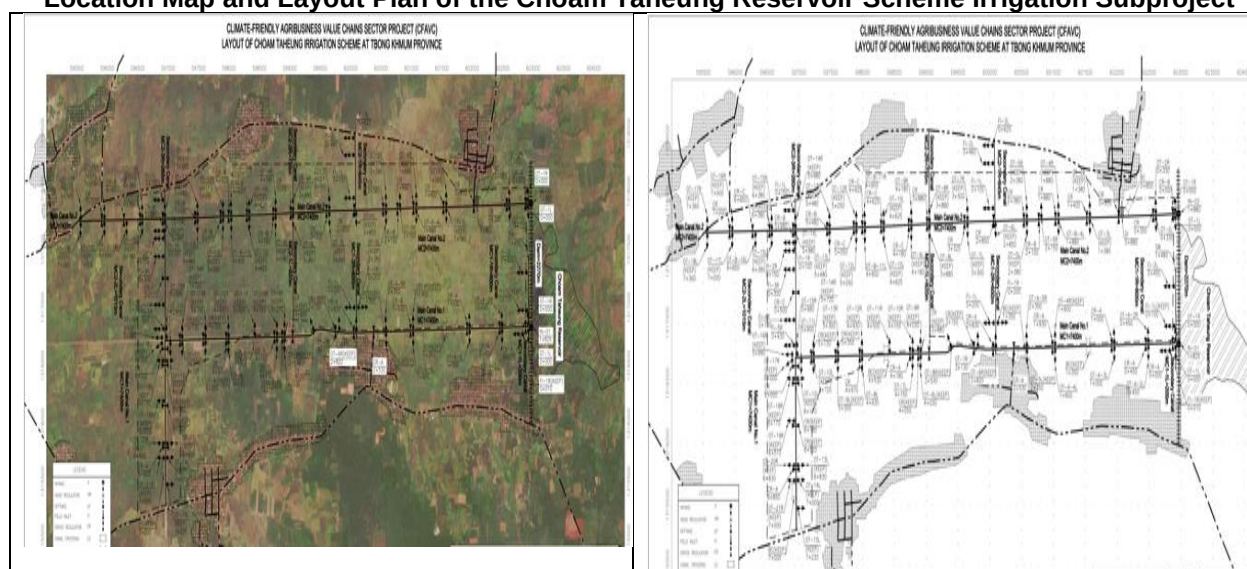
- (i) formulating climate-friendly agribusiness policies and standards.
- (ii) promoting green finance and risk-sharing mechanisms; and
- (iii) supporting climate risk management through information and communication technologies.

Only Output 1 has LAR activities

3. For what Subproject is this PIB prepared for?

This updated PIB is specifically for the Rehabilitation of the Choam Taheung Reservoir Scheme Irrigation Subproject shown in the maps below.

Location Map and Layout Plan of the Choam Taheung Reservoir Scheme Irrigation Subproject



4. What is Choam Taheung Reservoir Scheme Irrigation Subproject?

The Choam Taheung Reservoir Scheme Irrigation Subproject (the Subproject) will rehabilitate and upgrade the existing irrigation system to assist farmers in cultivating agricultural products twice a year. The proposed plan for the Subproject includes rehabilitation and upgrading of Main Dam (2,270m), MC No.1 (7,400m), MC No.2 (7,400m), 8 SCs (5,050m total), construction of 35 Nos. of New Hydraulic Structures, Repairing Existing Structures at 27 locations, Retaining Existing Structures at 69 locations, Removing Existing Structures at 20 locations, and construction of a new building for farmer water user committee.

5. What is the scope of land acquisition and resettlement and the likely impacts under the Subproject?

Most of the civil works will be confined to state-owned land within the existing right-of-way. However, there may be narrow strips of about 1.0m wide land to be acquired alongside the canals, no impacts to private land, impacts to secondary structures, crops, fruit and non-fruit trees within the corridor of impact. Given that the canal irrigation scheme will directly benefit the affected households (AHs) with regular water supply during the wet and dry seasons, they may prefer to donate the narrow strips of land, extended structures and the trees.

6. What is the Right-of-Way (ROW) and Corridor of Impact (COI) of the Road?

The ROW is the state or government-owned land. The COI is where rehabilitation works will be carried out or the land required for the construction. The affected people in the COI will need to move out to allow the civil works of the canals to be carried out.

7. What is the cut-off date (COD) for eligibility?

The COD is the date established by RGC that establishes the eligibility of the AHs/APs for receiving compensation and resettlement assistance under the Subproject. Only those AHs who are in the COI or lose their assets before the COD will be eligible for compensation and assistance. Any person who occupies land or expands structures or improvements to his/her house after the COD will be ineligible for receiving compensation. The COD for the Subproject is **07 April 2025**, the date of consultations prior to the detailed measurement survey.

8. What is a detailed measurement survey and when will it be conducted?

The detailed measurement survey (DMS) is a detailed survey and measurement of all affected assets within the corridor of impact including land, houses and structures, shops, crops, and trees of all the AHs after the completion of detailed engineering design (DED) and demarcation of the affected assets. It will be conducted for each AH to record and agree on all the AH's losses of assets. The affected people and the local authorities will be informed in advance of the DMS. The survey will also collect information and data on socioeconomic status, sources of livelihood, income, vulnerability etc. This is carried out in the presence of the AH and witnessed by a commune or village official. The DMS will be the basis for the calculation of the compensation package for each AH.

9. What will the compensation and entitlements be?

Households/People affected by the Project or Subproject are entitled to receive compensation for affected assets under the following key compensation principles:

- (i) Provisions of fair and just compensation in advance.
- (ii) Full compensation is paid before expropriation or clearance.
- (iii) Compensation is based on the replacement costs of lost assets at market prices that will be determined by an independent consultant through a replacement cost study without any deductions made for depreciation, salvage materials and transaction costs.

The Entitlement Matrix is in **Appendix 1 of this PIB**.

(i) Will I be compensated for the lost land?

The ROW is the state's land and AHs who occupy land on the ROW will not be compensated for the land. However, they will be compensated for any loss resulting from using the land like, for example, for operating a shop, planting crops or fruit trees, or for structures.

In case after the completion of DED, if it becomes necessary to acquire private land for new alignments or land on which the AH has a legal right that falls **outside of the ROW** due to design changes, then compensation will be paid at the replacement cost of the land to be acquired.

(ii) Will I be compensated for the affected house and structures that I own?

Yes. Private houses and structures that are affected by the Project or Subproject will be compensated at replacement cost without counting depreciation, salvage materials or transactions costs. Structures include fences, wells, pavements and other similar structures for which the AH can show ownership. If the house or structure is partially affected, then the compensation will be paid for the affected portion unless it can be shown that the remaining portion can no longer be useful after the removal of the affected portion. In such cases, compensation will be paid for the whole structure.

(iii) Will I be compensated for my crops and trees?

Yes. For standing crops that are ripening but cannot be harvested by the time the land is required, the AHs will be compensated for the lost crop on replacement cost basis. However, for annual crops that are produced on an annual seasonal basis like rice, sufficient notice will be provided to the AHs so that they can harvest the crops in time. No compensation is paid for crops in this case.

For perennial crops (trees that produce fruits for multiple years like mango tree), the AHs will be compensated

for the loss of fruit which will consider the loss of potential income, and the time required to re-establish the perennial trees.

(iv) If I need to relocate my house or shop, is there any relocation assistance?

Yes. All efforts will be made during the detailed design stage of the Subproject to avoid any physical displacement of AHs. However, apart from the compensation for the structures at replacement costs, transitional allowances will be paid as follows: (i) fixed lump sum transportation allowance for moving the assets; and (ii) loss of business income in case of stalls carrying out business. In case the AHs are classified as poor and vulnerable; these allowances will be **doubled**.

(v) In case my livelihood is affected, how will I be compensated?

The DMS will take note of the livelihoods of the AHs and whether there is any impact on them. Under the Project, for AHs whose livelihood is impacted they will be provided with income loss or restoration support:

- Loss of income during the transitional period where physical relocation is required. This will cover loss of income during the period of self-relocation.
- When main livelihood source is permanently lost, a livelihood restoration/support program will be provided to assist the AHs/APs to rebuild/restore their livelihood.

In case the AHs are classified as poor and vulnerable, these allowances will be **doubled**. In addition, the Project will seek to provide work opportunities in the project during the construction period.

10. How will the replacement cost be decided and calculated?

The payment for compensation will be made based on the market value or replacement cost of the lost assets without any deduction for salvage materials, depreciation, or transaction costs. A **Replacement Cost Study (RCS)** will be carried out by a locally qualified independent consultant with the necessary qualifications and experience in assets evaluation to determine the prevailing market rates. This study will be done at the time of the DMS. The RCS consultant will conduct a detailed analysis of the market rates for all types of assets prevailing in the Project or subproject area and prepare the **unit rates** for each category of the loss asset. These will be used to calculate the replacement value and will be used to prepare the resettlement budget. The General Department of Resettlement (GDR) of the Ministry and Economy and Finance (MEF) will select the RCS consultant before the commencement of DMS.

11. Do I have the right to complain about disagreements, compensation issues, resettlement, or other related issues, if yes how?

Yes, you have the right to lodge your complaint to the Grievance Redress Committee (GRC) if you are unclear or unhappy with resettlement activities. The members of the GRC are provided in **Appendix 2 of this PIB** are always ready to assist you. The attempt to redress your grievance will commence at village level through the Village Chief. However, you can lodge your verbal complaint to any member of the GRC (i.e. at village, commune or resettlement working group). The GRC will record and document your complaint and advise you of the resolution.

There will be two sets of grievance redress mechanisms (GRM) established for the subproject (i) voluntary donations and (ii) for land acquisition and involuntary resettlement.

For voluntary donations, the MOWRAM will establish a project level for receiving and resolving grievances or complaints on voluntary donations, environmental and other social safeguards including any project implementation issues raised by the APs. The SEOs of MOWRAM will be responsible for receiving and resolving in a fair, objective, and constructive manner all concerns or complaints raised by affected households due to voluntary land donations. Their broad responsibilities of grievance management include:

- Developing and publicizing the grievance management procedures during the voluntary land donation consultation process;
 - Receiving, reviewing, investigating and keeping track of grievances;
 - Adjudicating grievances;
 - Monitoring and evaluating fulfillment of agreements achieved through the grievance mechanism.
- For the interest of all parties concerned, the grievance mechanism is designed with the objective of solving disputes at the earliest possible time. A recommended timeframe for the resolution of a complaint should be sought within two weeks. However, where a complaint cannot be readily resolved, then it must be escalated.***
- The first level of complaint resolution, following traditional methods in Cambodia, should be the Village and/or Commune level as described above who may be able to resolve issues on the spot. The Village/Commune level should record the grievance and how it was resolved and communicate it to MOWRAM SEOs. In cases where grievance is related to a labor dispute, grievance may be first submitted to the contractor and/or human resource staff of the contractor directly.
 - ***In cases where grievances cannot be resolved on the spot, the second level of complaint people will be able to file grievances directly with the SEO. People will have been informed***

of the SEO's contact information during consultations. The SEO will be able to record the grievance and offer a solution within 15 days, consulting with the MOWRAM Project Manager and Director, as needed. This may include a visit to the project site by the SEO if necessary. There are no fees or charges levied for the lodgment and processing of grievances for level one or two.

In cases where grievance still cannot be resolved or not resolved to the satisfaction of the person making the complaint, the person could decide to submit a complaint to the District or Province authorities. The Complainant could also decide to submit the complaint directly to the Courts. The complainant will bear the cost for these steps but will be reimbursed for their expenses by MOWRAM if their complaint is successful.

For land acquisition and involuntary resettlement, there will be a GRM set up to deal with complaints relating to unjust compensation, inadequacy of entitlements, inaccuracies in detailed measurements or errors in computation of the compensation payments, among others. The GDR through Inter-Ministerial Resettlement Committee (IRC) will facilitate the establishment of a Provincial Grievance Redress Committee (PGRC). The PGRC will be established by the Provincial Governor in consultation with the IRC. The composition of the PGRC and contact information of Focal GRC Person, Complaint Form, Registration Form and Sample Letter on Resolution are in **Appendices 2-5**.

A grievance redress committee (GRC) Kampong Cham province has been set up at the provincial level with the process starting from the commune office. The GRC includes only the relevant commune chief or village chief. The use of local organizations is allowed to assist affected heads of households in filing complaints, especially by those who are unable file a written complaint, as well as indigenous peoples with language problems. Assigned commune officials must make every effort to address the issues of affected household heads at the commune level through appropriate community consultations. All meetings will be recorded in each grievance process and a copy will be provided to the affected head of the household. Procedures for resolving grievances are set out in three (3) steps below.

However, prior to Step 1, the AH may informally seek the assistance of the commune chief or community elder to discuss and find an amicable solution to his/her complaint or grievance with the leader of the PRSC-WG. This is done verbally and informally, and no recording is required, and moreover its aim is to resolve the matter to avoid lodging formal written complaints. Any activities in resolving grievances at this stage (commune-level) will be recorded by the commune authorities and reported in the quarterly internal monitoring reports. If this problem solving does not resolve the complaint to the satisfaction of the AH, s/he can seek the formal route for lodging the grievance under the 3 steps below.

Step 1: The aggrieved AH can lodge a written complaint to the Head of the District Office. The AH can bring a community elder or representative to mediate in the matter at the district level. The IRC-WG will appraise the Head of the District Office for the matter. The conciliation meeting must be held, and a decision taken within 15 working days after the date of registration of the complaint by the District Office. If the complaint is resolved to the satisfaction of the AH, the IRC-WG will inform GDR's Department of Internal Monitoring and Data Management (DIMDM), which will review and seek the approval of the Director General of GDR for appropriate remedial action. The AH will be informed in writing by the GDR of the decision and the remedial action that will be taken within **15 working days** from the receipt of the letter from the District Office. If the complaint is rejected at this stage, the District Office will inform the AH in writing and if the AH is not satisfied with the result, s/he can proceed to the next step and lodge a written complaint to the GDR for resolution.

Step 2: The GDR, through its DIMDM will carry out a holistic review of the complaint and submit a report on its findings with the relevant recommendations, if any, to the Director General of GDR for a decision. It may also conduct a field visit to meet the aggrieved AH and the IRC-WG to gather the relevant details. The final report must be completed within **30 working days** from the date of receipt of the complaint and submitted to the Director General of GDR for a final decision within **5 working days** of receipt of the final report. If the subject matter requires a policy level intervention, it will be referred to the IRC for a decision in which case **10 more working days** will be added to the deadline for final decision.

Step 3: The AH will submit a written complaint with the PGRC through the Provincial Governor's Office. The AH or representative will be given an opportunity to present its case during the meeting and the PGRC may consider any compelling and special circumstances of the AH when reaching a decision. The GDR will send a representative, as a non-voting member, to provide an explanation for the rejection of the complaint at the second step by the GDR. The decision of the PGRC must be reached on a consensus basis and will be final and binding except when the matter relates to any policy of the Government. Decisions on Government policy matters on LAR is decided by the IRC. The PGRC will have **40 working days** from the date of receipt of the complaint to reach a final decision. The decision of the PGRC will be sent to the IRC through the GDR for endorsement before taking any remedial action.

The handling of the complaint ends at the Third Step. There are no fees or charges levied on the AH for the lodgment and processing of the complaints under the First, Second and Third Steps. However, as provided for in the Expropriation Law, the aggrieved AH can file a suit at the Provincial/Municipal Courts, as applicable, to seek a resolution. Such actions will be at the cost of the AH. At this stage, there is no involvement of the GDR, PRSC or IRC-WG unless there is a judicial order from the competent courts.

12. Who do I contact in case I need clarifications or have a problem/ complaint?

Given that the Project has been approved by ADB, the loans and grant agreements have been signed and the CFAVCSP is now being implemented, the contact persons and their mobile numbers are provided in the box below who can provide you with clarifications on the subproject related technical issues. At this point in time, the DED has been completed, the eligibility, loss of assets, the DMS and the compensation packages have been decided and, hence any complaints relating to them can be lodged.

The Project has been approved by ADB, the IRC of the MEF has facilitated in the establishment a GRM under which GRCs has been established at Commune, District, GDR and Provincial levels. These Committees have been set up and made operational before the commencement of the DMS. Any complaints or grievances on any aspects relating to incorrect measurements or compensation package will need to be sent to these Committees for resolution. The contact details of the GRC members are in **Appendix 2 of this PIB**.

For further information and feedback, please contact us by:

Contact numbers related to Land Acquisition and Involuntary Resettlement and Project in General

Mr. Heng Veasna, Deputy Team Leader of IRC-Working Group of General Department of Resettlement, Ministry of Economy and Finance, Phnom Penh

Telephone number: 078 885 588

Mr. Keo Sovantipheap, PMU-Ministry of Water Resources and Meteorology

Telephone number: 012 889 959

Appendix 1: Entitlement Matrix

No.	Type of Loss/Impact	Eligible Persons	Entitlement	Implementation Issues
1	Loss of Productive Land (agriculture, fishponds, etc.)			
1.1	Marginal loss (i.e., land lost is less than 10% and the unaffected portion is still economically viable for use or meets the expected yield)	Legal owners with legal or legalizable/Recognized right; and those covered by customary rights Non-legal users.	1) Cash compensation at replacement cost for the lost land 2) No cash assistance for loss of land, and 3) Cash compensation at replacement cost for non-land affected assets	- This loss will be confirmed and cleared with the AH during the DMS - AHs will be notified 3 months in advance of the actual date that the land will be acquired by the subproject, and - AHs will keep the land vacated within one month after receiving compensation. - AHs will be allowed to harvest their annual and perennial crops and timber products prior to construction.
1.2	Severe loss (i.e., lose 10% or more the total productive Assets).	Legal owners with legal or legalizable/Recognized right; and those covered by customary rights. Non-legal users	1) Cash compensation at replacement cost for the affected land, 2) Entitled to take part in the income rehabilitation program. 1) No cash assistance for loss of land. 2) Cash compensation at replacement cost for non-land affected assets. 3) Entitled to take part in the income restoration program.	1) This loss will be confirmed and cleared with the AH during the DMS. 2) AHs will be notified 3 months in advance of the actual date that the land will be acquired by the subproject. 3) AHs will keep the land vacated within one month after receiving compensation. 4) AHs will be allowed to harvest their annual and perennial crops and timber products prior to construction.
2	Loss of Residential and Commercial Land			
	Severely Affected subprojects with severe impacts will not be accepted	Legal Owners and those with recognized user/occupier rights with sufficient remaining land to rebuild house or structures:	i) Cash compensation at replacement cost at current market prices for land of similar type and category; and (ii) Contractor to improve remaining residential land at no cost to APs (e.g., land filling and levelling) so APs can rebuild on remaining land. 1) replacement land equal in area, type and	Subproject selection criteria will not accept any subproject that has severe impact, and no physical dislocation or actual resettlement accepted. The loss of residential land will be governed by those same principles covering voluntary donation of non-productive land.

No.	Type of Loss/Impact	Eligible Persons	Entitlement	Implementation Issues
		Without sufficient remaining land to rebuild house/structures: Users with temporary or lease rights Non legal occupiers	category and with registered title or secure tenure; OR 2) cash compensation at replacement cost if the area of remaining land is not viable to rebuild, APs may request that the project acquires the entire land holding. All transaction fees, taxes and other costs associated with the allocation of replacement land and/or issuance of title or secure tenure will be paid by the project. If the head of the household is married, the title will be issued in the names of both spouses. APs that hold a lease for use of construction or other non-agricultural land will receive compensation for affected assets and be assisted in finding new lease. Non-legal APs will not receive compensation for affected land. However, if they have no other residential land holdings, they will be allocated replacement land with leasehold tenure to rebuild their house.	
2.1	Marginal Loss (i.e. land is still economically viable for use or meets the Expected personal yield).	Legal owners with legal or legalizable/recognized right; and those covered by customary rights.	Cash compensation at replacement cost.	1) This loss will be confirmed and cleared with the AH during the DMS, 2) AH will be notified 3 months in advance of the actual date that the land will be acquired by the subproject, and 3) AHs will keep the land vacated within one
		Non-legal users.	No cash assistance or compensation for land, except affected properties	

No.	Type of Loss/Impact	Eligible Persons	Entitlement	Implementation Issues
			on the land.	month after receiving compensation.
3	Loss of Structures (house, house-cum-store; shops)			
3.1	Marginal impact (i.e., unaffected portion of the structure is still viable for use and no Relocation is required).	Owners of the structures with or without acceptable proof of ownership over the land; with or without a building permit.	1) Cash compensation at replacement cost for the affected portion with no deduction for depreciation, taxes, or salvageable materials	1) To be confirmed and cleared with AH during the DMS, and 2) AHs will remove them structures from the subproject areas within one month after receiving compensation. 3) AHs to get cash compensation at least one month ahead of civil works in the locality to provide them sufficient time to gradually re-organize the house and/or shop, thereby avoiding any disruption in the livelihood of the same.
3.2	Severe impact (i.e., entire main structure is affected, or the unaffected portion is no longer viable for continued use. The entire structure to be acquired).	Owners of the structures with or without acceptable proof of ownership of the land; with over the land; with or without building permit	1) Cash compensation at replacement cost for the entire structure with no deduction for depreciation, taxes, or salvageable materials. AHs will also receive assistance as outlined in Section 8 of this entitlement matrix.	1) AH will be notified 3 months in advance of the actual date that the land will be acquired by the subproject. 2) AH will remove their structures from the subproject areas within one month after receiving compensation. 3) AHs to get cash compensation at least one month ahead of civil works in the locality to provide them sufficient time to gradually re-organize the house and/or shop, thereby avoiding any disruption in the livelihood of the same.
4	Secondary Structures (kitchen, latrine, etc.)			
4.1	Loss of or damage to assets.	Owners of the structures with or without acceptable proof of ownership over the land; with or without a	Cash compensation at replacement cost for the affected portion of structure if it remains usable after repair.	To be confirmed and cleared with AH during the DMS, and AHs will remove their structures from the subproject areas within one

No.	Type of Loss/Impact	Eligible Persons	Entitlement	Implementation Issues
		building permit.	Cash compensation at replacement cost for the entire structure if it is no longer usable after reparation or difficult to be repaired.	month after receiving compensation. AH will be notified 1 month in advance of the actual date that the land will be acquired by the subproject.
5	Loss of Productive Trees and Crops			
5.1	Fruit trees	Owners regardless of tenure status.	Compensation for affected fruit/nut trees at full replacement cost, which shall be based on average annual value of the product multiplied by five years.	1)Advance notice to harvest at least three months before civil work, and 2) AHs will remove them crops and trees from the subproject areas within one month after receiving compensation. 3) AHs will be notified 3 months in advance of the actual date that the land will be acquired by the subproject.
5.2	Standing crops		Compensation for annual crops at replacement cost, which shall be based on the locally prevailing current market prices for the product, if the annual crops cannot be cultivated as usual.	
5.3	Standing timber/industrial trees		The Project shall re-establish a plantation at a new site, where applicable, and provide additional compensation to cover the cost of weeding and other plantation maintenance activities or compensation for affected trees at full replacement cost.	
6	Public and Common Property, Structures, Facilities			
6.1	Loss of or damage to assets	Affected communities or Concerned government agencies who own the assets.	1) Replacement by similar structures and quality at the area identified in consultation with affected communities and relevant authorities.	Communities to be notified at least 3 months in advance before the start of civil work in the area.
7	Loss of Livelihood / Income due to Loss of Productive or commercial Land			
7.1	Loss of 10% or more of total productive assets (Severely affected)	All AHs severely affected by loss of productive or commercial land regardless of tenure status.	Participate in income Rehabilitation Program such as agricultural enhancement program and agricultural training program.	Livelihood rehabilitation; AH allowed to harvest crops prior to construction
7.a	Loss of Livelihood/Income due to Disruption of Business			

No.	Type of Loss/Impact	Eligible Persons	Entitlement	Implementation Issues
7.2	Loss of income/ livelihood due to disruption of business or employment (marginal impacts)	i) <u>Unregistered Shop Owners or shop renter</u> (regardless of tenure status) and employees/ laborers of affected assets	One-time assistance of \$50 per HH.	This loss will be confirmed and cleared with the AH during the DMS.
		ii) <u>Registered Shop Owners or shop renter</u> (regardless of tenure status) and employees/ laborers of affected assets.	- Cash compensation equivalent to the daily net income (as reflected in tax receipts multiplied by the days of business disruption if it cannot be shifted to the adjacent area or shifted to the remaining area. - For employees, laborers' assistance in finding new jobs with equivalent wages are provided in the project area during construction.	
8	Vulnerable Cash Assistance			
8.1	Any loss or impact on vulnerable AHs	Vulnerable AHs	- One-time cash assistance of \$100 per vulnerable AH, - Priority for employment in the project construction works.	The vulnerable AHs will be confirmed during the DMS.
9	Impacts on structure/shop that require relocation (Transportation Allowances)			
9.1	Shop and stall made of light and temporary materials require relocation.	AHs whose shop or stall will be relocated or tenants who will relocate to new area	Transport Allowance= \$5-10	AHs and tenants will be informed 3 months in advance of the actual date relocation.
9.2	Shops and houses must be moved to adjacent area		Transport allowance =\$40	
9.3	Shops and houses must be moved within area in the same village		Transport Allowance= \$60	
9.4	Shop and house must be moved to another village		Transport allowance =\$70	
9.5	Tenants or promissory rights are required to move.	Tenants or promissory rights	(i) Rental Allowance equivalent to 3 months' rent fee; and,	

No.	Type of Loss/Impact	Eligible Persons	Entitlement	Implementation Issues
			(ii) Assistance in finding affordable alternative accommodation	
10	Temporary affected properties during construction			
10.1	Temporary affected land	Owner of temporary affected land.	1) No compensation for land if restored to pre-project conditions within 4 months after use. If the land is not returned and restored to pre-project, the contractor shall pay for expenses to restore it. 2) If the land is not returned, the AHS will receive compensation at replacement cost for the land. 3) The Contractor will be required by contract to pay these costs.	AHS will be notified 1 month in advance of the actual date Implementation Issues that the land will be temporarily used or affected by the subproject.
10.2	Damage to crops and trees during Construction (Temporary impact).	Owners of crops	• The Contractor will be required by contract to pay these costs. • Compensation for lost production in cash at replacement cost (value of lost production within ROW or for access) for the period of construction or maintenance. This will be a minimum one month harvest where damage occurs during growing season.	○ Construction and maintenance will be carried out so as to minimize damage. ○ Construction will be required by Contract to stay within COI. ○ As part of the civil works contract, all access roads/driveways to properties adjacent to the road will be repaired or replaced including culverts and other facilities, to a condition equal or better than the present.
10.3	Damage to fields and Associated Infrastructure including bund walls, drains, channels, etc.			○ The disruption period will be minimized as much as possible.

Appendix 2: Composition of PGRC and Focal GRC Contact Details

Composition of PGRC of Tboung Khmum.

The Table below summarizes the composition of the PGRC of Tboung Khmum Province.

Composition of Tboung Khmum Grievance Redress Committee

No.	Name	Title	Position Assigned
1	H.E. Dr. Cheam Chansophorn	Provincial Governor	Chairman
2	H.E. Hak Sokmakara	Vice-Governor	Vice Chairman
3	Mr. Mao Dung	Administrative Director of Provincial Hall	Vice Chairman
4	Mr. Pauch Sothearith	Head of PDLMUPC	Vice Chairman
5	Mr. Kim Titya	Head of PDEF	Vice Chairman
6	Mr. Boun Sengsovithia	Deputy Adm. Director of Provincial Hall	Member
7	Mr. Heng Piseth	Head of PDAFF	Member
8	Mr./Mrs.	District Governor of 7 districts	Member
9	Mr. Em Picheyratanak	Director of Provincial Hall Inter-sectoral Office	Member
10	Mr. Va Channeoun	Vice Director of Provincial Hall Inter-sectoral Office	Member
11	Mr. Va Sothea	Deputy Chief, Law and Safeguard Office	Member
12	Mr. Kim Panha	Officer, Law and Safeguard Office	Member
13	Mr. Sao Borasy	Officer, Law and Safeguard Office	Member
14	Mr. Keout Theng	Director of NAS organization	Member

GRM Focal Person Contact Details for Tboung Khmum

The contact details of each level of GRM are as follows:

Name and Contact of GRM Focal Person at Commune Level

No.	Name	Position	Contact
1	Dou Dim	Chong Cheach commune chief	097 296 8996
2	Heung Mengheang	Teuk Chrov commune chief	097 881 8429

Name and Contact of GRM Focal Person at District Level

No.	Name	Position	Contact
1	Meun Tharith	Tombae district chief	031 401 3333

Name and Contact of GRM Focal Person at GDR Level

No.	Name	Position	Contact
1	Mr. Sok Sopheak	Chief of Bureau, DIMDM	012 923 607
2	Mr. Sorn Kundy	Deputy Chief of Bureau, DIMDM	012 849 790

Name and Contact of GRM Focal Person at Provincial Level

No.	Name	Position	Contact
1	Nob Longdy	Deputy Provincial Governor	012 488 812
2	Hok Pichhos	Deputy Provincial Governor	012 883 106

Appendix 3: Individual Complaint Form

Project/Subproject Name: _____

Date of Complaint:		DMS No. (if known): _____
Name of Complainant:		
ID Number: Family Book:		
Contact (Mobile No):		
Address:		
Summary of Complaint:	1. 2. 3.	
List of Supporting Document/Evidence		

Name (Head of Household): _____

Sign/Thump Print: _____

Date: _____

Appendix 4: Complaint Registration

Project/Subproject Name: _____

Municipality-District-Khan: _____

Capital-Province: _____

Date of Receipt of Complaint	Case No.	Name and ID of Complaint		Main Points of Complaint
		Name of Complaint	ID Number Family Book	

Appendix 5: Letter of Khan/District Governor

Kingdom of Cambodia
Nation Religion King

Letter of Khan/District Governor

Municipal-District-Khan: _____

Capital-Province: _____

Individual Complaint		
Case No.		
Name of Complainant		
Date of Complaint		
Summary of Complaints (Same as in Individual Complaint Register Form)		
GRC Meeting Held:		
Date: _____	Time: _____	Venue: _____
Participated By		
Summary of Discussion		
Date of Field Inspection if any		
The Result and Decision of Meeting		
1. Reject- No basis as per Entitlement Matrix		
2. Has Merit- Complaint forwarded to Resettlement Department for necessary action		

Name:

Position: Head of District-Khan

Sign/Thump Print:

Date:

ខិត្តប័ណ្ណព័ត៌មានអំពីគម្រោង

គម្រោងខ្សែច្រវាក់ផលិតកម្មប្រកបដោយភាគរៈបរិស្ថាន

អនុគម្រោងកែលម្អនូវប្រព័ន្ធធារាសាស្ត្រអោយស្មុគស្មាញសម្រាប់ការប្រើប្រាស់ស្ថិតក្នុងតំបន់ស្រែចម្ការខេត្តត្បូងឃ្មុំ

គោលបំណងនៃកូនសៀវភៅព័ត៌មានសាធារណៈដែលហៅកាត់ថា PIB នេះគឺដើម្បីផ្តល់នូវព័ត៌មានដែលទាក់ទងទៅនឹងគម្រោង ខ្សែច្រវាក់ផលិតកម្មដោយភាគរៈបរិស្ថាន ដែលមានអក្សរកាត់ថា CFAVC សម្រាប់គ្រួសារដែលស្ថិតនៅតំបន់អនុគម្រោងរបស់ CFAVC ដែលអាចរងនូវ (ការផ្លាស់ប្តូរទីលំនៅការបាត់បង់ដីលំនៅដ្ឋានឬការបាត់បង់ទីជម្រក) ឬសេដ្ឋកិច្ច (ការបាត់បង់ដីធ្លី ទ្រព្យសម្បត្តិ បាត់បង់នូវប្រភពចំណូលឬមធ្យោបាយនៃការចិញ្ចឹមជីវិត) ដែលរងផលប៉ះពាល់ដោយការធ្វើទម្លាក់ដី និង ការងារដោះស្រាយផលប៉ះពាល់។

ក. ការពិពណ៌នាសង្ខេបអំពីគម្រោង

១. តើគម្រោងខ្សែច្រវាក់ផលិតកម្មប្រកបដោយភាគរៈបរិស្ថាន ជាគម្រោងអ្វី?

រាជរដ្ឋាភិបាលកម្ពុជាបានទទួលថវិកាកម្ចី និងជំនួយឥតសំណងពីធនាគារអភិវឌ្ឍន៍អាស៊ីសម្រាប់គម្រោង CFAVC ។ ហើយ គម្រោង នឹងទ្រទ្រង់លើការអភិវឌ្ឍន៍គោលនយោបាយឧស្សាហកម្ម ឆ្នាំ ២០១៥-២០២៥ មានគោលបំណងលើកកម្ពស់ កសិកម្មនៅខេត្តកំពង់ចាម ខេត្តត្បូងឃ្មុំ ខេត្តកំពត និងខេត្តតាកែវ (រូបផែនទីពណ៌លឿងខាងក្រោម)។

CFAVC នឹងជម្រុញភាពធន់នឹងអាកាសធាតុនៃហេដ្ឋារចនាសម្ព័ន្ធកសិកម្មសំខាន់ៗ និងជួយធ្វើពាណិជ្ជកម្មស្រូវពោតដំឡូងមី និងផលិតកម្មស្វាយ។ គម្រោងនឹងជួយបង្កើនផលិតភាព ដំណាំ ឱ្យប្រសើរឡើង ទាំងសមត្ថភាពសម្រាប់ការស្តុកទុក, ដំណើរ ការនាំចេញធ្វើតេស្តគុណភាពនិងសុវត្ថិភាព; និងលើកកម្ពស់ការប្រើប្រាស់ថាមពលពន្លឺព្រះអាទិត្យ និងឡឌីឌីឌី។ គម្រោង នឹងពង្រឹងសមត្ថភាពបច្ចេកទេស និងស្ថាប័នសម្រាប់កសិកម្មធ្លាតវីដែលធន់នឹងអាកាសធាតុ និងបង្កើតបរិយាកាសគោល នយោបាយដែលអាចធ្វើទៅបានសម្រាប់កសិពាណិជ្ជកម្មដែលធន់នឹងអាកាសធាតុ។ ទាំងនេះ នឹងជំរុញឱ្យមាននិរន្តរភាពប រិស្ថានរយៈពេលវែង និងបង្កើនប្រាក់ចំណេញសម្រាប់កសិករ និងកសិពាណិជ្ជកម្ម។ ក្រសួងចំនួន ៣ នឹងអនុវត្ត គម្រោង CFAVC រួមមានក្រសួងធនធានទឹកនិងឧតុនិយម ក្រសួងកសិកម្មរុក្ខាប្រមាញ់និងនេសាទ និងក្រសួងអភិវឌ្ឍន៍ជនបទ។

លទ្ធផលទី ២៖ លើកកម្ពស់វិស័យកសិកម្មនិងកសិកម្មប្រកបដោយភាពវៃឆ្លាត។ សកម្មភាពសំខាន់ៗរួមមាន៖

- (i) ការដាក់ពង្រាយពូជដែលធន់នឹងអាកាសធាតុ។
- (ii) ការពង្រឹងសមត្ថភាពសម្រាប់ការអនុវត្តផលិតកម្មនិងបច្ចេកវិទ្យាដែលងាយស្រួលសម្រាប់អាកាសធាតុ។ និង
- (iii) ការលើកកម្ពស់យន្តការនិងការពង្រីកផ្នែកកសិកម្ម។

លទ្ធផលទី ៣៖ ផ្តល់ភាពងាយស្រួលដល់បរិស្ថានសម្រាប់កសិពាណិជ្ជកម្មប្រកបដោយភាពល្អប្រសើរ។ សកម្មភាពសំខាន់ៗរួមមាន៖

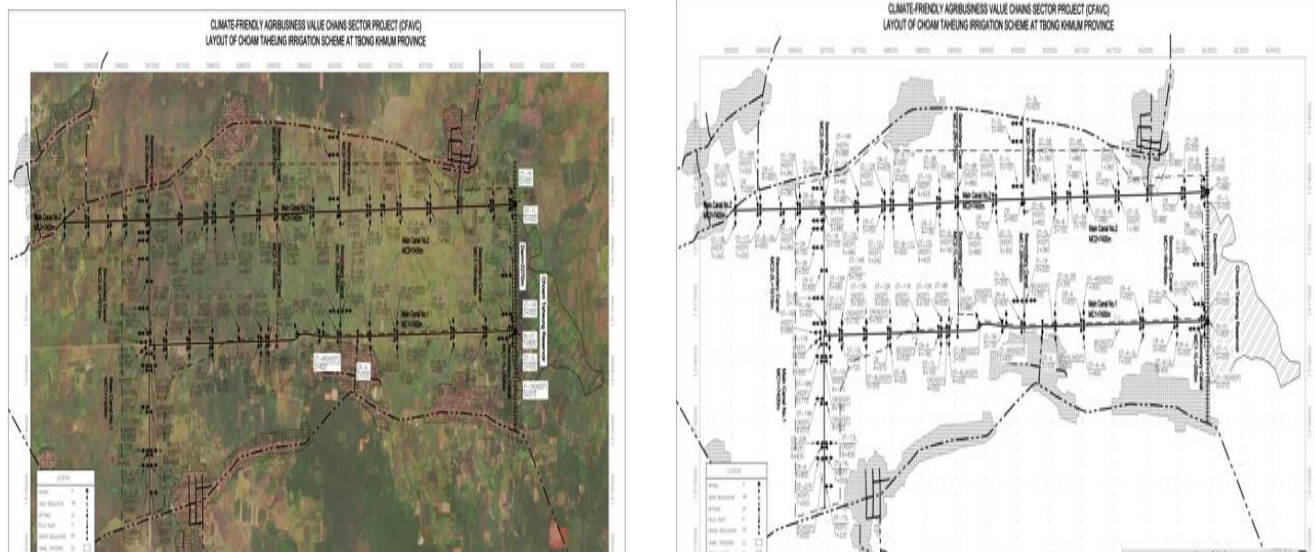
- (i) ការបង្កើតគោលនយោបាយនិងស្តង់ដារកសិពាណិជ្ជកម្មកសិកម្មដែលសមស្របទៅនឹងអាកាសធាតុ។
- (ii) ការលើកកម្ពស់ហិរញ្ញវត្ថុបែតងនិងយន្តការចែករំលែកហានិភ័យ។ និង
- (iii) គាំទ្រការគ្រប់គ្រង ហានិភ័យអាកាសធាតុតាមរយៈបច្ចេកវិទ្យាព័ត៌មាននិងគមនាគមន៍។

មានតែ លទ្ធផលទី១ ដែលមានសកម្មភាព នៃការធ្វើលទ្ធកម្មដី និងការងារដោះស្រាយផលប៉ះពាល់ (LAR)។

៣. តើកូនសៀវភៅ PIB នេះត្រូវបានរៀបចំសម្រាប់អ្វីខ្លះ?

PIB នេះគឺពិសេសសម្រាប់អនុគម្រោងគម្រោងប្រព័ន្ធធារាសាស្ត្រអាងស្តុកទឹកជាំតាហ្នឹង ដែលមាននៅក្នុងផែនទីខាងក្រោម។

ផែនទីទីតាំង និងប្លង់នៃគម្រោងប្រព័ន្ធធារាសាស្ត្រអាងស្តុកទឹកជាំតាហ្នឹង



៤. តើអនុគម្រោងប្រព័ន្ធធារាសាស្ត្រជាំតាហ្នឹង ជាអ្វី?

អនុគម្រោងប្រព័ន្ធធារាសាស្ត្រអាងស្តុកទឹកជាំតាហ្នឹង (អនុគម្រោង) នឹងស្តារនិងកែលម្អប្រព័ន្ធធារាសាស្ត្រដែលមានស្រាប់ដើម្បីជួយកសិករក្នុងការដាំដុះកសិផលពីរដងក្នុងមួយឆ្នាំ។ គម្រោងដែលបានស្នើឡើងសម្រាប់អនុគម្រោងធារាសាស្ត្រនេះ រួមមាន៖ ការស្តារនិងធ្វើឱ្យប្រសើរឡើងវិញនូវ ទំនប់មេ (2,270m) ប្រឡាយមេលេខ១ (7,400m) ប្រឡាយមេលេខ២ (7,400m) ប្រឡាយបន្ទាប់បន្សំ ៨ ((5,050m), ការសាងសង់សំណង់ធារាសាស្ត្រថ្មីចំនួន ៣៥, ការជួសជុលសំណង់ដែល

មានស្រាប់ចំនួន ២៧ទីតាំង, រក្សាសំណង់ដែលមានស្រាប់ចំនួន ៦៩ទីតាំង, ការរុះរើសំណង់ដែលមានស្រាប់ចំនួន ២០ទីតាំង និងសាងសង់អាគារថ្មីសម្រាប់គណៈកម្មការកសិកម្មប្រើប្រាស់ទឹក។

៥. តើអ្វីជាវិសាលភាព នៃការធ្វើលទ្ធកម្ម និងការងារដោះស្រាយផលប៉ះពាល់ ដែលអាចកើតមាននៅក្រោមអនុ-គម្រោង ?

ការងារភាគច្រើន នឹងត្រូវបានបង្កើតនៅក្នុងរង្វង់ដីដែលជាដីចំណីផ្លូវដែលមានស្រាប់។ ទោះជាយ៉ាងណាក៏ដោយ នឹងមានដីតូចចង្អៀតដែលមានទទឹងប្រហែល ១ ម ដែលត្រូវដោះស្រាយនៅតាមបណ្តោយផ្លូវប្រឡាយ ហើយពុំមានផលប៉ះពាល់លើដីឯកជន សំណង់បន្ទាប់បន្សំ ដំណាំ ដើមឈើហូបផ្លែនិងមិនហូបផ្លែដែលមាននៅក្នុងរបៀងនៃផលប៉ះពាល់ក្នុងពេលសាងសង់។ ផ្អែកទៅតាមការធ្វើប្រព័ន្ធប្រឡាយធារាសាស្ត្រ អត្ថប្រយោជន៍នឹងមានដល់គ្រួសាររងផលប៉ះពាល់ ជាមួយនឹងការផ្គត់ផ្គង់ទឹកទៀងទាត់នៅក្នុងរដូវវស្សា និងរដូវប្រាំង ពួកគេនឹងអាចធ្វើការបរិច្ចាគចំណែកដីតូចចង្អៀត សំណង់បន្ថែមនិងដើមឈើ។

៦. តើដីចំណីផ្លូវ និង របៀងនៃផលប៉ះពាល់នៃអនុគម្រោងជាអ្វី ?

ដីចំណីផ្លូវគឺជាដីឬកម្មសិទ្ធិរបស់រដ្ឋ។ របៀងនៃផលប៉ះពាល់គឺជាកន្លែងដែលការងារត្រូវស្ដារ នឹងត្រូវអនុវត្ត។ ប្រជាជនដែលរងផលប៉ះពាល់នៅក្នុងរបៀងនៃផលប៉ះពាល់នឹងត្រូវរើចេញដើម្បីអនុញ្ញាតឱ្យការងារស៊ីវិលនៃផ្លូវត្រូវបានអនុវត្ត។

៧. តើថ្ងៃឱសានវាទនៃសិទ្ធិទទួលបាន ជាអ្វី ?

កាលបរិច្ឆេទកំណត់កាលបរិច្ឆេទឱសានវាទបង្កើតឡើងដោយរដ្ឋាភិបាលកម្ពុជាដែលបង្កើតឡើងនូវសិទ្ធិទទួលបានរបស់ក្រុមគ្រួសាររងផលប៉ះពាល់ / អ្នកដែលរងផលប៉ះពាល់ សម្រាប់ការទទួលបានសំណងនិងជំនួយ នូវការតាំងទីលំនៅថ្មីក្រោមអនុគម្រោង ។ មានតែ Ahs ដែលស្ថិតនៅក្នុងរបៀងផលប៉ះពាល់ (COI) ឬក៏បាត់បង់ទ្រព្យសម្បត្តិមុនថ្ងៃឱសានវាទ(COD) នឹងមានសិទ្ធិទទួលបានសំណង និងជំនួយ។ ជនណាកាន់កាប់ដីឬពង្រីករចនាសម្ព័ន្ធឬកែលំអគេហដ្ឋានរបស់ខ្លួនក្រោយពេលឱសានវាទនេះ នឹងមិនមានសិទ្ធិទទួលបានសំណងឡើយ។ ទ្រព្យសម្បត្តិដូចជាសំណង់ដែលបានសាងសង់ (ឬប្រព័ន្ធរចនាសម្ព័ន្ធដែលមានស្រាប់) ដំណាំដើមឈើហូបផ្លែ និងទ្រព្យសម្បត្តិស្រដៀងគ្នាផ្សេងទៀតបន្ទាប់ពីកាលបរិច្ឆេទកំណត់នឹងមិនត្រូវបានផ្តល់សំណងឡើយ។ កាលបរិច្ឆេទឱសានវាទគឺថ្ងៃទី០៧ ខែមេសា ឆ្នាំ២០២៥ សម្រាប់អនុគម្រោងនេះ គឺជាថ្ងៃប្រជុំផ្សព្វផ្សាយជាសាធារណៈ ពេលចាប់ផ្តើមធ្វើការអង្កេតបឋមនិងវាស់វែងលម្អិត។

៨. តើបញ្ជីទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់ និងការអង្កេតវាស់វែងលម្អិតជាអ្វី ហើយត្រូវធ្វើឡើងនៅពេលណា ?

ការអង្កេតវាស់វែងលម្អិត (DMS) គឺជាការវាស់វែងរាល់ទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់ ដែលមាននៅក្នុងរបៀងផលប៉ះពាល់រួមមានដីធ្លីផ្ទះនិងសំណង់ ហាង ដំណាំ និងដើមឈើ ទាំងអស់។ វានឹងត្រូវបានធ្វើឡើង ដើម្បីកត់ត្រានិងយល់ព្រមលើការខាតបង់របស់គ្រួសាររងផលប៉ះពាល់ នៅក្រោយពេលបង្កបង្កើតទសលម្អិត និងការបោះបង្គោលព្រំត្រូវបានបញ្ចប់។ វានឹងត្រូវធ្វើឡើងសម្រាប់ AH នីមួយៗដើម្បីកត់ត្រា និងយល់ព្រមលើការបាត់បង់ទ្រព្យសម្បត្តិទាំងអស់របស់ AH ។ ប្រជាពលរដ្ឋដែលរងផលប៉ះពាល់ និងអាជ្ញាធរមូលដ្ឋាននឹងត្រូវបានជូនដំណឹងជាមុនអំពី DMS នេះ។ ការវាស់វែងលម្អិតនេះក៏នឹងប្រមូល

ព័ត៌មាននិងទិន្នន័យស្តីពីស្ថានភាពសេដ្ឋកិច្ចសង្គមប្រភពនៃជីវភាពប្រាក់ចំណូលភាពងាយរងគ្រោះជាដើមដែលត្រូវបានធ្វើឡើងដោយមានវត្តមានរបស់គ្រួសាររងផលប៉ះពាល់ និងបានចូលរួមដោយមន្ត្រីឃុំឃ្លាតមិ។ DMS នឹងក្លាយជាមូលដ្ឋានសម្រាប់ការគណនាកញ្ចប់សំណងសម្រាប់គ្រួសារនីមួយៗដែលរងផលប៉ះពាល់។

៩. តើសំណង និងសិទ្ធិទទួលបានសំណង មានអ្វីខ្លះ ?

គ្រួសារ / ប្រជាពលរដ្ឋដែលរងផលប៉ះពាល់ពីគម្រោង មានសិទ្ធិទទួលបានសំណង សម្រាប់ទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់ក្រោមគោលការណ៍សំណងសំខាន់ៗដូចខាងក្រោម៖

- ការផ្តល់សំណងជាមុនដោយត្រឹមត្រូវ និងយុត្តិធម៌
- ការផ្តល់សំណងពេញលេញ មុនពេលធ្វើការដកហូត
- សំណងត្រូវផ្អែកលើអត្រាថ្លៃជំនួសនៃទ្រព្យសម្បត្តិដែលបាត់បង់ក្នុងតម្លៃទីផ្សារ ដែលនឹងត្រូវបានកំណត់ដោយទីប្រឹក្សាឯករាជ្យតាមរយៈការសិក្សាថ្លៃជំនួស ដោយគ្មានការកាត់ចេញណាមួយសម្រាប់ការរំលោះ សម្ភារៈនៅសល់ពីការរុះរើ និងថ្លៃដើមប្រតិបត្តិការ។

(ក) តើខ្ញុំនឹងទទួលបានសំណងសម្រាប់ការបាត់បង់ដីដែរឬទេ ?

ដីចំណីផ្លូវ គឺជាដីរបស់រដ្ឋ ហើយគ្រួសារដែលរងផលប៉ះពាល់ដែលកាន់កាប់ដីនៅលើដីចំណីផ្លូវ នឹងមិនត្រូវបានផ្តល់សំណងសម្រាប់ដីនោះទេ។ តែទោះបីយ៉ាងនេះក្តី ពួកគេនឹងត្រូវទទួលបានសំណងសម្រាប់ការបាត់បង់ណាមួយដែលបណ្តាលមកពីការប្រើប្រាស់ដី ឧទាហរណ៍ដូចជា មានតុប/ហាងប្រកបរបរ, ការដាំដំណាំឬដើមឈើហូបផ្លែ ឬការសាងសង់សំណង់ផ្សេងៗ។

ក្នុងករណី បន្ទាប់ពីគំនូសប្លង់បច្ចេកទេសលម្អិតត្រូវបានបញ្ចប់ ប្រសិនបើមានការចាំបាច់ក្នុងការធ្វើលទ្ធកម្មដីឯកជនសម្រាប់ការអភិវឌ្ឍ ឬដីដែលប្រជាពលរដ្ឋមានសិទ្ធិស្របច្បាប់ស្ថិតនៅក្រៅដីចំណីផ្លូវ ដោយសារការផ្លាស់ប្តូរការគូសប្លង់ នោះសំណងនឹងត្រូវផ្តល់ជូនតាមថ្លៃជំនួស នៃដីដែលត្រូវធ្វើលទ្ធកម្ម។

(ខ) តើខ្ញុំនឹងទទួលបានសំណងសម្រាប់ផ្ទះ និងសំណង់ឯកជនដែរឬទេ ?

អ្នកនឹងទទួលបានសំណង។ ផ្ទះ និងសំណង់ឯកជន ដែលរងផលប៉ះពាល់ពីគម្រោង នឹងត្រូវផ្តល់សំណងដោយថ្លៃជំនួសដោយមិនរាប់បញ្ចូលការរំលោះ, សម្ភារៈនៅសល់បន្ទាប់ពីការរុះរើ ឬថ្លៃដើមប្រតិបត្តិការនោះទេ។ សំណង រួមមាន របង អណ្តូង ផ្លូវ ថ្មើរជើងក្រាលបេតុង និងសំណង់ស្រដៀងគ្នាផ្សេងទៀត ដែលប្រជាពលរដ្ឋអាចបង្ហាញពីភាពជាម្ចាស់កម្មសិទ្ធិ។ ប្រសិនបើផ្ទះឬសំណង់ ត្រូវបានរងផលប៉ះពាល់ដោយផ្នែក នោះសំណងនឹងត្រូវផ្តល់ជូនសម្រាប់តែផ្នែកដែលរងផលប៉ះពាល់ប៉ុណ្ណោះ លើកលែងតែអាចបង្ហាញថាបន្ទាប់ពីការដកចេញនូវផ្នែកដែលរងផលប៉ះពាល់ ផ្នែកដែលនៅសល់មិនអាចប្រើប្រាស់បានទៅទៀត។ ក្នុងករណីបែបនេះ សំណងនឹងត្រូវផ្តល់ជូនសម្រាប់សំណង់ទាំងមូល។

(គ) តើខ្ញុំនឹងទទួលបានសំណងសម្រាប់ដំណាំ និងដើមឈើហូបផ្លែរបស់ខ្ញុំដែរឬទេ ?

អ្នកនឹងទទួលបានសំណង។ ចំពោះដំណាំមិនទាន់ប្រមូលផល ដែលមិនអាចប្រមូលផលបាន នៅពេលដែលមានការធ្វើលទ្ធកម្មដី ប្រជាពលរដ្ឋ នឹងទទួលបានសំណងសម្រាប់ដំណាំដែលបាត់បង់តាមថ្លៃជំនួស។ សម្រាប់ដំណាំដែលប្រមូលផលប្រចាំឆ្នាំ

ដែលត្រូវបានដាំដុះតាមរដូវកាលប្រចាំឆ្នាំ ដូចជា ស្រូវ សំណង់នឹងផ្តល់ជាប្រាក់ចំណូលសុទ្ធ X ១ ឆ្នាំ។ លើសពីនេះទៀត ការជូនដំណឹងដល់ប្រជាពលរដ្ឋក្នុងពេលវេលាសមស្រប នឹងត្រូវធ្វើឡើងដើម្បីឱ្យពួកគេអាចប្រមូលផលដំណាំបានទាន់ពេលវេលា។

ចំពោះដំណាំហូបផ្លែដែលមានអាយុច្រើនឆ្នាំ (ដើមឈើដែលផ្តល់ផលច្រើនឆ្នាំ ដូចជា ដើមស្វាយ) ប្រជាពលរដ្ឋ នឹងត្រូវបានផ្តល់សំណងចំពោះការបាត់បង់ដើមឈើហូបផ្លែ ដែលនឹងគិតគូរពីការបាត់បង់ប្រាក់ចំណូល និងពេលវេលាដែលត្រូវការដើម្បីដាំដុះ ឡើងវិញ។

(ឃ) ប្រសិនបើផ្ទះ ឬតូបរបស់ខ្ញុំត្រូវផ្លាស់ទីតាំង តើមានជំនួយសម្រាប់ការផ្លាស់ប្តូរទីតាំងដែរឬទេ ?

អ្នកនឹងទទួលបានជំនួយ។ ក្នុងដំណាក់កាលរចនាគំនូសប្លង់បច្ចេកទេសលម្អិត មានការគិតគូរបញ្ចៀសផលប៉ះពាល់ ដើម្បីជៀសវាងមានការផ្លាស់ទីលំនៅរបស់ប្រជាពលរដ្ឋ។

ចំពោះការផ្លាស់ទីតាំងផ្ទះ ឬសំណង់ប្រហាក់ប្រហែលគ្នាពីរបៀងនៃផលប៉ះពាល់ នឹងត្រូវផ្តល់ប្រាក់ឧបត្ថម្ភក្នុងរយៈពេលអន្តរកាល, ជំនួយក្នុងការផ្លាស់ប្តូរទីតាំង និងជម្រើសក្នុងការផ្លាស់ប្តូរទៅទីតាំងថ្មី។ វាអាចមានការតម្រូវឱ្យផ្លាស់ប្តូរទីតាំងតូបមួយចំនួនដែលត្រូវធ្វើការផ្លាស់ប្តូរទីតាំងដោយខ្លួនឯង ឬត្រូវរំកិលចេញពីទីតាំងដីចំណីផ្លូវ។ ក្រៅពីសំណងសម្រាប់សំណង់ក្នុងអត្រាថ្លៃ ជំនួស ប្រាក់ឧបត្ថម្ភអន្តរកាលនឹងត្រូវផ្តល់ជូន មានដូចជា៖ (i) ប្រាក់ឧបត្ថម្ភដឹកជញ្ជូនសរុបមួយលើក សម្រាប់ការរុះរើទ្រព្យសម្បត្តិ (ii) ប្រាក់ឧបត្ថម្ភសម្រាប់ការបាត់បង់ប្រាក់ចំណូលពីអាជីវកម្ម។

(ង) ក្នុងករណីដែលជីវភាពរបស់ខ្ញុំរងផលប៉ះពាល់ តើខ្ញុំនឹងទទួលបានសំណងដូចម្តេច ?

ការអង្កេតវាស់វែងលម្អិត នឹងកត់សម្គាល់អំពីជីវភាពរស់នៅរបស់ប្រជាពលរដ្ឋ ថាតើមានផលប៉ះពាល់អ្វីខ្លះដល់ពួកគេ។ នៅក្រោមក្របខ័ណ្ឌគម្រោង សម្រាប់ប្រជាពលរដ្ឋដែលជីវភាពរស់នៅរបស់ពួកគេរងផលប៉ះពាល់ ពួកគេនឹងទទួលបានសំណងចំពោះការបាត់បង់ប្រាក់ចំណូល ឬការគាំទ្រដល់ការស្តារជីវភាពឡើងវិញ៖

- (i) ការបាត់បង់ប្រាក់ចំណូលក្នុងកំឡុងពេលអន្តរកាលនៅពេលដែលមានការផ្លាស់ប្តូរទីតាំង។ សំណង នឹងគ្របដណ្តប់លើការបាត់បង់ប្រាក់ចំណូលក្នុងកំឡុងពេលប្រជាពលរដ្ឋផ្លាស់ប្តូរទីតាំងដោយខ្លួនឯង។
- (ii) នៅពេលដែលប្រភពចំបងនៃការចិញ្ចឹមជីវិតត្រូវបានបាត់បង់ជាអចិន្ត្រៃយ៍ កម្មវិធីស្តារ/ទ្រទ្រង់ជីវភាពឡើងវិញ នឹងត្រូវបានផ្តល់ជូនដើម្បីជួយគ្រួសារ/ប្រជាពលរដ្ឋ ដើម្បីកសាង/ស្តារជីវភាពឡើងវិញ។

ក្នុងករណីដែលប្រជាពលរដ្ឋ ត្រូវបានចាត់ថាជាជនក្រីក្រ និងងាយរងគ្រោះ ប្រាក់ជំនួយជាសាច់ប្រាក់នៅក្នុងកម្មវិធីស្តារប្រាក់ចំណូលឡើងវិញ នឹងផ្តល់ជូនទ្វេដង។ លើសពីនេះទៀត គម្រោងនឹងស្វែងរកឱកាសការងារក្នុងអំឡុងពេលសាងសង់ជូនពួកគាត់។

១០. តើថ្លៃជំនួសនឹងត្រូវសិក្សាដោយរបៀបណា ហើយសំណងនឹងត្រូវគណនាដូចម្តេច ?

ការទូទាត់សំណងនឹងត្រូវធ្វើឡើងដោយផ្អែកលើតម្លៃទីផ្សារ ឬថ្លៃដើមនៃការជំនួសទ្រព្យសម្បត្តិដែលបាត់បង់ដោយមិនចាំបាច់ កាត់ប្រាក់សម្រាប់សម្ភារៈដែលនៅសល់ ឬ ថ្លៃប្រតិបត្តិការឡើយ។ ការសិក្សាតម្លៃជំនួស នឹងធ្វើឡើងដោយទីប្រឹក្សារងការជួយ នឹងអនុវត្ត អំពីអត្រាទីផ្សារសម្រាប់ទ្រព្យសម្បត្តិគ្រប់ប្រភេទដែលមាននៅក្នុងគម្រោងឬតំបន់អនុគម្រោង ហើយរៀបចំ អត្រា ឯកតាសម្រាប់ប្រភេទនីមួយៗនៃទ្រព្យសម្បត្តិដែលបាត់បង់។ ទាំងនេះនឹងត្រូវបាន គណនាតម្លៃជំនួសហើយនឹងត្រូវបានប្រើ ដើម្បីរៀបចំវិកាសម្រាប់ការតាំងទីលំនៅថ្មី។ អគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ របស់ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុនឹង ជ្រើសរើសទីប្រឹក្សាសិក្សាតម្លៃជំនួស (RCS) មុនពេលចាប់ផ្តើមការអង្កេតវាស់វែងលម្អិត។

១១. តើខ្ញុំមានសិទ្ធិក្នុងការតវ៉ាអំពីការមិនយល់ស្រប, បញ្ហាសំណង, បញ្ហាពាក់ព័ន្ធនឹងការដោះស្រាយផលប៉ះពាល់ ឬបញ្ហាផ្សេងៗបានដែរឬទេ ? ប្រសិនបើបាន តើត្រូវធ្វើដូចម្តេច ?

ត្រូវហើយអ្នកមានសិទ្ធិដាក់ពាក្យបណ្តឹងរបស់អ្នកទៅកាន់គណៈកម្មាធិការដោះស្រាយបណ្តឹងតវ៉ា (GRC) ប្រសិនបើអ្នកមិន ច្បាស់ឬមិនសប្បាយចិត្តនឹងសកម្មភាពតាំងទីលំនៅថ្មី។ ព័ត៌មានសមាជិក នៃ GRC ត្រូវបានផ្តល់នៅក្នុងឧបសម្ព័ន្ធទី២ នៃ PIB ហើយនឹងត្រៀមខ្លួនគ្រប់ពេលដើម្បីជួយអ្នក។ ការព្យាយាមដោះស្រាយបណ្តឹងតវ៉ារបស់អ្នកនឹងចាប់ផ្តើមនៅថ្នាក់ភូមិតាមរយៈ មេភូមិ។ ទោះយ៉ាងណាអ្នកអាចដាក់ពាក្យបណ្តឹងពាក្យសំដីទៅកាន់សមាជិកណាមួយនៃ GRC (ឧទាហរណ៍នៅភូមិឃុំឬក្រុម ការងារដោះស្រាយផលប៉ះពាល់) ។ GRC នឹងកត់ត្រានិងចងក្រងពាក្យបណ្តឹងរបស់អ្នកហើយណែនាំអ្នកអំពីដំណោះស្រាយ។ មានយន្តការដោះស្រាយបណ្តឹងតវ៉ា (GRM) ចំនួនពីរឈុតដែលត្រូវបានបង្កើតឡើងសម្រាប់ការបរិច្ចាគដោយស្ម័គ្រចិត្ត និង សម្រាប់ការធ្វើលទ្ធកម្មដី និងការដោះស្រាយផលប៉ះពាល់។

- សម្រាប់ការបរិច្ចាគដោយស្ម័គ្រចិត្តក្រសួងធនធានទឹក នឹងបង្កើតគម្រោងមួយសម្រាប់ទទួលនិងដោះស្រាយបណ្តឹងតវ៉ា ឬ បណ្តឹងតវ៉ាស្តីពីការបរិច្ចាគដោយស្ម័គ្រចិត្តបរិស្ថាននិងសុវត្ថិភាពសង្គមផ្សេងទៀតរួមទាំងបញ្ហាការអនុវត្តគម្រោងដែលលើក ឡើងដោយបងប្អូន។ មន្ត្រីសង្គមនិងបរិស្ថាន (SEOs) នៃក្រសួងអភិវឌ្ឍន៍ជនបទ នឹងទទួលខុសត្រូវចំពោះការទទួលនិង ការដោះស្រាយដោយស្មើភាព គោលបំណង និងការព្រួយបារម្ភបណ្តឹងដែលលើកឡើងដោយគ្រួសារដែលរងផលប៉ះពាល់ ដោយសារតែការបរិច្ចាគដីដោយស្ម័គ្រចិត្ត។ ការទទួលខុសត្រូវដ៏ទូលំទូលាយរបស់ពួកគេក្នុងការគ្រប់គ្រងសារទុក្ខរួមមាន៖
 - បង្កើតនិងផ្សព្វផ្សាយអំពីនីតិវិធីនៃការគ្រប់គ្រងសារទុក្ខក្នុងដំណើរការពិគ្រោះយោបល់អំពីការបរិច្ចាគដីដោយស្ម័គ្រ ចិត្ត។
 - ការទទួលពិនិត្យពិនិត្យ ស៊ើបអង្កេត និងតាមដានបណ្តឹងតវ៉ា។
 - ការដោះស្រាយបណ្តឹងតវ៉ាតាមដាននិងវាយតម្លៃការបំពេញនូវកិច្ចព្រមព្រៀងដែលសម្រេចបានតាមរយៈយន្តការបណ្តឹងតវ៉ា
 - ការត្រួតពិនិត្យ និងវាយតម្លៃការបំពេញកិច្ចព្រមព្រៀងដែលសម្រេចបានតាមរយៈយន្តការបណ្តឹងតវ៉ា។ ដើម្បីផល ប្រយោជន៍របស់ភាគីពាក់ព័ន្ធទាំងអស់យន្តការសារទុក្ខត្រូវបានរៀបចំឡើងក្នុងគោលបំណងដោះស្រាយវិវាទនៅពេល

ដែលអាចធ្វើទៅបាន។ រយៈពេលដែលបានណែនាំសម្រាប់ដំណោះស្រាយបណ្តឹងត្រូវតែត្រូវបានស្វែងរកក្នុងរយៈពេលពីរសប្តាហ៍។ ទោះយ៉ាងណាក៏ដោយក្នុងករណីដែលបណ្តឹងមិនអាចដោះស្រាយបានភ្លាមៗនោះវាត្រូវតែបន្ត។

- ការដោះស្រាយបណ្តឹងដំបូងកម្រិតទីមួយតាម កំរិតភូមិ និង / ឃុំដូចបានរៀបរាប់ខាងលើតើអ្នកណាអាចដោះស្រាយបញ្ហាបាននៅនឹងកន្លែង។ កំរិតភូមិ / ឃុំត្រូវតែត្រូវបានដាក់កំណត់បណ្តឹងតវ៉ានិងវិធីដែលវាត្រូវបានដោះស្រាយហើយទាក់ទងទៅ SEOs របស់ MRD។ ក្នុងករណីដែលបណ្តឹងតវ៉ាទាក់ទងនឹងវិវាទការងារពាក្យបណ្តឹងសារទុក្ខអាចត្រូវបានបញ្ជូនទៅអ្នកម៉ៅការនិង / ឬបុគ្គលិកធនធានមនុស្សរបស់អ្នកម៉ៅការដោយផ្ទាល់។
- ក្នុងករណីដែលបណ្តឹងតវ៉ាមិនអាចត្រូវបានដោះស្រាយនៅនឹងកន្លែងនោះអ្នកដាក់ពាក្យបណ្តឹងកម្រិតទី ២ នឹងអាចដាក់ពាក្យបណ្តឹងតវ៉ាផ្ទាល់ជាមួយ មន្ត្រីបរិស្ថានឬសង្គមរបស់សាមីក្រសួង ។ ត្រូវបានជូនដំណឹងអំពីព័ត៌មានទំនាក់ទំនងរបស់ SEO ក្នុងអំឡុងពេលពិគ្រោះយោបល់។ SEO នឹងអាចកត់ត្រានូវសារទុក្ខនិងផ្តល់ដំណោះស្រាយក្នុងរយៈពេល ១៥ ថ្ងៃ ដោយពិគ្រោះយោបល់ជាមួយអ្នកគ្រប់គ្រងនិងនាយកគម្រោង MRD តាមតម្រូវការ។ នេះអាចរាប់បញ្ចូលដំណើរទស្សនកិច្ចទៅកាន់ទីតាំងគម្រោងដោយ SEO ប្រសិនបើចាំបាច់។ មិនគិតថ្លៃឬថ្លៃសេវាសម្រាប់ការស្នាក់នៅនិងដំណើរការនៃបណ្តឹងសារទុក្ខសម្រាប់កម្រិតមួយឬពីរឡើយ។

➢ ក្នុងករណីដែលពាក្យបណ្តឹងនៅតែមិនអាចដោះស្រាយបានឬមិនបានដោះស្រាយចំពោះការពេញចិត្តរបស់បុគ្គលដែលប្តឹងតវ៉ាបុគ្គលនោះអាចសំរេចចិត្តដាក់ពាក្យបណ្តឹងទៅអាជ្ញាធរស្រុកឬខេត្ត។ អ្នកប្តឹងតវ៉ាក៏អាចសំរេចចិត្តដាក់ពាក្យបណ្តឹងដោយផ្ទាល់ទៅតុលាការដែរ។ អ្នកប្តឹងតវ៉ានឹងទទួលបានការចំណាយសម្រាប់ជំហានទាំងនេះប៉ុន្តែនឹងត្រូវផ្តល់សំណងសម្រាប់ការចំណាយរបស់ពួកគេដោយក្រសួងអភិវឌ្ឍន៍ជនបទនិងឧតុនិយមប្រសិនបើពាក្យបណ្តឹងរបស់ពួកគេទទួលបានជោគជ័យ។

ចំពោះការធ្វើលទ្ធកម្មដី និងការដោះស្រាយផលប៉ះពាល់ នឹងមាន GRM បង្កើតឡើងដើម្បីដោះស្រាយបណ្តឹង ទាក់ទងនឹងសំណងមិនសមហេតុផលសិទ្ធិមិនត្រឹមត្រូវក្នុងការវាស់វែងលម្អិតឬកំហុសក្នុងការគណនាការទូទាត់សំណង។ GDR តាមរយៈគណៈកម្មការអន្តរក្រសួងដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ (IRC) នឹងជួយសម្រួលដល់ការបង្កើតគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ខេត្ត (PGRC)។ PGRC នឹងត្រូវបានបង្កើតឡើងដោយអភិបាលខេត្តដោយពិគ្រោះយោបល់ជាមួយ IRC។ សមាសភាពរបស់ PGRC និងព័ត៌មានទំនាក់ទំនងដោយមានទម្រង់ពាក្យបណ្តឹងក្នុងឧបសម្ព័ន្ធទី២-៥។

➢ គណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ានឹងត្រូវបានបង្កើតឡើងនៅថ្នាក់ខេត្តជាមួយនឹងដំណើរការដែលចាប់ផ្តើមពីការិយាល័យឃុំ។ ដូចដែលបានអនុវត្ត GRC រួមមានតែមេឃុំ ឬមេភូមិដែលពាក់ព័ន្ធប៉ុណ្ណោះ។ ការប្រើប្រាស់អង្គការក្នុងស្រុកត្រូវបានអនុញ្ញាតិអោយជួយមេគ្រួសាររងផលប៉ះពាល់ក្នុងការដាក់ពាក្យបណ្តឹងជាពិសេសអ្នកដែលមិនដឹងពីរបៀបរៀបចំពាក្យបណ្តឹងជាលាយលក្ខណ៍អក្សរ ក៏ដូចជាជនជាតិដើម / ជនជាតិដើមភាគតិចដែលមានបញ្ហាភាសា។ មន្ត្រីឃុំដែលបានចាត់តាំងត្រូវខិតខំប្រឹងប្រែងដើម្បីដោះស្រាយបញ្ហារបស់មេគ្រួសាររងផលប៉ះពាល់នៅថ្នាក់ឃុំ សង្កាត់តាមរយៈការពិគ្រោះយោបល់សហគមន៍សមស្រប។ រាល់ការប្រជុំទាំងអស់នឹងត្រូវកត់ត្រានៅក្នុងដំណើរការបណ្តឹងតវ៉ានីមួយៗហើយច្បាប់ចម្លងត្រូវផ្តល់ជូនមេគ្រួសាររងផលប៉ះពាល់។ នីតិវិធីសម្រាប់ដោះស្រាយបណ្តឹងតវ៉ាត្រូវបានកំណត់ដូចខាងក្រោម។

ទោះបីយ៉ាងណាក៏ដោយ មុនជំហានទី១ គ្រួសាររងផលប៉ះពាល់អាចសុំជំនួយពីមេឃុំ ឬចាស់ទុំតំណាងសហគមន៍ ដើម្បីពិភាក្សានិងស្វែងរកដំណោះស្រាយចំពោះបណ្តឹងសារទុក្ខរបស់ពួកគាត់ជាមួយប្រធាន PRSC-WG។ នីតិវិធីនេះ ត្រូវបានធ្វើឡើងតាមរយៈពាក្យសុំដីមិនផ្លូវការ និងពុំមានការកត់ត្រា ក្នុងគោលបំណងដើម្បីដោះស្រាយបញ្ហា បញ្ចៀសពីការប្តឹងតវ៉ាជាលាយលក្ខណ៍អក្សរជាផ្លូវការ។

ដំណាក់កាលទី១៖ ប្រជាពលរដ្ឋរងផលប៉ះពាល់ដែលជាដើមបណ្តឹង អាចដាក់ពាក្យបណ្តឹងជាលាយលក្ខណ៍អក្សរទៅកាន់ប្រធានការិយាល័យស្រុកដែលជាតំបន់អនុគម្រោងស្ថិតនៅ។ ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចនាំចាស់ទុំ ឬអ្នកតំណាងក្នុងសហគមន៍ទៅជាមួយ ដើម្បីជួយសម្របសម្រួលនៅថ្នាក់ស្រុក។ ក្រុមការងារអន្តរក្រសួងនឹងវាយតម្លៃការដោះស្រាយបណ្តឹងនៅថ្នាក់ស្រុក។ កិច្ចប្រជុំពិភាក្សា និងការសម្រេចចិត្តផ្សេងៗ នឹងត្រូវធ្វើឡើងក្នុងរយៈពេល១៥ថ្ងៃ គិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងដោយការិយាល័យស្រុក។ ប្រសិនបើប្រជាពលរដ្ឋរងផលប៉ះពាល់ពេញចិត្តនឹងការដោះស្រាយបណ្តឹងហើយនោះ ក្រុមការងារអន្តរក្រសួងនឹងជូនដំណឹងដល់នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នៃអគ្គនាយកដ្ឋានគ្រប់គ្រងទិន្នន័យនិងវាយតម្លៃផ្ទៃក្នុង ដើម្បីធ្វើការពិនិត្យ និងអនុម័តដោយអគ្គនាយកនៃនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ ដើម្បីធ្វើសកម្មភាពដោះស្រាយដ៏សមស្រប។ ប្រជាពលរដ្ឋរងផលប៉ះពាល់នឹងត្រូវជូនដំណឹងជាលាយលក្ខណ៍អក្សរដោយនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នូវសេចក្តីសម្រេច និងសកម្មភាពដោះស្រាយបណ្តឹង ដែលនឹងធ្វើឡើងក្នុងរយៈពេល១៥ថ្ងៃ អំឡុងពេលថ្ងៃធ្វើការងារ គិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងដោយការិយាល័យស្រុក។ ប្រសិនបើបណ្តឹងត្រូវបានជំទាស់ក្នុងដំណាក់កាលនេះ ការិយាល័យស្រុកនិងជូនដំណឹងទៅសាមីជនជាលាយលក្ខណ៍អក្សរ ប្រសិនបើសាមីជនមិនយល់ព្រមនឹងការជំទាស់នេះទេ សាមីជនអាចប្តឹងបន្តទៅដំណាក់កាលបន្ទាប់ ដែលត្រូវសរសេរពាក្យបណ្តឹងជាលាយលក្ខណ៍អក្សរទៅនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដើម្បីស្វែងរកដំណោះស្រាយបន្ត។

ដំណាក់កាលទី២៖ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់តាមរយៈនាយកដ្ឋានត្រួតពិនិត្យផ្ទៃក្នុង និងគ្រប់គ្រងទិន្នន័យនិងវាយតម្លៃ នឹងពិនិត្យមើលជាមុននៃទិដ្ឋភាពបណ្តឹង នឹងដាក់ជូននូវរបាយការណ៍ស៊ើបសួរទៅអគ្គនាយកដើម្បីពិនិត្យ និងសម្រេច។ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នឹងអាចចុះប្រមូលទិន្នន័យនៅថ្នាក់មូលដ្ឋានដើម្បីជួបជាមួយដើមបណ្តឹង និងក្រុមការងារគណៈកម្មការអន្តរក្រសួងដើម្បីប្រមូលព័ត៌មានលម្អិត។ របាយការណ៍សម្រេចត្រូវតែបំពេញក្នុងរយៈពេល៣០ថ្ងៃ បន្ទាប់ពីថ្ងៃទទួលពាក្យបណ្តឹង និងដាក់ជូនបណ្តឹងទៅអគ្គនាយកដ្ឋាននៃនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដើម្បីធ្វើការសម្រេចចុងក្រោយក្នុងរយៈពេល៥ថ្ងៃ នៃអំឡុងពេលទទួលរបាយការណ៍។ នៅក្នុងករណីដែលបណ្តឹងតម្រូវអោយមានការអន្តរាគមន៍ពីថ្នាក់គោលនយោបាយជាតិ គឺនឹងត្រូវសម្រេចយោងពីសេចក្តីសម្រេចរបស់គណៈកម្មការអន្តរក្រសួង ក្នុងករណីនេះរយៈពេល១០ថ្ងៃនឹងត្រូវបន្ថែមទៀត គិតចាប់ពីថ្ងៃសម្រេចចុងក្រោយ។

ដំណាក់កាលទី៣៖ ប្រជាពលរដ្ឋរងផលប៉ះពាល់នឹងដាក់ពាក្យបណ្តឹងជាលាយលក្ខណ៍អក្សរទៅគណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត តាមរយៈសាលាខេត្ត។ ដើមបណ្តឹងឬអ្នកតំណាងនឹងត្រូវបានផ្តល់ឱកាសរាយការណ៍អំពីករណីបណ្តឹង ក្នុងអំឡុងពេលកិច្ចប្រជុំ ហើយគណៈកម្មការដោះស្រាយបណ្តឹង នឹងពិចារណាលើភស្តុតាង និងកាលៈទេសៈចាំបាច់ណាមួយរបស់ដើមបណ្តឹង មុននឹងឈានដល់ការសម្រេចចិត្ត។ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់នឹងបញ្ជូនតំណាងរបស់ខ្លួនដែលមិនជាប់ពាក់ព័ន្ធនឹងបណ្តឹង ទៅធ្វើការពន្យល់បង្ហាញដើម្បីជំទាស់នឹងដើមបណ្តឹងដូចដែលបានធ្វើឡើងនៅដំណាក់កាលទីពីរ ដែលដោះស្រាយដោយនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់។ សេចក្តីសម្រេចរបស់គណៈកម្មការថ្នាក់ខេត្តត្រូវតែឈានដល់ កិច្ចព្រមព្រៀងជាគោល និងបញ្ចប់ដោយមិនអាចកែប្រែបាន លើកលែងតែករណីទាំងឡាយណា

ដែលទាក់ទងទៅនឹងគោលនយោបាយរបស់រាជរដ្ឋាភិបាល។ សេចក្តីសម្រេចរបស់គោលនយោបាយរាជរដ្ឋាភិបាល ទាក់ទងទៅនឹងក្របខ័ណ្ឌស្តីពីការធ្វើលទ្ធកម្មដីនិងការដោះស្រាយផលប៉ះពាល់ គឺត្រូវធ្វើសេចក្តីសម្រេចដោយគណៈកម្មការអន្តរក្រសួង។ គណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត មានរយៈពេល៤០ថ្ងៃដើម្បីចេញសេចក្តីសម្រេច ដោយគិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងរហូតដល់ធ្វើការសម្រេចចុងក្រោយ។

ការដោះស្រាយបណ្តឹងតវ៉ាតាមនីតិវិធីរដ្ឋបាលត្រូវបានបញ្ចប់នៅដំណាក់កាលទី៣។ ចំពោះដំណើរការបណ្តឹងទាំងនេះ ដើមបណ្តឹង នឹងមិនមានការបង់ប្រាក់អ្វីទេរាប់ចាប់ពីដំណាក់កាលទី១ ដំណាក់កាលទី២ រហូតដល់ដំណាក់កាលទី៣។ ទោះជាយ៉ាងណាក៏ដោយ ដូចដែលមានចែងក្នុងច្បាប់អស្សាមីករណ៍ ដើមបណ្តឹងអាចធ្វើការដាក់ពាក្យប្តឹងទៅតុលាការខេត្ត/ក្រុង តាមដែលអាចអនុវត្តបានដើម្បីស្វែងរកដំណោះស្រាយ។ ដំណើរការនេះ ដើមបណ្តឹងនឹងត្រូវចំណាយថវិកាខ្លួនឯង។ នៅក្នុងដំណាក់កាលនេះ អគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ គណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត ឬក្រុមការងារគណៈកម្មការអន្តរក្រសួង មិនមានសមត្ថកិច្ចពាក់ព័ន្ធអ្វីទេ ល្អិតណាមានដីកាកោះពីអង្គចៅក្រមសាលាដំបូងខេត្ត។

១២. តើខ្ញុំអាចទំនាក់ទំនងទៅកាន់អ្នកណា ក្នុងករណីដែលខ្ញុំត្រូវការការបញ្ជាក់ ឬមានបញ្ហា/ការតវ៉ា?

ដោយសារគម្រោងត្រូវបានយល់ព្រមដោយធនាគារអភិវឌ្ឍន៍អាស៊ី ប្រាក់កម្ចីនិងកិច្ចព្រមព្រៀងជំនួយត្រូវបានចុះហត្ថលេខាហើយ CFAVC កំពុងត្រូវបានអនុវត្ត អ្នកដែលត្រូវទំនាក់ទំនងនិងលេខទូរស័ព្ទរបស់ពួកគេត្រូវបានផ្តល់ជូននៅក្នុងប្រអប់ខាងក្រោមដែលអាចផ្តល់ឱ្យអ្នកនូវការបំភ្លឺអំពីបច្ចេកទេសទាក់ទងនឹងអនុគម្រោង ។ នៅកំឡុងពេលនេះ DED ត្រូវបានបញ្ចប់ សិទ្ធិទទួលបានសំណង ការបាត់បង់ទ្រព្យសម្បត្តិ DMS និងកញ្ចប់សំណងត្រូវបានសម្រេចដូច្នេះពាក្យបណ្តឹងពាក់ព័ន្ធនឹងបញ្ហានេះអាចធ្វើការដាក់បញ្ជូនបាន។ គម្រោងនេះត្រូវបានអនុម័តដោយធនាគារអភិវឌ្ឍន៍អាស៊ី IRC នៃក្រសួងសេដ្ឋកិច្ចនិងហិរញ្ញវត្ថុបានបង្កើត GRM ដែលគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ានឹងត្រូវបានបង្កើតឡើងទាំងនៅថ្នាក់ស្រុកនិងខេត្ត។ គណៈកម្មការទាំងនេះនឹងត្រូវបានបង្កើតឡើងនិងធ្វើប្រតិបត្តិការមុនពេលចាប់ផ្តើម DMS ។ រាល់បណ្តឹងតវ៉ា ឬការតវ៉ានានាទាក់ទងនឹងការវាស់វែង ឬកញ្ចប់សំណងមិនត្រឹមត្រូវនឹងត្រូវបញ្ជូនទៅគណៈកម្មការទាំងនេះដើម្បីរកដំណោះស្រាយ។ លេខទំនាក់ទំនង នៃសមាជិក GRC មាននៅក្នុងឧបសម្ព័ន្ធទី២ នៃ PIB នេះ។ ។

សម្រាប់ព័ត៌មានផ្សេងៗ សូមទំនាក់ទំនង ដូចខាងក្រោម៖

លេខទំនាក់ទំនងពាក់ព័ន្ធនឹងការធ្វើលទ្ធកម្មដី និងការដោះស្រាយផលប៉ះពាល់

លោក ហេង វ៉ាសនា, ប្រធានក្រុមការងារអន្តរក្រសួង នៃអគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ នៃក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ, រាជធានីភ្នំពេញ
 លេខទូរស័ព្ទ: ០៧៨ ៨៨៥ ៥៨៨

លោក កែវ សុវត្ថិភាព, អង្គភាពគ្រប់គ្រងគម្រោង, ក្រសួងធនធានទឹក និងឧតុនិយម
 លេខទូរស័ព្ទ: ០១២ ៨៨ ៩៩ ៥៩

ឧបសម្ព័ន្ធ ១ ការវាស់ស្ទង់ទទួលបានបង្គោល (នឹងត្រូវធ្វើបច្ចុប្បន្នភាពបន្ទាប់ពីធ្វើការអនុវត្តចាស់ថែទាំលម្អិត)

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ /ការអនុវត្ត
១. ការបាត់បង់ដីបង្កបង្កើនផល (កសិកម្ម , ស្រះចិញ្ចឹមត្រី, ...)				
១.១	ការបាត់បង់ ឬខូចខាត (ការបាត់បង់ដីគីតិចជាង ១០% និងចំណែកដែលនៅសល់អាចប្រើប្រាស់បាន)	ម្ចាស់ដីស្របច្បាប់ អ្នកប្រើប្រាស់មិនស្របច្បាប់	សាច់ប្រាក់ / សំណងតាមអត្រាថ្លៃជំនួសសម្រាប់ដីដែលបាត់បង់ ១.ពុំមានប្រាក់ឧបត្ថម្ភសម្រាប់ការបាត់បង់ដីឡើយ ២.ចំពោះសំណង់ផ្សេងៗដែលនៅលើផ្ទៃដីប៉ះពាល់ត្រូវសងតាមអត្រាថ្លៃជំនួស	១. ការបាត់បង់នេះនឹងត្រូវបញ្ជាក់និងកាន់កាប់ដោយអ្នករងផលប៉ះពាល់អំឡុងពេលធ្វើអង្កេតវាស់វែងលម្អិត ២.មេគ្រួសាររងផលប៉ះពាល់នឹងត្រូវបានជូនដំណឹង ៣ខែ មុនពេលកាលបរិច្ឆេទនៃការទទួលយកដីពីអនុគម្រោង ៣. មេគ្រួសាររងផលប៉ះពាល់ត្រូវទុកដីឲ្យនៅទំនេរក្នុងរយៈពេល ១ ខែ បន្ទាប់ពីទទួលបានសំណង ៤.មេគ្រួសាររងផលប៉ះពាល់ត្រូវបានអនុញ្ញាតអោយប្រមូលផលដំណាំរបស់គាត់មុនពេលការសាងសង់
១.២	ការបាត់បង់ធ្ងន់ធ្ងរ (ឧទាហរណ៍៖ ការបាត់បង់ទ្រព្យសកម្មសរុបច្រើនជាង ១០%)	ម្ចាស់ដីស្របច្បាប់ អ្នកប្រើប្រាស់មិនស្របច្បាប់	១. សំណងលើដីដែលបាត់បង់តាមអត្រាថ្លៃជំនួស ២.មានសិទ្ធិទទួលបានកម្មវិធីស្តារប្រាក់ចំណូល ១.ពុំមានប្រាក់ឧបត្ថម្ភសម្រាប់ការបាត់បង់ដីឡើយ ២.ចំពោះសំណង់ផ្សេងៗដែលនៅលើផ្ទៃដីប៉ះពាល់ត្រូវសងតាមអត្រាថ្លៃជំនួស ៣.មានសិទ្ធិទទួលបានកម្មវិធីស្តារប្រាក់ចំណូល	១. ការបាត់បង់នេះនឹងត្រូវបញ្ជាក់និងកាន់កាប់ដោយអ្នករងផលប៉ះពាល់អំឡុងពេលធ្វើអង្កេតវាស់វែងលម្អិត ២.មេគ្រួសាររងផលប៉ះពាល់នឹងត្រូវបានជូនដំណឹង ៣ខែ មុនពេលកាលបរិច្ឆេទនៃការទទួលយកដីពីអនុគម្រោង ៣. មេគ្រួសាររងផលប៉ះពាល់ត្រូវទុកដីឲ្យនៅទំនេរក្នុងរយៈពេល ១ ខែ បន្ទាប់ពីទទួលបានសំណង ៤.មេគ្រួសាររងផលប៉ះពាល់ត្រូវបានអនុញ្ញាតអោយប្រមូលផលដំណាំរបស់គាត់មុនពេលការសាងសង់

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ / ការអនុវត្ត
២. ដីលំនៅដ្ឋាន / ដីពាណិជ្ជកម្ម				
	អនុគម្រោងដែលប៉ះពាល់ធ្ងន់ធ្ងរ ដោយមានផលប៉ះពាល់ធ្ងន់ធ្ងរនឹងមិនទទួលយក	គ្រួសាររងផលប៉ះពាល់ទាំងអស់ដែលជាម្ចាស់ដីស្របច្បាប់ ដោយមិនគិតពីស្ថានភាពកម្មសិទ្ធិដីធ្លី / សិទ្ធិកាន់កាប់ ដោយមានផ្ទៃដីដែលនៅសល់គ្រប់គ្រាន់សម្រាប់សាងសង់សំណង់ឡើងវិញ គ្មានដីដែលនៅសល់គ្រប់គ្រាន់ដើម្បីសាងសង់ផ្ទះ ឬសំណង់ អ្នកកាន់កាប់បណ្តោះអាសន្ន រឺ ជួល អ្នកកាន់កាប់ខុសច្បាប់	i. សំណងជាសាច់ប្រាក់តាមតម្លៃទីផ្សារនៃអត្រាថ្លៃជំនួសសម្រាប់ដី រឺប្រភេទស្រដៀងគ្នានិង ii. អ្នកម៉ៅការត្រូវកែលម្អដីលំនៅដ្ឋានដែលនៅសល់ដោយឥតគិតថ្លៃដល់អ្នករងផលប៉ះពាល់ (ឧទាហរណ៍៖ ការចាក់បំពេញដី និងការកិនបង្គាប់) ដូច្នេះអ្នករងផលប៉ះពាល់អាចសាងសង់លើដីដែលនៅសល់។ i. ដីជំនួសត្រូវមានលក្ខណៈដូចគ្នាទំហំ ប្រភេទ និងការចុះកម្មសិទ្ធិ ឬ ii. សំណងជាសាច់ប្រាក់តាមអត្រាថ្លៃជំនួសបើសិនជាដីដែលនៅសល់មិនអាចសាងសង់សំណង់វិញបាន អ្នកដែលរងផលប៉ះពាល់អាចស្នើសុំគម្រោងធ្វើលទ្ធកម្មទាំងស្រុង។ ថ្លៃសេវានៃប្រតិបត្តិការទាំងអស់ ពន្ធនិងចំណាយផ្សេងៗទៀតទាក់ទងនឹងការផ្លាស់ទីតាំងដីនិង/ រឺ ការចេញប័ណ្ណកម្មសិទ្ធិនឹងជាបន្ទុករបស់គម្រោង។ ប្រសិនបើមេគ្រួសាររងផលប៉ះពាល់ត្រូវដាក់ឈ្មោះទាំងប្តី និងប្រពន្ធ។ អ្នករងផលប៉ះពាល់ដែលជួលសម្រាប់ប្រើប្រាស់នៃការសាងសង់ រឺដីមិនមែនកសិកម្មផ្សេងទៀតនឹងទទួលសំណងសម្រាប់សំណង់ដែលរងផលប៉ះពាល់និងត្រូវបានជួយក្នុងការរកកន្លែងជួលថ្មីទៀត។	បុរេវិនិច្ឆ័យនៃការជ្រើសរើសអនុគម្រោងនឹងមិនទទួលយកអនុគម្រោងទាំងឡាយណាដែលមានផលប៉ះពាល់ធ្ងន់ធ្ងរ និងមិនមានសំណងលើការផ្លាស់ប្តូរទីលំនៅ។ ការបាត់បង់ដីលំនៅដ្ឋាននឹងត្រូវបានគ្រប់គ្រងដោយគោលការណ៍ដូចគ្នាទៅនឹងការបរិច្ចាគនៃដីដែលពុំមានការដាំដុះ។

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ / ការអនុវត្ត
			អ្នករងផលប៉ះពាល់ដែលខុសច្បាប់នឹងមិនទទួលបានសំណងសម្រាប់ជីវិតផលប៉ះពាល់។ ទោះយ៉ាងណាក៏ដោយ ប្រសិនបើពួកគាត់មិនមានដីលំនៅដ្ឋានកាន់កាប់ ពួកគាត់នឹងទទួលបានដីជំនួសដោយទទួលបានសិទ្ធិកាន់កាប់ទ្រព្យក្នុងកតិកាសន្យាដើម្បីសាងសង់ឡើងវិញនូវផ្ទះរបស់ពួកគាត់។	
២.១	ការបាត់បង់ចំណូលបន្ទាប់បន្សំ	ម្ចាស់មានសិទ្ធិស្របច្បាប់	សំណងជាសាច់ប្រាក់តាមអត្រាតម្លៃជំនួស	១. ការបាត់បង់នេះនឹងត្រូវបញ្ជាក់និងកាន់កាប់ដោយអ្នករងផលប៉ះពាល់អំឡុងពេលធ្វើអង្កេតវាស់វែងលម្អិត ២. មេគ្រួសាររងផលប៉ះពាល់នឹងត្រូវបានជូនដំណឹង ៣ខែ មុនពេលកាលបរិច្ឆេទនៃការទទួលយកដីពីអនុគម្រោង ៣. មេគ្រួសាររងផលប៉ះពាល់ត្រូវទុកដីឲ្យនៅទំនេរក្នុងរយៈពេល ១ខែ បន្ទាប់ពីទទួលបានសំណង
		អ្នកកាន់កាប់ខុសច្បាប់	មិនមានសំណងជាសាច់ប្រាក់ទេ លើកលែងតែសំណង់ ដើមឈើដែលរងប៉ះពាល់បណ្តោះ	
៣. ការបាត់បង់សំណង់				
៣.១	ការបាត់បង់ ឬខូចខាតសំណង់ផ្សេងៗ និងទ្រព្យសម្បត្តិផ្សេងៗទៀត	ម្ចាស់សំណង់ ទោះជាដីនោះជាកម្មសិទ្ធិ ឬមិនមែនក៏ដោយ, ដោយមានឬគ្មានលិខិតអនុញ្ញាតសាងសង់	១. សំណងជាសាច់ប្រាក់ក្នុងអត្រាថ្លៃជំនួសសម្រាប់ទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់ ប្រជាពលរដ្ឋអាចរក្សាទុកសម្ភារពីការរុះរើសំណង់របស់ពួកគេដោយមិនមានការកាត់ប្រាក់ទេ	១. ការបាត់បង់នេះនឹងត្រូវបញ្ជាក់និងកាន់កាប់ដោយអ្នករងផលប៉ះពាល់អំឡុងពេលធ្វើអង្កេតវាស់វែងលម្អិត ២. គ្រួសាររងផលប៉ះពាល់នឹងត្រូវរុះរើសំណង់ចេញពីអនុគម្រោងក្នុងរយៈពេល ១ខែ បន្ទាប់ពីទទួលបានសំណង។ ៣. គ្រួសាររងផលប៉ះពាល់នឹងទទួលបានសំណងជាសាច់ប្រាក់

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ /ការអនុវត្ត
				យ៉ាងហោចណាស់មួយខែមុនពេលសាងសង់ ដើម្បីផ្តល់ពេលវេលាអោយពួកគាត់គ្រប់គ្រាន់ដើម្បីរៀបចំផ្ទះគូប ឡើងវិញបណ្តើៗ ដើម្បីជៀសវាងវិនាសដល់ជីវភាពប្រចាំថ្ងៃរបស់ពួកគាត់។
៣.២	ផលប៉ះពាល់ធ្ងន់ធ្ងរ ដែលសំណង់ដែលនៅសល់មិនអាចរស់នៅ រឺប្រើប្រាស់បាន ដែលតម្រូវអោយរុះរើទាំងស្រុង	ម្ចាស់សំណង់ ទោះជាជីនោះជាកម្មសិទ្ធិ ឬមិនមែនក៏ដោយ, ដោយមានឬគ្មានលិខិតអនុញ្ញាតសាងសង់	១.សំណង់ជាសាច់ប្រាក់ក្នុងអត្រាថ្លៃជំនួសសម្រាប់ទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់ ប្រជាពលរដ្ឋអាចរក្សាទុកសម្ភារពីការរុះរើសំណង់របស់ពួកគេដោយមិនមានការកាត់ប្រាក់ទេ។ គ្រួសាររងផលប៉ះពាល់ក៏នឹងទទួលបានជំនួយដែលមានចែងក្នុងផ្នែកទី៨ នៃតារាងសិទ្ធិទទួលបានសំណង។	១. ការបាត់បង់នេះនឹងត្រូវបញ្ជាក់និងកាន់កាប់ដោយអ្នករងផលប៉ះពាល់អំឡុងពេលធ្វើអង្កេតវាស់វែងលម្អិត ២.គ្រួសាររងផលប៉ះពាល់នឹងត្រូវរុះរើសំណង់ចេញពីអនុគម្រោងក្នុងរយៈពេល ១ខែ បន្ទាប់ពីទទួលបានសំណង។ ៣. គ្រួសាររងផលប៉ះពាល់នឹងទទួលបានសំណងជាសាច់ប្រាក់យ៉ាងហោចណាស់មួយខែមុនពេលសាងសង់ ដើម្បីផ្តល់ពេលវេលាអោយពួកគាត់គ្រប់គ្រាន់ដើម្បីរៀបចំផ្ទះគូប ឡើងវិញបណ្តើៗ ដើម្បីជៀសវាងវិនាសដល់ជីវភាពប្រចាំថ្ងៃរបស់ពួកគាត់។
៤.សំណង់បន្ទាប់បន្សំ				
៤.១	ការខូចខាតលើសំណង់	ម្ចាស់សំណង់ ទោះជាជីនោះជាកម្មសិទ្ធិ ឬមិនមែនក៏ដោយ, ដោយមានឬគ្មានលិខិតអនុញ្ញាតសាងសង់	សំណង់ជាសាច់ប្រាក់តាមអត្រាថ្លៃជំនួសលើផ្នែកដែលរងផលប៉ះពាល់ហើយផ្នែកដែលនៅសល់អាចប្រើប្រាស់បានបន្ទាប់ពីជួសជុល។ សំណង់ជាសាច់ប្រាក់តាមអត្រាតម្លៃជំនួសចំពោះសំណង់	១. ការបាត់បង់នេះនឹងត្រូវបញ្ជាក់និងកាន់កាប់ដោយអ្នករងផលប៉ះពាល់អំឡុងពេលធ្វើអង្កេតវាស់វែងលម្អិត ២.គ្រួសាររងផលប៉ះពាល់នឹងត្រូវរុះរើសំណង់ចេញពីអនុគម្រោងក្នុង

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ /ការអនុវត្ត
			ទាំងមូលក្នុងករណីដែលផ្នែកដែលនៅសល់មិនអាចរស់នៅ រឺប្រើប្រាស់បាន	រយៈពេល ១ខែ បន្ទាប់ពីទទួលបានសំណង។ ៣.គ្រួសាររងផលប៉ះពាល់នឹងជូនដំណឹង ១ខែ មុនពេលដែលទីតាំងត្រូវយកមកបម្រើអោយគម្រោង។
៥.ផលប៉ះពាល់លើដំណាំ ដើមឈើហូបផ្លែ .				
៥១.	ដើមឈើហូបផ្លែ	ម្ចាស់ដោយមិនគិតពីសិទ្ធិកាន់កាប់	សំណងសម្រាប់ដើមឈើហូបផ្លែដែលប៉ះពាល់គឺផ្អែកទៅតាមអត្រាតម្លៃជំនួស	១. ការជូនដំណឹងមុនការប្រមូលផលយ៉ាងហោចណាស់ ៣ខែ មុនពេលការងារសាងសង់ចាប់ផ្តើម
៥២.	ដំណាំជាទិន្នផល		សំណងសម្រាប់ដំណាំក្នុងឆ្នាំ អត្រាតម្លៃជំនួសផ្អែកលើតម្លៃទីផ្សារ បើសិនជាការប្រមូលផលមិនអាចធ្វើទៅបានតាមប្រក្រតី។	២.គ្រួសាររងផលប៉ះពាល់នឹងត្រូវរៀបចំសំណង់ចេញពីអនុគម្រោងក្នុងរយៈពេល ១ខែ បន្ទាប់ពីទទួលបានសំណង។
៥៣.	ដើមឈើ		គម្រោងនឹងបង្កើតឡើងវិញនូវទីតាំងថ្មីនៃចំការ និងផ្តល់នូវសំណងបន្ថែមលើពូជ និងសកម្មភាពថែទាំចំពោះដើមឈើដែលរងផលប៉ះពាល់នូវអត្រាតម្លៃជំនួសពេញ។	៣.គ្រួសាររងផលប៉ះពាល់នឹងត្រូវជូនដំណឹង ៣ខែ មុនពេលដែលទីតាំងដីនឹងយកមកប្រើប្រាស់សម្រាប់អនុគម្រោង។
៦	ទ្រព្យសម្បត្តិ និងសំណង់សាធារណៈ			
៦.១	ទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់	សហគមន៍ រឺភ្នាក់ងាររដ្ឋាភិបាលដែលមានទ្រព្យសម្បត្តិរងផលប៉ះពាល់	ជំនួសដោយរចនាសម្ព័ន្ធដែលមានគុណភាពប្រហាក់ប្រហែលនៅតំបន់ដែលត្រូវបានពិភាក្សាឯកភាពគ្នាជាមួយអាជ្ញាធរពាក់ព័ន្ធ	សហគមន៍នឹងត្រូវជូនដំណឹង ៣ខែ មុនពេលដែលទីតាំងដីនឹងយកមកប្រើប្រាស់សម្រាប់អនុគម្រោង។
៧	ការបាត់បង់ដីវិភាគ និងប្រាក់ចំណូលដោយសារដីបង្កបង្កើនផល រឺពាណិជ្ជកម្ម			

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ /ការអនុវត្ត
៧.១	ផលប៉ះពាល់ចាប់ពី ១០% ឡើងទៅនៃទ្រព្យសម្បត្តិ (ផលប៉ះពាល់ពេញលេញ)	គ្រប់គ្រួសាររងផលប៉ះពាល់ទាំងអស់ដោយមិនគិតពីមានសិទ្ធិស្របច្បាប់ ឬមិនមាន	មានសិទ្ធិចូលរួមកម្មវិធីស្តារប្រាក់ចំណូលដូចជាកម្មវិធីការបង្កើនកសិកម្ម និងកម្មវិធីបណ្តុះបណ្តាលកសិកម្ម	ការស្តារកម្រិតជីវភាព គ្រួសាររងផលប៉ះពាល់ត្រូវបានអនុញ្ញាតិអោយប្រមូលផលដំណាំមុនពេលការសាងសង់
៧.ក	ការបាត់បង់ប្រភពចំណូលដោយសារការរំខានមុខរបរ			
៧.២	ការបាត់បង់ប្រភពចំណូលដោយសារការរំខានមុខរបរ	i.ហាងដែលមិនទាន់ចុះបញ្ជីម្ចាស់ រឺអ្នកជួលស្របច្បាប់ ឬមិនស្របច្បាប់	ជំនួយឧបត្ថម្ភតែម្តង ៥០ដុល្លារក្នុងមួយគ្រួសារ	ការបាត់បង់នឹងត្រូវបានបញ្ជាក់ និងយល់ព្រមពីគ្រួសាររងផលប៉ះពាល់អំឡុងពេល DMS
		ii.ហាងដែលមានចុះបញ្ជីម្ចាស់ រឺអ្នកជួលស្របច្បាប់ ឬមិនស្របច្បាប់	១.ការសងសំណងជាសាច់ប្រាក់ស្មើនឹងប្រាក់ចំណូលរៀបចំប្រចាំថ្ងៃ (ដូចមានក្នុងបង្កាន់ដៃពន្ធ គុណនឹងចំនួនថ្ងៃនៃការរំខាន បើសិនជាមិនអាចរំកិលទៅផ្នែកដែលនៅសល់បាន) ២.សម្រាប់នយោជិក, នឹងមានជំនួយក្នុងការស្វែងរកការងារថ្មីដែលមានប្រាក់ឈ្នួលប្រហាក់ប្រហែលគ្នា នឹងផ្តល់ដោយគម្រោងក្នុងអំឡុងពេលសាងសង់។	
៨	ជំនួយឧបត្ថម្ភជាសាច់ប្រាក់ដល់ជនងាយរងគ្រោះ			
៨.១	ការបាត់បង់ចំពោះគ្រួសាររងផលប៉ះពាល់ដែលជាជនងាយរងគ្រោះ	គ្រួសារដែលងាយរងគ្រោះ	១. ជំនួយឧបត្ថម្ភតែម្តង ១០០ដុល្លារ ចំពោះមួយគ្រួសាររងផលប៉ះពាល់។ ២.សិទ្ធិអាទិភាពក្នុងការទទួលបានការងារក្នុងការសាងសង់នៃគម្រោង។	មេគ្រួសាររងផលប៉ះពាល់ងាយរងគ្រោះនឹងត្រូវបានបញ្ជាក់ក្នុងដំណាក់កាលអង្កេតវាស់វែងលម្អិត។

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ /ការអនុវត្ត
៩	ផលប៉ះពាល់លើសំណង់ រឺហាង ដែលតម្រូវឲ្យមានការផ្លាស់ទីតាំង (ជំនួយឧបត្ថម្ភការដឹកជញ្ជូន)			
៩.១	ហាង រឺតូប ដែលអាចរំកិលបានងាយស្រួល	គ្រួសាររងផលប៉ះពាល់ដែលតូប ឬហាងរបស់គាត់អាចចល័តបាននឹងត្រូវចល័តទៅទីតាំងថ្មី	ប្រាក់ឧបត្ថម្ភថ្លៃដឹកជញ្ជូន ពី៥ ដុល្លារ ទៅ ១០ដុល្លារ	គ្រួសាររងផលប៉ះពាល់ និងអ្នកជួលនឹងត្រូវបានផ្តល់ដំណឹង ៣ខែ មុនពេលកាលបរិច្ឆេទនៃការប្តូរទីតាំង។
៩.២	ហាង និងផ្ទះត្រូវរំកិលទៅផ្នែកដែលនៅសល់		ប្រាក់ឧបត្ថម្ភថ្លៃដឹកជញ្ជូន ៤០ ដុល្លារ	
៩.៣	ហាង និងផ្ទះប្តូរទីតាំងតែក្នុងរង្វង់ភូមិតែមួយ		ប្រាក់ឧបត្ថម្ភថ្លៃដឹកជញ្ជូន ៦០ ដុល្លារ	
៩.៤	ហាង និងផ្ទះប្តូរទីតាំងទៅកាន់ភូមិផ្សេង		ប្រាក់ឧបត្ថម្ភថ្លៃដឹកជញ្ជូន ៧០ ដុល្លារ	
៩.៥	អ្នកជួល រឺអ្នកដែលមានសិទ្ធិអនុញ្ញាតដែលត្រូវប្តូរទីតាំង	អ្នកជួល រឺអ្នកដែលមានសិទ្ធិអនុញ្ញាត	១.ប្រាក់ឧបត្ថម្ភថ្លៃជួលស្មើនឹង ៣ខែនៃថ្លៃជួល និង ២.ជំនួយក្នុងការស្វែងរកកន្លែងស្នាក់នៅដែលសមស្រប	
១០	ទ្រព្យសម្បត្តិរងផលប៉ះពាល់បណ្តោះអាសន្នអំឡុងពេលសាងសង់			
១០.១	ដីដែលរងផលប៉ះពាល់បណ្តោះអាសន្ន	ម្ចាស់នៃដីដែលរងផលប៉ះពាល់បណ្តោះអាសន្ន	១.ពុំមានសំណងលើដី បើការធ្វើធ្វើអោយដូចដើមវិញក្នុងរយៈពេល ៤ខែ បន្ទាប់ពីប្រើប្រាស់។ បើសិនដីមិនទាន់បានផ្តល់ជូន និងធ្វើអោយដូចដើមវិញទេ អ្នកម៉ៅការនឹងត្រូវចំណាយសម្រាប់ការធ្វើអោយដូចដើមនេះ។ ២.បើសិនដីមិនត្រូវបានផ្តល់ជូនវិញ គ្រួសាររងផលប៉ះពាល់នឹងត្រូវទទួលបានសំណងតាមអត្រាថ្លៃជំនួស	គ្រួសាររងផលប៉ះពាល់នឹងត្រូវបានផ្តល់ដំណឹង ១ខែ មុនពេលបរិច្ឆេទនៃការអនុវត្តការប្រើប្រាស់ដីខាងលើជាបណ្តោះអាសន្នដោយអនុគម្រោង។

ល.រ	ប្រភេទនៃការបាត់បង់	ប្រភេទគ្រួសាររងផលប៉ះពាល់	សិទ្ធិទទួលបាន	ការបញ្ជាក់ /ការអនុវត្ត
			៣.អ្នកម៉ៅការនឹងត្រូវចងក្នុងកិច្ចសន្យាក្នុងការចំណាយទាំងអស់នេះ។	
១០.២	ផលប៉ះពាល់លើដំណាំ និងដើមឈើអំឡុងពេលសាងសង់ (ផលប៉ះពាល់បណ្តោះអាសន្ន)	ម្ចាស់ដំណាំ	១.អ្នកម៉ៅការនឹងត្រូវចងក្នុងកិច្ចសន្យាក្នុងការចំណាយលើថ្លៃទាំងនេះ ២.សំណងលើផលដំណាំជាសាច់ប្រាក់តាមអត្រាថ្លៃជំនួស (សំណងលើដំណាំក្នុងដីចំណីផ្លូវ) សម្រាប់អំឡុងពេលសាងសង់ និងថែទាំ។ នឹងមានការប្រមូលផលនៅកន្លែងដែលប៉ះពាល់អំឡុងពេលរដូវកាលដាំដុះ។	១.ការសាងសង់ និងការថែទាំនឹងត្រូវបានអនុវត្តឲ្យមានផលប៉ះពាល់តិចបំផុត។ ២.ការសាងសង់នឹងតម្រូវដោយកិច្ចសន្យាគឺធ្វើឡើងតែក្នុងរបៀបនៃផលប៉ះពាល់ប៉ុណ្ណោះ ៣.ក្នុងផ្នែកកិច្ចសន្យានៃការសាងសង់ គ្រប់ផ្លូវធ្វើដំណើរដែលជាប់ទៅនឹងផ្លូវនឹងត្រូវបានជួសជុល ឬជំនួសវិញដោយល្អប្រសើរ និងប្រព័ន្ធផ្សេងៗទៀតដែលមានលក្ខណៈប្រហាក់ប្រហែល ឬល្អជាងសភាពដើម ៤.អំឡុងពេលនៃការវិនិយោគនឹងត្រូវកាត់បន្ថយអោយបានអប្បបរមាតាមដែលអាចធ្វើទៅបាន
១០.៣	ការខូចខាតដល់វាលស្រែ និងហេដ្ឋារចនាសម្ព័ន្ធតាក់ព័ន្ធរួមមាន ខឿន ប្រឡាយ។ល។			

ឧបសម្ព័ន្ធ២

យន្តការដោះស្រាយបណ្តឹង

ប្រសិនបើប្រជាពលរដ្ឋរងផលប៉ះពាល់ទាំងឡាយណាមិនយល់ច្បាស់ ឬមិនពេញចិត្តនឹងការផ្តល់ជូនចំពោះការទូទាត់សំណង ក្រោមហេតុផលណាមួយ ឬក៏ការទូទាត់សំណងមិនត្រឹមត្រូវតាមកាលបរិច្ឆេទដែលបានព្រមព្រៀង នោះប្រជាពលរដ្ឋរងផលប៉ះពាល់មានសិទ្ធិដាក់ពាក្យបណ្តឹង (សូមមើលទម្រង់ជូនភ្ជាប់)។

យន្តការដោះស្រាយបណ្តឹងមានបីដំណាក់កាល ដែលរៀបចំឡើងដោយគណៈកម្មការខេត្តដោះស្រាយបណ្តឹងដូចខាងក្រោម៖

ដំណាក់កាលទី១៖ ប្រជាពលរដ្ឋរងផលប៉ះពាល់ដែលជាដើមបណ្តឹង អាចដាក់ពាក្យបណ្តឹងជាលាយលក្ខណ៍ទៅកាន់ប្រធានការិយាល័យស្រុកដែលជាតំបន់អនុគម្រោងស្ថិតនៅ។ ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចនាំចាស់ទុំ ឬអ្នកតំណាងក្នុងសហគមន៍ទៅជាមួយ ដើម្បីជួយសម្របសម្រួលនៅថ្នាក់ស្រុក។ ក្រុមការងារអន្តរក្រសួងនឹងវាយតម្លៃការដោះស្រាយបណ្តឹងនៅថ្នាក់ស្រុក។ កិច្ចប្រជុំពិភាក្សា និងការសម្រេចចិត្តផ្សេងៗ នឹងត្រូវធ្វើឡើងក្នុងរយៈពេល១៥ថ្ងៃ គិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងដោយការិយាល័យស្រុក។ ប្រសិនបើប្រជាពលរដ្ឋរងផលប៉ះពាល់ពេញចិត្តនឹងការដោះស្រាយបណ្តឹងហើយនោះ ក្រុមការងារអន្តរក្រសួងនឹងជូនដំណឹងដល់នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នៃអគ្គនាយកដ្ឋានគ្រប់គ្រងទិន្នន័យនិងវាយតម្លៃផ្ទៃក្នុង ដើម្បីធ្វើការពិនិត្យ និងអនុម័តដោយអគ្គនាយកនៃនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ ដើម្បីធ្វើសកម្មភាពដោះស្រាយជ័សមស្រប។ ប្រជាពលរដ្ឋរងផលប៉ះពាល់នឹងត្រូវជូនដំណឹងជាលាយលក្ខណ៍ដោយនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នូវសេចក្តីសម្រេច និងសកម្មភាពដោះស្រាយបណ្តឹង ដែលនឹងធ្វើឡើងក្នុងរយៈពេល១៥ថ្ងៃអំឡុងពេលថ្ងៃធ្វើការងារ គិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងដោយការិយាល័យស្រុក។ ប្រសិនបើបណ្តឹងត្រូវបានជំទាស់ក្នុងដំណាក់កាលនេះ ការិយាល័យស្រុកនឹងជូនដំណឹងទៅសាមីជនជាលាយលក្ខណ៍ ប្រសិនបើសាមីជនមិនយល់ព្រមនឹងការជំទាស់នេះទេ សាមីជនអាចប្តឹងបន្តទៅដំណាក់កាលបន្ទាប់ ដែលត្រូវសរសេរពាក្យបណ្តឹងជាលាយលក្ខណ៍ទៅនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដើម្បីស្វែងរកដំណោះស្រាយបន្ត។

ដំណាក់កាលទី២៖ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់តាមរយៈអគ្គនាយកដ្ឋានគ្រប់គ្រងទិន្នន័យនិងវាយតម្លៃផ្ទៃក្នុង នឹងពិនិត្យមើលជារួមនៃទិដ្ឋភាពបណ្តឹង នឹងដាក់ជូននូវរបាយការណ៍ស៊ើបសួរទៅអគ្គនាយកដើម្បីពិនិត្យ និងសម្រេច។ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នឹងអាចចុះប្រមូលទិន្នន័យនៅថ្នាក់មូលដ្ឋានដើម្បីជួបជាមួយដើមបណ្តឹង និងក្រុមការងារគណៈកម្មការអន្តរក្រសួងដើម្បីប្រមូលព័ត៌មានលម្អិត។ របាយការណ៍សម្រេចត្រូវតែបំពេញក្នុងរយៈពេល៣០ថ្ងៃ បន្ទាប់ពីថ្ងៃទទួលបណ្តឹង និងដាក់ជូនបណ្តឹងទៅអគ្គនាយកដ្ឋាននៃនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ ដើម្បីធ្វើការសម្រេចចុងក្រោយក្នុង រយៈពេល៥ថ្ងៃ នៃអំឡុងពេលទទួលរបាយការណ៍។ នៅក្នុងករណីដែលបណ្តឹងតម្រូវអោយមានការអន្តរាគមន៍ពីថ្នាក់គោល

នយោបាយជាតិ គឺនឹងត្រូវសម្រេចយោងពីសេចក្តីសម្រេចរបស់គណៈកម្មការអន្តរក្រសួង ក្នុងករណីនេះរយៈពេល១០ថ្ងៃនឹងត្រូវបន្ថែមទៀត គិតចាប់ពីថ្ងៃសម្រេចចុងក្រោយ។

ដំណាក់កាលទី៣៖ ប្រជាពលរដ្ឋរងផលប៉ះពាល់នឹងដាក់ពាក្យបណ្តឹងជាលាយលក្ខណ៍អក្សរទៅគណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត តាមរយៈសាលាខេត្ត។ ដើមបណ្តឹងឬអ្នកតំណាងនឹងត្រូវបានផ្តល់ឱកាសរាយការណ៍អំពីករណីបណ្តឹង ក្នុងអំឡុងពេលកិច្ចប្រជុំ ហើយគណៈកម្មការដោះស្រាយបណ្តឹង នឹងពិចារណាលើភស្តុតាង និងកាលៈទេសៈចាំបាច់ណាមួយរបស់ដើមបណ្តឹង មុននឹងឈានដល់ការសម្រេចចិត្ត។ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់នឹងបញ្ជូនតំណាងរបស់ខ្លួនដែលមិនជាប់ពាក់ព័ន្ធនឹងបណ្តឹង ទៅធ្វើការពន្យល់បង្ហាញដើម្បីជំទាស់នឹងដើមបណ្តឹងដូចដែលបានធ្វើឡើងនៅដំណាក់កាលទីពីរ ដែលដោះស្រាយដោយនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់។ សេចក្តីសម្រេចរបស់គណៈកម្មការថ្នាក់ខេត្តត្រូវតែឈានដល់កិច្ចព្រមព្រៀងជាគោល និងបញ្ចប់ដោយមិនអាចកែប្រែបាន លើកលែងតែករណីទាំងឡាយណាដែលទាក់ទងទៅនឹងគោលនយោបាយរបស់រាជរដ្ឋាភិបាល។ សេចក្តីសម្រេចរបស់គោលនយោបាយរាជរដ្ឋាភិបាលទាក់ទងទៅនឹងក្របខ័ណ្ឌស្តីពីការទទួលបានដី និងការតាំងទីលំនៅថ្មី គឺត្រូវធ្វើសេចក្តីសម្រេចដោយគណៈកម្មការអន្តរក្រសួង។ គណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត មានរយៈពេល៤០ថ្ងៃដើម្បីចេញសេចក្តីសម្រេច ដោយគិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងរហូតដល់ធ្វើការសម្រេចចុងក្រោយ។

ដំណាក់កាលតុលាការ៖ ការដោះស្រាយបណ្តឹងតវ៉ាតាមនីតិវិធីរដ្ឋបាលត្រូវបានបញ្ចប់នៅដំណាក់កាលទី៣។ ចំពោះដំណើរការបណ្តឹងទាំង នេះដើមបណ្តឹង នឹងមិនមានការបង់ប្រាក់អ្វីទេរាប់ចាប់ពីដំណាក់កាលទី១ ដំណាក់កាលទី២ រហូតដល់ដំណាក់កាលទី៣។ ដើមបណ្តឹងអាចធ្វើការប្តឹងបន្តទៅសាលាដំបូងខេត្តដើម្បីរកដំណោះស្រាយ។ ដំណើរការលើកនេះដើមបណ្តឹងនឹងត្រូវធ្វើការចំណាយថវិការដ្ឋបាល។ ក្នុងដំណាក់កាលតុលាការនេះ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ គណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត ឬក្រុមការងារគណៈកម្មការអន្តរក្រសួង មិនមានសមត្ថកិច្ចពាក់ព័ន្ធអ្វីទេ លើកលែងតែការកោះពីអង្គចៅក្រមសាលាដំបូងខេត្ត។

ប្រសិនណាបើដើមបណ្តឹង មិនពេញចិត្តជាមួយដំណោះស្រាយបណ្តឹងនៅថ្នាក់គម្រោង និងថ្នាក់កណ្តាលទេនោះ ដើមបណ្តឹងអាចធ្វើការជំទាស់តវ៉ាអំឡុងពេលបេសកកម្មរបស់ធានាការអភិវឌ្ឍន៍អាស៊ីប្រទេសកម្ពុជា ឬអាចទាក់ទងផ្ទាល់ទៅអ្នកសម្របសម្រួលពិសេសរបស់ធានាការអភិវឌ្ឍន៍អាស៊ីផ្ទាល់។

បណ្តឹងអាចធ្វើឡើងជាពាក្យសុំដីឬជាសំនេរ។ បណ្តឹងជាពាក្យសុំដីនឹងត្រូវកត់ត្រាដោយមន្ត្រីដោះស្រាយពាក្យបណ្តឹងនៅក្នុងដំណាក់កាលនីមួយៗ។ សំណើរបស់ពាក្យបណ្តឹង និងសេចក្តីសម្រេចផ្សេងៗ នឹងត្រូវផ្តល់ជូនទៅដើមបណ្តឹង។ ការត្រួតពិនិត្យតាមដាន និងសេចក្តីសម្រេច នឹងត្រូវបានកត់ត្រាទុក (ដូចមានជូនភ្ជាប់)។

លេខទំនាក់ទំនងរបស់យន្តការដោះស្រាយពាក្យបណ្តឹងនីមួយៗមានដូចខាងក្រោម៖

សមាសភាព នៃ PGRC សម្រាប់ខេត្តត្បូងឃ្មុំ

តារាងខាងក្រោមសង្ខេបសមាសភាព PGRC ខេត្តត្បូងឃ្មុំ៖

សមាសភាព នៃគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ា

ល.រ	ឈ្មោះ	តួនាទី	មុខតំណែង
១	ឯកឧត្តមបណ្ឌិត ជាម ច័ន្ទសោភ័ណ	អភិបាលនៃគណៈអភិបាលខេត្ត	ប្រធាន
២	ឯកឧត្តម ហាក់សុខមករា	អភិបាលរងនៃគណៈអភិបាលខេត្ត	អនុប្រធាន
៣	លោក ម៉ៅ ខុង	នាយករដ្ឋបាលសាលាខេត្ត	អនុប្រធាន
៤	លោក ប៊ូច សុធាវិទ្យា	ប្រធានមន្ទីររៀបចំដែនដី នគរូបនីយកម្ម សំណង់ និងសុរិយោដីខេត្ត	អនុប្រធាន
៥	លោក គឹម ទិត្យា	ប្រធានមន្ទីរសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុខេត្ត	អនុប្រធាន
៦	លោក បួន សេងសុរិទ្យា	អនុប្រធានរដ្ឋបាលសាលាខេត្ត	សមាជិក
៧	លោក ហេង ពិសិដ្ឋ	ប្រធានមន្ទីរកសិកម្មរុក្ខាប្រមាញ់ និងនេសាទខេត្ត	សមាជិក
៨	លោក/លោកស្រី	អភិបាលស្រុកទាំង៧	សមាជិក
៩	លោក ឯម ពិជ័យរតនៈ	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១០	លោក វ៉ា ចាន់ឡឿន	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១១	លោក វ៉ា សុធា	អនុប្រធានការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាពសាធារណៈ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១២	លោក គឹម បញ្ញា	មន្ត្រីការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាពសាធារណៈ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១៣	លោក សៅប្ល៉ាស៊ី	មន្ត្រីការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាពសាធារណៈ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១៤	តំណាងអង្គការអ្នកអភិវឌ្ឍន៍សហគមន៍ (NAS)		សមាជិក

ព័ត៌មានលម្អិតសម្រាប់លេខទំនាក់ទំនង សម្រាប់កម្រិតនីមួយៗ នៃ GRM៖

ឈ្មោះ និងលេខទំនាក់ទំនងសម្រាប់ជនបង្គោល GRM នៅកម្រិតឃុំ

ល.រ	ឈ្មោះ	តួនាទី	លេខទំនាក់ទំនង
១	លោក ឌុ ឌឹម	មេឃុំចុងជាច	០៩៧ ២៩៦ ៨៩៩៦
២	លោក ហ៊ឹង ម៉ែងហ៊ាង	មេឃុំទឹកជ្រៅ	០៩៧ ៨៨១ ៨៤២៩

ឈ្មោះ និងលេខទំនាក់ទំនងសម្រាប់ជនបង្គោល GRM នៅកម្រិតស្រុក

ល.រ	ឈ្មោះ	តួនាទី	លេខទំនាក់ទំនង
១	លោក មឿន ថាវិទូ	អភិបាលរងស្រុកតំបែរ	០៣១ ៤០១ ៣៣៣៣

ឈ្មោះ និងលេខទំនាក់ទំនងសម្រាប់ជនបង្គោល GRM នៅកម្រិត GDR

ល.រ	ឈ្មោះ	តួនាទី	លេខទំនាក់ទំនង
១	លោក សុខ សុភក្តិ	ប្រធានការិយាល័យ, DIMDM	០១២ ៩២៣ ៦០៧
២	លោក ស៊ិន គុណឌី	អនុប្រធានការិយាល័យ, DIMDM	០១២ ៨៤៩ ៧៩០

ឈ្មោះ និងលេខទំនាក់ទំនងសម្រាប់ជនបង្គោល GRM នៅកម្រិតខេត្ត

ល.រ	ឈ្មោះ	តួនាទី	លេខទំនាក់ទំនង
១	ឯកឧត្តម ណុប ឡុងឌី	អភិបាលរងខេត្ត	០១២ ៤៨៨ ៨១២
២	ឯកឧត្តម ហុក ពេជ្រហោះ	អភិបាលរងខេត្ត	០១២ ៨៨៣ ១០៦

ឧបសម្ព័ន្ធ ៣

**ពាក្យបណ្តឹងបុគ្គល
គម្រោងខ្សែច្រវាក់ផលិតកម្មដោយភាគរៈបរិស្ថាន**

កាលបរិច្ឆេទបណ្តឹង	លេខ DMS	
ឈ្មោះអ្នកដាក់ពាក្យបណ្តឹង		

លេខអត្តសញ្ញាណប័ណ្ណ សៀវភៅគ្រួសារ	
លេខទំនាក់ទំនង	
អាសយដ្ឋាន	
សេចក្តីសង្ខេបនៃពាក្យបណ្តឹង	
បញ្ជីឯកសារគាំទ្រ ភស្តុតាង /	

ឈ្មោះ (មេគ្រួសារ):

ហត្ថលេខា/ស្នាមមេដៃ:

កាលបរិច្ឆេទ:

ឧបសម្ព័ន្ធ ៤

ការចុះពាក្យបណ្តឹង
គម្រោងខ្សែច្រវាក់ផលិតកម្មដោយភាគៈបរិស្ថាន

ក្រុង-ស្រុក-ខណ្ឌ: _____

រាជធានី-ខេត្ត: _____

កាលបរិច្ឆេទ នៃការទទួល ពាក្យបណ្តឹង	ករណី លេខ	ឈ្មោះនិងអត្តសញ្ញាណប័ណ្ណអ្នកដាក់ពាក្យបណ្តឹង		ចំណុចសំខាន់នៃពាក្យបណ្តឹង
		ឈ្មោះ	អត្តសញ្ញាណប័ណ្ណសៀវភៅ/ គ្រួសារ	

ឧបសម្ព័ន្ធ ៥

ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ
លិខិតពីអភិបាលខណ្ឌ-ស្រុក

ក្រុង-ស្រុក-ខណ្ឌ: _____

រាជធានី-ខេត្ត: _____

បណ្តឹងបុគ្គល		
ករណីលេខ:		
ឈ្មោះអ្នកដាក់ពាក្យបណ្តឹង		
កាលបរិច្ឆេទបណ្តឹង		
សេចក្តីសង្ខេបនៃពាក្យបណ្តឹង (ដូចគ្នានឹងពាក្យសុំចុះឈ្មោះបណ្តឹងតវ៉ាម្នាក់ៗ)		
កិច្ចប្រជុំគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ា		
កាលបរិច្ឆេទ:	ម៉ោង:	ទីតាំង:
អ្នកចូលរួម		
សេចក្តីសង្ខេបនៃការពិភាក្សា		
កាលបរិច្ឆេទនៃការចុះពិនិត្យទីតាំង ប្រសិនបើ) (មាន		
លទ្ធផលនៃការប្រជុំ/សេចក្តីសម្រេច		
បដិសេធ - គ្មានមូលដ្ឋានយោងតាមតារាងនៃសិទ្ធិទទួលបានសំណង សមនឹងទទួល - បណ្តឹងបញ្ជូនបន្តទៅអគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ដើម្បី ចាត់វិធានការ		

ឈ្មោះ:

តួនាទី:

ហត្ថលេខា/ស្នាមមេដៃ:

កាលបរិច្ឆេទ:



រដ្ឋបាលខេត្តស្ទឹងត្រែង

លេខ.០០៩/ណ.ណ.ក.ប
២៤

**ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ**

សេចក្តីសម្រេច

ស្តីពី

**ការកែសម្រួលប្រការ១ នៃសេចក្តីសម្រេចលេខ៣៥/២៤ សសរ.ត.យ ចុះថ្ងៃទី៣០ ខែតុលា ឆ្នាំ២០២៤
ស្តីពីការកែសម្រួលសមាសភាពគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ខេត្ត
សម្រាប់ដំណើរការដោះស្រាយទូទាំងបណ្តឹងផ្សេងៗ របស់ប្រជាពលរដ្ឋដែលរងផលប៉ះពាល់
ដោយគម្រោងវិនិយោគសាងសង់ប្រព័ន្ធធាតុបញ្ចូលដោយភាគីបរិស្ថាន ខេត្តស្ទឹងត្រែង**

អភិបាល នៃគណៈអភិបាលខេត្តស្ទឹងត្រែង

- បានឃើញរដ្ឋធម្មនុញ្ញ នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៨២៣/១៩៨១ ចុះថ្ងៃទី២២ ខែសីហា ឆ្នាំ២០២៣ ស្តីពីការតែងតាំងរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០២២៤/២០៥ ចុះថ្ងៃទី២១ ខែកុម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការតែងតាំងបំពេញបន្ថែមសមាសភាពរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៩២៤/១១៦៩ ចុះថ្ងៃទី២០ ខែកញ្ញា ឆ្នាំ២០២៤ ស្តីពីការកែសម្រួល និងតែងតាំងសមាសភាពរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៦១៨/០១២ ចុះថ្ងៃទី២៨ ខែមិថុនា ឆ្នាំ២០១៨ ដែលប្រកាសឱ្យប្រើច្បាប់ ស្តីពីការរៀបចំ និងប្រព្រឹត្តទៅ នៃគណៈរដ្ឋមន្ត្រី
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៥០៨/០១៧ ចុះថ្ងៃទី២៤ ខែឧសភា ឆ្នាំ២០០៨ ដែលប្រកាសឱ្យប្រើច្បាប់ ស្តីពីការគ្រប់គ្រងរដ្ឋបាលរាជធានី ខេត្ត ក្រុង ស្រុក ខណ្ឌ
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៥០៥/០១៥ ចុះថ្ងៃទី៩ ខែឧសភា ឆ្នាំ២០០៥ ដែលប្រកាសឱ្យប្រើច្បាប់ ស្តីពីស្ថិតិ
- បានឃើញអនុក្រឹត្យលេខ ២១៦ អនក្រ.បក ចុះថ្ងៃទី១៤ ខែធ្នូ ឆ្នាំ២០០៩ ស្តីពីតួនាទី ភារកិច្ច និងទំនាក់ទំនងការងាររបស់ក្រុមប្រឹក្សា គណៈអភិបាលខេត្ត ក្រុមប្រឹក្សា គណៈអភិបាលក្រុង និងក្រុមប្រឹក្សា គណៈអភិបាលស្រុក
- យោងលិខិតលេខ ៦០៤ សហវ.អដជ ចុះថ្ងៃទី៣១ ខែមករា ឆ្នាំ២០២០ របស់ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- យោងតាមការចាំបាច់របស់រដ្ឋបាលខេត្ត

សម្រេច

ប្រការ១. ផ្ទៃ

ត្រូវបានកែសម្រួលសមាសភាពគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ខេត្ត សម្រាប់ដំណើរការដោះស្រាយទូទាំងបណ្តឹងផ្សេងៗរបស់ប្រជាពលរដ្ឋដែលរងផលប៉ះពាល់ ដោយគម្រោងវិនិយោគសាងសង់ប្រព័ន្ធធាតុបញ្ចូលដោយភាគីបរិស្ថាន ដូចខាងក្រោម៖

១.ឯកឧត្តម ប៊ែន គុសល្យ	អភិបាល នៃគណៈអភិបាលខេត្ត	ប្រធាន
២.ឯកឧត្តម ណុច ឡុងឌី	អភិបាលរង នៃគណៈអភិបាលខេត្ត	អនុប្រធាន
៣.លោក សេង ជ័យតូច	នាយករដ្ឋបាលសាលាខេត្ត	អនុប្រធាន
៤.លោក ប៊ុន សុធាវិធី	ប្រធានមន្ទីររៀបចំដែនដី នគរូបនីយកម្ម សំណង់ និងសុរិយោដីខេត្ត	អនុប្រធាន
៥.លោក គឹម ធីត្យា	ប្រធានមន្ទីរសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុខេត្ត	អនុប្រធាន
៦.លោកស្រី អន ចិន្តា	នាយករងរដ្ឋបាលសាលាខេត្ត	សមាជិក
៧.លោក ហេង ពិសិដ្ឋ	ប្រធានមន្ទីរកសិកម្ម រុក្ខាប្រមាញ់ និងនេសាទខេត្ត	សមាជិក
៨.លោក សុខ ឡេងម៉េង	ប្រធានមន្ទីរធនធានទឹក និងឧតុនិយមខេត្ត	សមាជិក
៩.លោក ស្រេង លី	អភិបាល នៃគណៈអភិបាលស្រុកមេមត់	សមាជិក
១០.លោក ជា ណារ៉ុន	អភិបាល នៃគណៈអភិបាលស្រុកអូររាំងខ្ចី	សមាជិក
១១.លោក លី សុភាសិន	អភិបាល នៃគណៈអភិបាលស្រុកពញាក្រែក	សមាជិក
១២.លោក សុខ សារិទ្ធ	អភិបាល នៃគណៈអភិបាលស្រុកតំបែរ	សមាជិក
១៣.លោក សេង សុខខៀន	អភិបាល នៃគណៈអភិបាលស្រុកគ្បូងឃ្មុំ	សមាជិក
១៤.លោក សយ ឌុច	អភិបាល នៃគណៈអភិបាលស្រុកក្រូចឆ្មារ	សមាជិក
១៥.លោក ចូន ប៊ុនឡាន	អភិបាល នៃគណៈអភិបាលក្រុងស្អាង	សមាជិក
១៦.លោក ឯម ពិជ័យរតនៈ	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១៧.លោក វ៉ា ចាន់ឡែន	នាយករងទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១៨.លោក វ៉ា សុធា	ប្រធានការិយាល័យគ្រប់គ្រងការអភិវឌ្ឍ និងសំណង់ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
១៩.លោក គឹម បញ្ញា	អនុប្រធានការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាពសាធារណៈ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
២០.លោក សៅ បូរ៉ាស៊ី	មន្ត្រីការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាពសាធារណៈ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
២១.តំណាងអង្គការសង្គមស៊ីវិល		សមាជិក

ប្រការ២._

គណៈកម្មការដោះស្រាយផលប៉ះពាល់ គម្រោងវិនិយោគសាងសង់ដោយភាគីបរិស្ថាន មានភារកិច្ចដូចខាងក្រោម៖

- ពិនិត្យ និងដោះស្រាយបណ្តឹងតវ៉ារបស់ប្រជាពលរដ្ឋរងផលប៉ះពាល់ដោយគម្រោងវិនិយោគសាងសង់ដោយភាគីបរិស្ថាន
- ធានាឱ្យបាននូវសុក្រឹតភាព នៃដំណើរការដោះស្រាយបណ្តឹងតវ៉ាដោយមានអនុលោមភាពជាមួយគោលនយោបាយដោះស្រាយផលប៉ះពាល់ ដើម្បីធានាបាននូវគណនេយ្យភាព និងតម្លាភាព ឆ្លើយតបទៅនឹងចម្ងល់ និងសំណើរបស់ប្រជាពលរដ្ឋរងផលប៉ះពាល់
- ការដោះស្រាយបណ្តឹងតវ៉ាត្រូវគោរពតាមនីតិវិធីដែលបានកំណត់។

ប្រការ៣._

នីតិវិធីដោះស្រាយបណ្តឹងតវ៉ារបស់ប្រជាពលរដ្ឋដែលរងផលប៉ះពាល់ដោយសារគម្រោងវិនិយោគសាងសង់ដោយភាគីបរិស្ថាន មានដូចតទៅ៖

- ដំណាក់កាលបឋម : ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចស្វែងរកជំនួយបឋមពីមេឃុំ/ចាស់ភូមិ ឬចាស់ព្រឹទ្ធាចារ្យក្នុងសហគមន៍ ដើម្បីពិភាក្សា និងស្វែងរកដំណោះស្រាយសមស្របជាមួយក្រុមការងារ



(Handwritten signature in blue ink)

អនុគណៈកម្មការដោះស្រាយផលប៉ះពាល់ខេត្ត។ បណ្តឹងនេះអាចត្រូវបានធ្វើឡើងដោយផ្ទាល់មាត់ និងគ្មានការកត់ត្រា។ ក្រុមការងារអនុគណៈកម្មការដោះស្រាយផលប៉ះពាល់ខេត្តនឹងពិភាក្សាជាមួយ ក្រុមការងារគណៈកម្មការអន្តរក្រសួងដោះស្រាយផលប៉ះពាល់ ដើម្បីរកដំណោះស្រាយតាមលទ្ធភាព ដែលអាចធ្វើទៅបាន។ ក្នុងករណីដែលបណ្តឹងមិនត្រូវបានដោះស្រាយតាមការពេញចិត្តរបស់ប្រជាពលរដ្ឋ រងផលប៉ះពាល់ទេ គាត់អាចដាក់ពាក្យបណ្តឹងជាផ្លូវការទៅគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ាតាម ដំណាក់កាលដូចខាងក្រោម៖

ក-ដំណាក់កាលទី១ : ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចដាក់ពាក្យបណ្តឹងតវ៉ាទៅអភិបាលស្រុក ឬក្រុង។ នៅថ្នាក់ស្រុក ឬក្រុងនេះ មានរយៈពេល ១៥ថ្ងៃ សម្រាប់ដោះស្រាយបណ្តឹងតវ៉ា។ ប្រសិនបើមិនមាន ដំណោះស្រាយជាវិជ្ជមាន ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចដាក់ពាក្យបណ្តឹងតវ៉ាបន្តទៅ ដំណាក់កាល ទី២។

ខ-ដំណាក់កាលទី២ : ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចដាក់ពាក្យបណ្តឹងតវ៉ាទៅអគ្គនាយកដ្ឋាន ដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ នៃក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ។ នាយកដ្ឋាន ត្រួតពិនិត្យផ្ទៃក្នុង និងគ្រប់គ្រងទិន្នន័យ នៃអគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដោយគម្រោង អភិវឌ្ឍន៍ មានរយៈពេល ៤០ថ្ងៃ សម្រាប់ដោះស្រាយបណ្តឹងតវ៉ា។ ប្រសិនបើមិនមានដំណោះស្រាយ ជាវិជ្ជមានទេ ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចដាក់ពាក្យបណ្តឹងតវ៉ាបន្តទៅដំណាក់កាលទី៣។

គ-ដំណាក់កាលទី៣ : ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចដាក់ពាក្យបណ្តឹងទៅគណៈកម្មការដោះស្រាយ បណ្តឹងតវ៉ាថ្នាក់ខេត្ត។ នៅថ្នាក់ខេត្តនេះ មានរយៈពេល ៣០ថ្ងៃសម្រាប់ដោះស្រាយបណ្តឹងតវ៉ា។ ប្រសិនបើមិនមានដំណោះស្រាយជាវិជ្ជមានទេ ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចដាក់ពាក្យបណ្តឹងតវ៉ា បន្តទៅសាលាដំបូងខេត្ត ដែលគម្រោងស្ថិតនៅ។

ប្រការ៤._

បទប្បញ្ញត្តិទាំងឡាយណា ដែលមានខ្លឹមសារផ្ទុយនឹងសេចក្តីសម្រេចនេះ ត្រូវទុកជាបាននិរាករណ៍។

ប្រការ៥._

នាយករដ្ឋបាលសាលាខេត្ត ប្រធានមន្ទីរ អង្គភាពជំនាញជុំវិញខេត្ត អភិបាលក្រុង ស្រុក នាយកទីបាត់ការ ប្រធានអង្គភាពចំណុះរចនាសម្ព័ន្ធសាលាខេត្ត និងសាមីខ្លួនដូចមានឈ្មោះក្នុងប្រការ១ ខាងលើត្រូវទទួលបន្ទុក អនុវត្តសេចក្តីសម្រេចនេះឱ្យមានប្រសិទ្ធភាពចាប់ពីថ្ងៃចុះហត្ថលេខាតទៅ។

ថ្ងៃ ២៩ ៦ កើត ខែ មាឃ ឆ្នាំរោង ឆស័ក ព.ស.២៥៦៨
ធ្វើនៅខេត្តក្រចេះ ថ្ងៃទី ៣ ខែ កុម្ភៈ ឆ្នាំ២០២៥

អភិបាលខេត្ត

ប៊ែន គុសល្យ

កន្លែងទទួល៖

- ក្រសួងមហាផ្ទៃ
- ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- ក្រសួងរៀបចំដែនដី នគរូបនីយកម្ម និងសំណង់
- ដើម្បីគោរពជូនជ្រាប
- ដូចប្រការ៥
- ដើម្បីអនុវត្ត
- ឯកសារ-កាលប្បវត្តិ

**KINGDOM OF CAMBODIA
NATION RELIGION KING**

**TBOUNG KHMUM PROVINCIAL ADMINISTRATION
No. 009/25 SSR.TBK**

**DECLARATION
Of
THE ESTABLISHMENT OF GRIEVANCE REDRESS COMMITTEE, GRC
FOR RESOLVING THE COMPLAINTS OF AFFECTED HOUSEHOLDS BY CLIMATE-
FRIENDLY AGRIBUSINESS VALUE CHAIN SECTOR PROJECT**

GOVERNOR OF THE TBOUNG KHMUM PROVINCIAL BOARD OF GOVERNORS

- Seen the Constitution of the Kingdom of Cambodia
- Seen the Royal Decree No. NS/RKT/0823/1981 dated on 22 August 2023 on the appointment of the Royal Government of Cambodia.
- Seen Royal Decree No. NS/RKT/0224/205 dated on 21 February 2024, on the new appointment of the Royal Government of Cambodia.
- Seen Royal Decree No. NS/RKT/0914/1196 dated 20 September 2024 on the adjustment and appointment of the Royal Government of Cambodia.
- Seen Royal Kram No. NS/RKM/0618 dated on 28 June 2018, on the declaration of the law of organization and functioning of the council of ministers.
- Seen the Royal Kram No. NS/RKM/0508/017 dated on 24 May 2008, Proclamation on the Law on the Administration of Capital, Province, Municipality, District and Khan.
- Seen the Royal Kram No. NS/RKM/0505/015 dated 9 May 2005 who promulgated the Law on Statistic.
- Reference the Sub-Decree No. 216 ANKR.BK released on 14 December 2009, On the Roles, Duties and Labor Relations of the Council Provincial Board of Governors, the Council Municipal Board of Governors, and the Council District Board of Governors.
- Reference letter No. 604 SHV.GDR released on 31 January 2020 of Ministry of Economy and Finance.
- According to the need of Tboung Khmum Provincial Administration.

DECLARED

Article 1:

Corrected the Grievance Redress Committee, GRC for resolving complaint of affected household by Climate-Friendly Agribusiness Value Chain Sector Project under financing of the Asia Development Bank (ADB), geographically located in Tboung Khmum Province, that involved from:

No.	Name	Title	Position Assigned
1	H.E. Pen Kosal	Provincial Governor	Chair
2	H.E. Nob Longdy	Deputy Provincial Governor	Vice Chair
3	Mr. Seng Cheyvuth	Director of Provincial Administration Hall	Vice Chair
4	Mr. Poch Sothearith	Director of PDLMUPC	Vice Chair
5	Mr. Kim Tithya	Director of PDEF	Vice Chair
6	Mrs. Chhorn Chenda	Deputy Director of Provincial Administration Hall	Member
7	Mr. Heng Pesith	Director of PDAFF	Member
8	Mr. Sok Lengmeng	Director of Provincial Water Resources and Meteorology	Member
9	Mr. Sreng Ly	Chief of Me Mot district	Member
10	Mr. Chea Narun	Chief of Orang Ov district	Member
11	Mr. Ly Sophealin	Chief of Ponhea Krek district	Member
12	Mr. Sok Sarith	Chief of Tombae district	Member
13	Mr. Seng Sokkheun	Chief of Tboung Khmum district	Member
14	Mr. Soy Touch	Chief of Kroch Chmar district	Member

15	Mr. Ngoun Bunnan	Chief of Soung Municipality	Member
16	Mr. Em Picheyrattanak	Director of Provincial Inter-sectoral office	Member
17	Mr. Va Channeun	Deputy Director of Provincial Inter-sectoral office	Member
18	Mr. Va Sothea	Chief of Development and Construction Management Office	Member
19	Mr. Kim Panha	Deputy Chief of Legal Affairs and Public Safety Office	Member
20	Mr. Sao Borasy	Officer of Legal Affairs and Public Safety Office	Member
21	Mr. Keout Theng	Director of NAS Organization	Member

Article 2:

This committee has duties as following:

- To monitor and resolve the complaints from affected people by Climate-Friendly Value Chain Sector Project
- To ensure the accuracy of the grievance resolution process in accordance with the involuntary resettlement policy to ensure accountability and transparency in responding to the concerns and requests of the affected people.
- Complaints must be resolved in accordance with established procedures.

Article 3:

Procedures for resolving the grievances of the Affected People (AP) by the project are as following:

Preliminary Step: The AP can find first help from Chief of Commune/Sangkat or elderly in the community to discuss and find the appropriate solution with the provincial resettlement committee working group (PRSC-WG). The complaint can be verbal without record. The PRSC-WG with discuss with IRC-WG to find the possible solution. In case, the AP doesn't satisfy the solution they can file a formal complaint to grievance committee by follow the step below:

- **First Step:** The AP can lodge a written complaint to the Head of the district/city. There are 15 days to resolve the complaint at the district/city level, if there is no positive solution AP can continue this complaint to the second step.
- **Second Step:** AP can file the complaint to the General Department of Resettlement of the Ministry of Economy and Finance. The Department of Internal Monitoring and Data Management of GDR has 40 days to resolve the complaint, if there is no positive solution AP can continue the complaint to the third step.
- **Third Step:** AP can file complaint to PRSC. There are 30 days to solve the complaint at provincial level, and if there is no positive solution AP can continue complaint to the court that project located.

Article 4:

Any decision that is contrary to this decision shall be abolished.

Article 5:

Director of Administration of Provincial Hall, Head of Department-Units around the province, City/District Governor and relevant person as listed in article 1 above must be implement this decision effectively from the date of signing.

Tboung Khmum Province, Date 03 February 2025
TBK Provincial Governor

Pen Kosal

Copy to:

- . Ministry of Interior
- . Ministry of Economic and Finance
- . Ministry of Land Management Urban Planning Construction and Cadastral Affairs
- “To informed”
- . As article 5
- “To implement”
- . Document-Chronology

Annex 7: Official Letter of Establishing the Composition of PRSC and PRSC-WG

KINGDOM OF CAMBODIA NATION RELIGION KING

**TBOUNG KHMUM PROVINCIAL ADMINISTRATION
No. 108/24 SSR.TBK**

DECLARATION

Of

Re-establishment of the Composition of the Provincial Resettlement Sub Committee, PRSC for detailed measurement and Evaluate the Impact on structures, housing, land, fruit trees, and other properties by Climate-Friendly Agribusiness Value Chain Sector Project

GOVERNOR OF TBOUNG KHMUM PROVINCIAL BOARD OF GOVERNORS

- Seen the Constitution of the Kingdom of Cambodia
- Seen Royal Decree No. NS/RKT/0918/925 dated 06 September 2018 on the appointment of the Royal Government of Cambodia.
- Seen Royal Decree No. NS/RKT/0320/421 dated 30 March 2020 on the appointment/re-appointment of Cambodia Royal Government composition.
- Seen Royal Kram No. 06/NS/94 dated 30 October 1994 on the Civil Government Officer Condition declaration.
- Seen Royal Kram No. NS/RKM/0618 dated 28 June 2018, on the declaration of the law of organization and functioning of the council of ministers.
- Seen the Royal Kram No. NS/RKM/0508/017 dated 24 May 2008, Proclamation on the Law on the Administration of Capital, Province, Municipality, District, and Khan.
- Seen Decree No. 216 dated 14 December 2009, On the Roles, Duties and Labor Relations of the Council Provincial Board of Governors, the Council Municipal Board of Governors, and the Council District Board of Governors.
- Seen Royal Kram No. NS/RKT/0508/018 dated 24 May 2008 on the promulgation of the Law on the Election of Capital, Provincial, Municipal, District, and Khan Councils.
- Seen Royal Decree No. NS/RKT/1118/1252 date 13 November 2018 on the appointment of Governor of Tboung Khmum Provincial Board of Governors.
- Seen Sub Decree No. 119 dated 17 June 2022 of Royal Government on the number of city, provincial, district, and khan governors.
- Reference letter No. 604 dated 31 January 2020 of the Ministry of Economy and Finance.
- Reference letter dated 17 August 2022 of Resettlement Department 3
- According to the need of Tboung Khmum Provincial Administration.

DECLARED

Article 1:

Edited the composition of Provincial Resettlement Sub-Committee, PRSC for working with the Inter-Ministerial Resettlement Committee working group in involuntary resettlement by Climate-Friendly Agribusiness Value Chains Sector Project as follows:

No.	Name	Title	Position Assigned
1	H.E Hok PichHos	Deputy Provincial Governor	Chair
2	Mr. Seng Cheyvuth	Director of Administration Provincial Hall	Vice Chair
3	Mr. Sok Lengmeng	Director of PDOWRAM	Vice Chair
4	Mr. Kim Tithya	Director of PDEF	Vice Chair
5	Mr. Poch Sothearith	Director of PDLUPC	Vice Chair
6	Mrs. Chhorn Chenda	Deputy Director of Administration Provincial Hall	Member
7	Mr. Heng Pesith	Director of PDAFF	Member
8	Mr. An Sina	Head of PDRD	Member

9	Mr./Mrs. Representative Provincial Police Commissioner		Member
10	Mr./Mrs. Representative Provincial Gendarmerie Command		Member
11	Mr./Mrs. 7 Relevant Municipality - District Governor		Member
12	Mr. Em Picheyrattanak	Director of Provincial Inter-sectoral office	Member

Article 2:

Duties:

- Lead and control the provincial working group to study, examine, measure, and evaluate the impact on the affected households' land, structure, housing, and other assets by the CFAVC project.
- To cooperate and facilitate with the IRC-working group to organize and resolve all challenging problems and impacts that occur by providing appropriate compensation in accordance with the principle of unity.
- To cooperate with the IRC-WG to organize the consultation meeting with affected households, do the detailed measurement survey on the properties that were impacted by the project, and facilitate and resolve all questions from affected people.
- To cooperate with the local authorities to facilitate the detailed measurement process in order to achieve the prepared work plan.
- Attend all meetings to implement all resettlement working processes of IRC-WG and could appoint the officer to work if necessary.
- To report to H. E., Provincial Governor on the working progress and result of the project implementation.

Article 3:

Was established the Provincial Resettlement Sub-Committee Working Group, PRSC-WG which has the composition as below:

No.	Name	Title	Position Assigned
1	Mr. Em Picheyrattanak	Director of Provincial Hall Inter-sectoral Office	Chairman
2	Mr. Yiv Vuth	Vice Head of PDEF	Member
3	Mr. Sor Sen	Deputy Director of PDRD	Member
4	Mr. Yem Chorda	Chief of Irrigation and Agriculture Office	Member
5	Mr. Va Sothea	Deputy Chief, Law and Safeguard Office	Member
6	Mr. Nget Sombeoun	Vice Chief of Office, PDAPP	Member
7	Mr. Ly Bunsann	Vice Chief of LMUPC	Member
8	Representative of relevant district administration		Member
9	Head of Office, Office of LMUPC		Member
10	Mr. Kim Panha	Officer, Law and Safeguard Office	Member
11	Mr. Sao Borasy	Officer of Legal Affairs and Public Safety Office	Member
12	Mr./ Mrs. Relevant Chief of Commune		Member
13	Relevant Police Commissioner		Member
14	Mr./Mrs. Relevant Chief of village		Member

Article 4:

Duties:

- To cooperate with the IRC-WG to organize the consultation meeting with affected households, do the detailed measurement survey on the properties that were impacted by the project as well as facilitate and resolve all questions from affected people.
- To report on the result of work, and any challenges to the provincial sub-committee.

Article 5:

Any decision that is contrary to this decision shall be abolished.

Article 6:

The Director of Provincial Administration, Commissioner of the Provincial Police, Board of Directors of the Provincial Armed Forces, Director of Department-Units around the province, and relevant person as listed in articles 1 and 3 must implement this decision effectively from the date of signing.

Tboung Khmum Province, Date 25 September 2024
TBK Provincial Governor

Pen Kosal

Copy to:

- . Ministry of Interior
- . Ministry of Rural Development
- . Ministry of Economic and Finance
- . Ministry of Agriculture Forestry and Fishery
- . Ministry of Land Management Urban Planning Construction and Cadastral Affairs
- . Ministry of Water Resources and Meteorology
 - "To informed"
- . As article 6
 - "To implement"
- . Document-Chronology



ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ

អង្គបាលខេត្តក្រចេះ

លេខ ១០៧/៣៣៤.កប
២៤

សេចក្តីសម្រេច
ស្តីពី

**ការកែសម្រួលសមាសភាពអនុគណៈកម្មការខេត្ត និងក្រុមការងារខេត្តសម្រាប់ចុះពិនិត្យ
អនុវត្តច្បាប់ស្តីពីការបោះឆ្នោត និងច្បាប់ស្តីពីការបោះឆ្នោតសម្រាប់សមាសភាពអនុគណៈកម្មការខេត្ត
និងក្រុមការងារខេត្តសម្រាប់សមាសភាពអនុគណៈកម្មការខេត្ត និងក្រុមការងារខេត្តសម្រាប់សមាសភាពអនុគណៈកម្មការខេត្ត
និងក្រុមការងារខេត្តសម្រាប់សមាសភាពអនុគណៈកម្មការខេត្ត និងក្រុមការងារខេត្តសម្រាប់សមាសភាពអនុគណៈកម្មការខេត្ត**

ដោយភាគរៈបរិស្ថាន

អង្គបាល នៃគណៈអភិបាលខេត្តក្រចេះ

- បានឃើញរដ្ឋធម្មនុញ្ញ នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៨២៣/១៩៨១ ចុះថ្ងៃទី២២ ខែសីហា ឆ្នាំ២០២៣ ស្តីពីការតែងតាំងរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៦១៨/០១២ ចុះថ្ងៃទី២៨ ខែមិថុនា ឆ្នាំ២០១៨ ដែលប្រកាសឱ្យប្រើច្បាប់ ស្តីពីការរៀបចំ និងការប្រព្រឹត្តទៅនៃគណៈរដ្ឋមន្ត្រី
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៥០៨/០១៧ ចុះថ្ងៃទី២៤ ខែឧសភា ឆ្នាំ២០០៨ ដែលប្រកាសឱ្យប្រើច្បាប់ ស្តីពីការគ្រប់គ្រងរដ្ឋបាលរាជធានី ខេត្ត ក្រុង ស្រុក ខណ្ឌ
- បានឃើញអនុក្រឹត្យលេខ ២១៦ អនក្រ.បក ចុះថ្ងៃទី១៤ ខែធ្នូ ឆ្នាំ២០០៩ ស្តីពីតួនាទីភារកិច្ច និងទំនាក់ទំនងការងាររបស់ក្រុមប្រឹក្សា គណៈអភិបាលខេត្ត ក្រុមប្រឹក្សា គណៈអភិបាលក្រុង ស្រុក
- យោងលិខិតលេខ ៦០៥ សហ/អដជ ចុះថ្ងៃសុក្រ ៧កើត ខែមាឃ ឆ្នាំកុរ ឯកស័ក ព.ស.២៥៦៣ ត្រូវនឹងថ្ងៃទី៣១ ខែមករា ឆ្នាំ២០២០ របស់ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- យោងតាមការចាំបាច់របស់រដ្ឋបាលខេត្តក្រចេះ

សម្រេច

ប្រការ១.

ត្រូវបានកែសម្រួលសមាសភាពអនុគណៈកម្មការខេត្ត សម្រាប់ចូលរួមជាមួយក្រុមការងារគណៈកម្មការអន្តរក្រសួងក្នុងការដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងវិនិយោគកែលម្អផ្លូវជាតិលេខ១ ដូចខាងក្រោម៖

- | | | |
|-------------------------|--|-----------|
| ១. ឯកឧត្តម ហុក ស្រីហ៊ុន | អភិបាលរង នៃគណៈអភិបាលខេត្ត | |
| ២. លោក សេង ជ័យតុល | នាយករដ្ឋបាលសាលាខេត្ត | អនុប្រធាន |
| ៣. លោក សុខ ឡានម៉េង | ប្រធានមន្ទីរធនធានទឹក និងឧតុនិយមខេត្ត | អនុប្រធាន |
| ៤. លោក គឹម ធីត្យា | ប្រធានមន្ទីរសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុខេត្ត | អនុប្រធាន |
| ៥. លោក ម៉ុង សុផាវិន្ទ | ប្រធានមន្ទីររៀបចំដែនដី នគរូបនីយកម្ម សំណង់ និងសុរិយោដីខេត្ត | អនុប្រធាន |



អនុប្រធាន

៦. លោកស្រី ឆន ចិន្តា	នាយករងរដ្ឋបាលសាលាខេត្ត	សមាជិក
៧. លោក ហេង ពិសិដ្ឋ	ប្រធានមន្ទីរកសិកម្ម រុក្ខាប្រមាញ់ និងនេសាទខេត្ត	សមាជិក
៨. លោក អាន ស៊ីណា	ប្រធានមន្ទីរអភិវឌ្ឍន៍ជនបទខេត្ត	សមាជិក
៩. តំណាងស្នងការដ្ឋាននគរបាលខេត្ត		សមាជិក
១០. តំណាងបញ្ជាការដ្ឋានកងរាជអាវុធហត្ថខេត្ត		សមាជិក
១១. លោក អភិបាល នៃគណៈអភិបាលក្រុង-ស្រុក ទាំង៧		សមាជិក
១២. លោក ឯម ពិឃ័យរតនៈ	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក

ប្រការ២.

អនុគណៈកម្មការនេះ មានភារកិច្ច ដូចតទៅ ៖

- ដឹកនាំជំរុញ និងត្រួតពិនិត្យក្រុមការងារថ្នាក់ខេត្ត ឱ្យធ្វើការសិក្សាស្រាវជ្រាវចុះពិនិត្យវាស់វែង វាយតម្លៃផលប៉ះពាល់ដីធ្លី សំណង់ ផ្ទះសម្បែង និងទ្រព្យសម្បត្តិផ្សេងៗ របស់ប្រជាពលរដ្ឋដែលទទួលរងផលប៉ះពាល់ដោយសារគម្រោងវិស្វកម្មដោយផ្ទាល់ដោយសារការកែប្រែផែនការបរិស្ថាន
- សហការសម្របសម្រួលជាមួយក្រុមការងាររបស់គណៈកម្មការអន្តរក្រសួង ដើម្បីរៀបចំដោះស្រាយរាល់បញ្ហាប្រឈមនានា និងផលប៉ះពាល់ទាំងឡាយណាដែលកើតមានឡើង និងផ្តល់សំណងសមស្របតាមគោលការណ៍ឯកភាពគ្នា
- សហការជាមួយក្រុមការងារអន្តរក្រសួងចុះផ្សព្វផ្សាយវាស់វែង ស្រង់ប្រមូលព័ត៌មាន ផលប៉ះពាល់ទាំងឡាយដែលពាក់ព័ន្ធនឹងការអនុវត្តគម្រោង និងសម្របសម្រួល ដោះស្រាយការប្តឹងថ្នាក់ចម្ងល់នានា ជាមួយប្រជាពលរដ្ឋ
- សហការជាមួយអាជ្ញាធរមូលដ្ឋាន ដើម្បីសម្របសម្រួលដំណើរការវាស់វែងឱ្យបានសម្រេចតាមផែនការដែលបានគ្រោងទុក
- ចូលរួមកិច្ចប្រជុំនានា ដើម្បីអនុវត្តការងារតាមការអញ្ជើញរបស់ក្រុមការងារ នៃគណៈកម្មការអន្តរក្រសួង និងប្រើប្រាស់មន្ត្រីក្រោមឱវាទតាមការចាំបាច់
- ធ្វើរបាយការណ៍ជូនឯកឧត្តមអភិបាលខេត្តអំពីដំណើរការ និងលទ្ធផល នៃគម្រោងដើម្បីជ្រាប។

ប្រការ៣.

ត្រូវបានបង្កើតក្រុមការងារជំនួយការ នៃអនុគណៈកម្មការនេះ ដែលមានសមាសភាពដូចខាងក្រោម៖

១. លោក ឯម ពិឃ័យរតនៈ	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	ប្រធាន
២. លោក យ៉ា ចុះ	អនុប្រធានមន្ទីរសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុខេត្ត	សមាជិក
៣. លោក ស សេន	អនុប្រធានមន្ទីរអភិវឌ្ឍន៍ជនបទខេត្ត	សមាជិក
៤. លោក យ៉ា ជួន	ប្រធានការិយាល័យធារាសាស្ត្រ និងកសិកម្ម នៃមន្ទីរធនធានទឹក និងឧតុនិយមខេត្ត	សមាជិក
៥. លោក វ៉ា សុខា	ប្រធានការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាព សាធារណៈ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
៦. លោក ខៀន សំបៀន	អនុប្រធានការិយាល័យក្សេត្រសាស្ត្រ និងវប្បធម៌ខេត្ត	សមាជិក
៧. លោក លី ប៊ុនស៊ាន់	អនុប្រធានការិយាល័យសុរិយោដី និងភូមិសាស្ត្រ	សមាជិក



(Handwritten signature)

នៃមន្ទីររៀបចំដែនដី នគរូបនីយកម្ម សំណង់
និងសុរិយោដីខេត្ត

សមាជិក

៨. តំណាងរដ្ឋបាលក្រុង-ស្រុក ទាំង៧

សមាជិក

៩. លោកប្រធានការិយាល័យរៀបចំដែនដី នគរូបនីយកម្ម សំណង់ និងភូមិបាលក្រុង-ស្រុក ទាំង៧

សមាជិក

១០. លោក គឹម បន្ទូរ

អនុប្រធានការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាព

សាធារណៈ នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត

សមាជិក

១១. លោក សេន បូរីស៊ី

មន្ត្រីការិយាល័យកិច្ចការច្បាប់ និងសុវត្ថិភាពសាធារណៈ

នៃទីចាត់ការអន្តរវិស័យសាលាខេត្ត

សមាជិក

១២. លោក លោកស្រី មេឃុំពាក់ព័ន្ធ

សមាជិក

១៣. លោកនាយប៉ុស្តិ៍រដ្ឋបាលពាក់ព័ន្ធ

សមាជិក

១៤. លោក លោកស្រី មេភូមិពាក់ព័ន្ធ

សមាជិក

ប្រការ៤.

ក្រុមជំនួយការ នៃអនុគណៈកម្មការនេះ មានភារកិច្ច ដូចខាងក្រោម៖

- សហការជាមួយក្រុមការងារអន្តរក្រសួងចុះផ្សព្វផ្សាយវាស់វែង ស្រង់ប្រមូលព័ត៌មានផលប៉ះពាល់ទាំងឡាយ ណាដែលពាក់ព័ន្ធនឹងការអនុវត្តគម្រោង និងសម្របសម្រួលដោះស្រាយការថ្លាំងថ្នាក់ចម្ងល់នានា ជាមួយ ប្រជាពលរដ្ឋ
- ធ្វើរបាយការណ៍ពីលទ្ធផលការងារ និងបញ្ហាប្រឈម ជូនអនុគណៈកម្មការខេត្តជាប្រចាំ។

ប្រការ៥.

ត្រូវបាននិករណ៍សេចក្តីសម្រេចលេខ ០១៥/២១ សស.តយ ចុះថ្ងៃទី២៥ ខែកុម្ភៈ ឆ្នាំ២០២១ របស់រដ្ឋបាល ខេត្តក្នុងឃុំ ស្តីពីការកែសម្រួលសមាសភាពអនុគណៈកម្មការខេត្ត និងក្រុមការងារខេត្តសម្រាប់ចុះពិនិត្យអង្កេតវាស់វែង លម្អិត និងវាយតម្លៃលើផលប៉ះពាល់ដល់ សំណង់ ផ្ទះសម្បែង ដីធ្លី ដំណាំហូបផ្លែ និងទ្រព្យសម្បត្តិផ្សេងៗរបស់ ប្រជាពលរដ្ឋ ដោយសារគម្រោងខ្សែច្រវាក់ផលិតកម្ម។

ប្រការ៦.

នាយករដ្ឋបាលសាលាខេត្ត ស្នងការនគរបាលខេត្ត មេបញ្ជាការកងរាជអាវុធហត្ថខេត្ត ប្រធានមន្ទីរ/អង្គភាព ពាក់ព័ន្ធ នាយកទីចាត់ការ ប្រធានអង្គភាពចំណុះរចនាសម្ព័ន្ធសាលាខេត្ត និងសាមីខ្លួនដូចមានឈ្មោះក្នុងប្រការ១ និងប្រការ៣ ខាងលើ ត្រូវអនុវត្តសេចក្តីសម្រេចនេះឱ្យមានប្រសិទ្ធភាពចាប់ពីថ្ងៃចុះហត្ថលេខាតទៅ។

ថ្ងៃពុធ ៤ រោច ខែភទ្របទ ឆ្នាំរោង ឆស័ក ព.ស.២៥៦៨

ធ្វើនៅខេត្តក្នុងឃុំ ថ្ងៃទី២៤ ខែកញ្ញា ឆ្នាំ២០២៤



អគ្គនាយកខេត្តក្រចេះ

ប៊ែន គុសល្យ

កន្លែងទទួល៖

- ក្រសួងមហាផ្ទៃ
- ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- ក្រសួងកសិកម្ម រុក្ខាប្រមាញ់ និងនេសាទ
- ក្រសួងរៀបចំដែនដី នគរូបនីយកម្ម និងសំណង់
- ក្រសួងធនធានទឹក និងឧតុនិយម
- ដើម្បីគោរពជូនជ្រាប
- ដូចប្រការ៦
- ដើម្បីអនុវត្ត
- ឯកសារ-កាលប្បវត្តិ

Annex 8: Internal Monitoring Indicators

Indicative Internal Monitoring Indicators

Indicators Purpose	Activities	Monitoring Indicators
Identification of compensation recipients	Verify the list of compensation recipients against eligibility criteria for compensations.	Number of persons in the list of compensation recipients, who do not meet eligibility criteria (included by mistake).
	Identification of persons, who may claim eligibility for compensation, but are not included in the lists of compensation recipients. Separate verification should be performed on each type of compensation.	Number of persons who meet the criteria but are not included in the list of compensation recipients (excluded by mistake).
Verification of affected area	Confirmation of the areas of affected assets (including land plots and real property) against the DRP.	Area of land subject to acquisition, for which compensation has been paid.
		Area of structures subject to acquisition for which compensation has been paid.
Verification of compensation amount, processing and payment	Examination of financial documents.	Number of persons who received compensation in time and in full amount disaggregated by compensation types
	Identification and analysis of reasons for compensations not being paid in full amount and in time.	Number of persons who did not receive compensation in time and in full amount, disaggregated by compensation types.
		Amount of funding allocated for payment of compensations.
	Identification of reasons for which funds for compensations have been under/overspent.	Rate of spending of funds allocated for compensations, % of amount envisaged in the DRP.
Verification of compensation timeline	Identification of reasons for which payment of compensations was delayed (e.g., due to the court trial, inheritance issue, etc.)	Number of persons who received compensation with delay, disaggregated by compensation types and reasons of delay; changes in amount of compensation (if any) should also be noted.
Verification of consultation and participation	Determine the level of involvement and identification of reasons of inadequate participation.	Number of compensation recipients who participated in consultations and coordination meetings at each stage of land acquisition.
		Number of complaints received.
	Examination of grievance cases; analysis of disputes and complaints content, and resolution of conflicts.	Number of complaints resolved.